

The M.P. Bhumi Vikas Rules, 1984

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State of Madhya Pradesh - Act

The M.P. Bhumi Vikas Rules, 1984

MADHYA PRADESH

India

The M.P. Bhumi Vikas Rules, 1984

Rule THE-M-P-BHUMI-VIKAS-RULES-1984 of 1984

Published on 18 September 1984

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The M.P. Bhumi Vikas Rules, 1984

Published vide Notification No. 2869-32-84, dated 18-9-1984, Madhya Pradesh Rajpatra (Asadharan), dated 12-11-1984, pp. 2853-2964

In exercise of the powers conferred by Section 85 read with sub-section (3) of Section 24 and Section 31 of the Madhya Pradesh Nagar Tatha Gram Nivesh Adhiniyam, 1973 (No. 23 of 1973), the State Government hereby makes the following rules the same having been previously published as required by sub-section (1) of Section 85 of the said Act, namely:-

Part I ? General

1.

Short title.

- These rules may be called The Madhya Pradesh Bhumi Vikas Rules, 1984.

2.

Definitions.

- In these rules, unless the context otherwise requires, -

(1)

"Accessory use" means any use of the premises subordinate to the principal use and customarily incidental to the principal use;

(2)

"Act" means the Madhya Pradesh Nagar Tatha Gram Nivesh Adhiniyam, 1973 (No. 23 of 1973);

(3)

"Alteration" means a change from one occupancy to another or a structural change, such as an addition to the area or height, or the removal of part of a building, or any change to the structure, such as the construction of, cutting into or removal of any wall, partition, column, beam, joint, floor or other support, or a change to or closing of any required means of ingress or egress or a change of the fixtures or equipment;

(4)

"Approved" means approved by the Authority having jurisdiction of power;

(5)

"Authority having jurisdiction" (hereinafter referred to in these rules as "Authority") in relation to building activities means-

(a)

for permission for development of land in planning area.

The Director of Town and Country Planning or any other officer authorised by him in this behalf.

(b)

for permission for development of land in non-planning area or for construction/alteration, demolition of building in any area,-

(i)

in any area falling within the local limits of a Municipal Corporation or Municipality and over which Special Area Development Authority has no jurisdiction.

Such Municipal Corporation or Municipal Council, as the case may be, or such other authority or officer authorised by or under the relevant Municipal Law to grant such permission.

(ii)

in any area over which a Special Area Development Authority has jurisdiction.

Such Special Area Development Authority or such officer of the authority as may be authorised by such authority in this behalf.

(iii)

in any area over which any Development Authority other than Special Area Development Authority has exclusive jurisdiction.

Such Development Authority, or such other officer of the Development Authority as may be authorised by such Authority in this behalf.

Explanation. - The expressions "Municipal Corporation" and "Municipal Council" whenever the context so requires, shall include the Administrator of the city referred under Section 423 of the Madhya Pradesh Municipal Corporation Act, 1956, and "the person or committee of persons" appointed by the State Government under Section 328 or under Section 337 of the Madhya Pradesh Municipalities Act, 1961.

(6)

"Balcony" means a horizontal projection, including a handrail or balustrade, to serve as passage or a sitting out place;

(7)

"Basement or Cellar" means the lower storey of a building below or partly below ground level;

(8)

"Building Activities" means-

(a)

erection, re-erection, making material alteration and demolition of any building;

(b)

development of land as a composite building scheme and corporate development;

(c)

development and redevelopment of any tract of land which includes division and sub-division into plots or various land uses within a colony.

(9)

["Height of a Building" means the vertical distance of the building which shall be measured from a reference level which would be either the center of the approach road from which the access is being taken or the average height of the plot above this level, whichever is higher. This level shall be construed as the ground level and the vertical distance of the structure shall be calculated from such level to the top of the slab of the topmost floor. Space below this level shall be considered as basement. In case of pitched/sloping roofs, the midpoint between the roof ridge and the eaves level shall be taken as the highest point and the vertical distance from the construed ground level, measured upto this point. If the built from below the road level is used as habitable accommodation because of the advantage of existing topography such area shall be permitted as habitable area and shall be counted in the Floor Area Ratio, Machine rooms, mumpatee, lift, AC structure and water storage tank of topmost floor shall be exempted from the calculation of vertical distance.]

[Substituted by Notification No. F-23-(107)-95-XXXII-(1), dated 31-8-1998.]

(10)

"Building line" means the line up to which the plinth of a building adjoining a street or an extension of a street or a strip of land earmarked or reserved for future construction of street may lawfully extend. It includes the lines prescribed, if any, in any scheme. The building line may change from time to time as decided by the Authority;

(11)

"Chajja" means a sloping or horizontal structural overhang usually provided over opening on external walls to provide protection from sun and rain and includes architectural extension;

(12)

"Chimney" means an upright shaft containing and encasing one or more flues provided for the conveyance to the outer air of any product of combustion resulting from the operation of any heat producing appliances or equipment, employing solid, liquid or gaseous fuel;

(13)

"Chowk or Courtyard" means a space permanently open to the sky, enclosed fully or partially by building and may be at ground level or any other level within or adjacent to a building;

(14)

"Chowk, Inner" means a Chowk enclosed on all sides;

(15)

"Chowk Outer" means as Chowk where one of its sides is not enclosed;

(16)

"Code" means the National Building Code of India as published by the Indian Standards Institution;

(17)

"Conversion" means the change of occupancy or premises to any occupancy or use requiring additional occupancy permit;

(18)

"Corporation" means a Corporation established under the Madhya Pradesh Municipal Corporation Act, 1956 (No. 23 of 1956

);

(19)

["Covered Area" means the area of the land covered by the the building at the ground floor level and shall be counted as the ground coverage. This shall exclude the area covered by projections at slab level and area of the plinth not covered by roof at top. Cantilevered projections up to an extend of one third of the Marginal open space shall be permissible on the upper slab level with a clear height for vehicular/pedestrian movement. These projections cannot be

made at height below 2.5 meter from the ground level. This projection shall not construe to be covered area. Area covered on the second and third floor levels as cantilever projection with at least 5.5 meter clear space below for movement, but not within the setback/marginal open space, shall not be counted in covered area. All areas in the building shall be counted in covered areas except for service ducts, garrage on ground floor and lift wells;]

[Substituted by Notification No. F. 23(107)-95-XXXII(1), dated 7th April, 2000.]

(20)

"Cut de Sac" means a lane, one end of which terminates providing no further access;

(21)

"Density" means the residential density as expressed in these rules in terms of number of dwelling units per hectare.

Explanation. - (i) Where such densities are expressed as exclusive of community facilities and provision for open spaces and major roads (Excluding incidental open spaces), these shall signify net residential densities. Where these densities are expressed after taking into consideration the required open provision for space and community facilities and major roads, these shall signify gross residential densities on neighbourhood level, sector level or town level, as the case may be. The provision of open spaces and community facilities shall depend on the size of the residential community.

(ii)

Incidental open spaces are mainly open spaces required by these rules to be left around and in between two buildings to provide lighting and ventilation;

(22)

"Development Authority" means a Town and Country Development Authority established under Section 38 of the Madhya Pradesh Nagar Tatha Gram Nivesh Adhiniyam, 1973 (No. 23 of 1973) or a Special Area Development Authority constituted under Section 65 of the said Act or an Improvement Trust constituted under the Madhya Pradesh Town Improvement Trust Act, 1960 (No. 14 of 1961):

(23)

"Drain" means a line of pipes including all fittings and equipments, such as manholes, inspection chambers, traps, gullies and floor traps used for the drainage of a building, or a number of buildings, or yards, appurtenant to buildings, within the same curtilage, and shall include open channels used for carrying surface water;

(24)

"Drainage" means the removal of any liquid by a system constructed for this purpose;

(25)

"Dwelling Unit/Tenement" means an independent dwelling unit with separate facilities for living, cooking and sanitary requirement;

(26)

"Exit" means a passage, channel or means of egress from any building, storeys or floor area to a street or other open space of safety;

(27)

"Fire Separation" means the distance in metres measured from any other building on the site, or from other site, or from the opposite side of a street or other public space to the building;

[(27-a) "Forest House" means a house in such areas and built subject to such conditions as specified in sub-rule (13) of Rule 17.]

[Inserted by Notification No. F. 23(107)-95-XXXII-(1), dated 31-8-1998.]

(28)

"Floor" means the lower surface in a storey on which one normally walks in a building. The general term, "floor" unless otherwise specifically mentioned shall not refer to a 'Mezzanine Floor'.

[(28-a) "High rise building" means a building-

[Substituted by Notification No. F. 23(107)-95-XXXII-(I), dated 7th April, 2000.]

(i)

which consists of more than six storeys; or

(ii)

which has a height of more than 18 metres;" (exclusive of stilt parking of 2.4 m. height].

(29)

["Floor Area Ratio" means the ratio of the permissible total of built up area in a building on all floors to the total plot area

of the land in question. (The ratio stipulates the maximum of built quantity and no variations or exceptions shall be allowed, except as specifically provided. The built up area as stated would construe the total built up area on all floors with the exception of lift wells, service ducts, machine room for lifts, water tanks, covered parking area, one entrance lobby/foyer on ground floor, corridors, arcades mumpsee, staircases, but inclusive of covered projection exceeding the limits prescribed under Rule 58.]

[Substituted by Notification No. F. 23(107)-95-XXXII-(I), dated 7th April, 2000.]

(30)

"Foundation" means a part of structure which is in direct contact with, and transmits loads to the ground;

(31)

"Private garage" means a building whether permanent or temporary or a portion thereof designed and used for parking of private y owned mechanically propelled motor vehicles (of any description or other vehicles, in either case in private ownership);

(32)

"Public garage" means a building or portion thereof, other than a private garage, designed or used for repairing, servicing, hiring, selling or storing or parking of motor vehicles of any description or other vehicles;

(33)

["Group Housing" means housing of a number of dwelling units on an undivided plot of land, built compositely and integrally where land building and services are held under a level right jointly, buildings and services are maintained jointly and the construction is undertaken by one Agency/Authority/Individual.]

[Substituted by Notification No. F. 23(107)-95-XXXII-(1), dated 31-8-1998.]

(34)

"Habitable room" means a room occupied or designed for occupancy by one or more persons for study, living, sleeping, eating, kitchen if it is used as a living room, but not including bathrooms, water closet compartments, laundries, serving and storage pantries, corridors, attics and spaces that are not used frequently or during extended periods;

(35)

"Ledge or tand" means a shelf like projection, supported in any manner whatsoever, except by means or vertical supports within a room itself but not having projection wider than one metre.

(36)

"Licensed Architect/Structural Engineer/Engineer/Town Planner Supervisor Group" means respectively a qualified architect, Structural Engineer/Engineer/Town planner/Supervisor/group who, in each case, has been licensed as such under these rules by the Authority;

(37)

"Lift" means an appliance designed to transport persons or materials between two or more levels in a vertical or substantially vertical direction by means of a guided car platform;

(38)

"Loft" means an intermediary floor between two floors or a residual space in a pitched roof, above normal floor level which is constructed or adopted for storage purposes;

(39)

"Mezzanine Floor" means an intermediate floor, between two floors above ground level;

(40)

"Municipal Council" means the Council constituted under the Madhya Pradesh Municipalities Act, 1961 (No. 37 of 1961);

(41)

"Occupancy or Use Croup" means the principal occupancy for which a building or a part of a building is used or intended to be used, for the purposes of classification of a building according to occupancy, an occupancy shall be deemed to include subsidiary occupancies which are contingent upon it.

Explanation. - The occupancy classification shall have the meaning given as under:-

(i)

"Residential Buildings" include any building in which sleeping accommodation is provided for normal residential purposes with or without cooking or dining or both facilities. It includes one or two or multi-family dwellings, lodging or rooming houses, dormitories, apartment houses and flats and residential hotels;

(ii)

"Educational Buildings" include any building used for school, college or day-care purposes for more than eight hours per week involving assembly for instruction, education or recreation incidental to educational buildings;

(iii)

"Institutional Building" include any building or part thereof which is used for purposes such as medical or other treatment or care of persons suffering from physical or mental illness, disease or infirmity, care of infants, convalescents or aged persons and for penal or correctional detention in which the liberty of the inmates is restricted. Institutional buildings ordinarily provide sleeping accommodation for the occupants. It includes hospitals, sanatoria, custodial institutions and penal institutions like jails, prisons, mental hospitals and reformatories;

(iv)

"Assembly Building" include any building or part of a building where groups of people congregate or gather for amusement recreation, social, religious, patriotic, civil, travel and similar purposes; for example theatres, motion picture houses, assembly halls, auditoria, exhibition halls, museums, skating rinks, gymnasium, restaurants, place of worship, dance halls, club rooms, passenger stations, and terminals of air, surface and other public transportation services, recreation piers and stadia;

(v)

"Business building" means any building or part of a building which is used for transaction of business for the keeping of accounts and records for similar purposes and include doctor's service facilities, city halls, town halls, Court houses, record and references libraries, where principal function of these is transaction of public business and the keeping of books and records;

(vi)

"Mercantile building" means any building or part of a building which is used as shops, stores, markets, for display and sale of merchandise either wholesale or retail Office storage and service facilities incidental to the sale of merchandise and located in the same building shall be included under this group; .

(vii)

"Industrial Building" means any building or part of a building or structure, in which products or materials of all kinds and properties are fabricated, assembled or processed and include assembly plants, laboratories, power plants, smoke houses, refineries, gas plants, mills, dairies, factories;

(viii)

"Storage Building" means any building or part of a building used primarily for the storage or sheltering of goods, wares or merchandise and include ware houses, cold storage,, freight depots, transit sheds, store houses, public garages hangers, truck terminals, grain elevators, barns and stables;

(ix)

"Hazardous building" means any building or part of a building which is used for the storage, handling, manufacture or processing of highly combustible or explosive materials or products which are liable to burn with extreme rapidity and/or which may produce poisonous fumes or explosions, for the storage, handling, manufacturing or processing whereof involve highly corrosive, toxic or noxious alkalies acids or other liquids or chemicals producing flame, fumes and explosive, poisonous, irritant or corrosive gases; and for the storage, handling or processing of any material producing explosive mixtures of dust or which result in the division of matter into fine particles subject to spontaneous ignition;

(42)

"Occupier" includes any person for the time being/paying or liable to pay rent or any portion of the building in respect of which the ward is used, or compensation or premium on account of occupation of such building and also a rent-free tenant but does not include a lodger, and the words 'occupy' and occupation shall be construed accordingly;

(43)

"Open space" means an area forming an integral part of the plot left open to the sky;

(44)

"Front open space" means an open space across the front of a plot between the building line and the front boundary of the plot;

(45)

"Rear open space" means an open space across the rear of a plot between the rear of the building and the rear boundary of the plot,

(46)

"Side open space" means an open space across the side of the plot between the side of the building and the side boundary of the plot,

(47)

"Operational Construction" means a construction put up by Government Department for operational purposes;

(48)

"Owner" means the person who has legal title for land or building and also includes :-

(a)

an agent or trustee who receives the rent on behalf of the owner;

(b)

an agent or trustee who receives the rent of or is entrusted with or is concerned with any building devoted to religious or charitable purposes;

(c)

a receiver, executor or administrator or a manager appointed by any Court of competent jurisdiction to have the charge of or to exercise the rights of the owner; and

(d)

a mortgagee in possession;

(49)

"Parapet" means a low wall or railing built along the edge of a roof or a floor;

(50)

"Parking space" means an area enclosed or un-enclosed, covered or open, sufficient in size to part vehicles together with a driveway connecting the parking space with a street or an alley and permitting ingress and egress of the vehicle;

(51)

"Permission" means an authorisation in writing by the Authority to carry out work of development or building, and regulated by these rules, which otherwise would be unlawful;

(52)

"Plinth" means the portion of a structure between the surface of the surrounding ground and surface of the floor, immediately above the ground;

(53)

"Plinth area" means a built up covered area measured at the plinth;

(54)

"Room height" means a vertical distance measured from the finished floor surface to the finished ceiling surface. Where a finished ceiling is not provided, the underside of joints or beams or tie-beams shall determine the upper point of measurement;

(55)

"Row housing/Row type building" means a row of buildings with only front, rear and interior open spaces;

(56)

"Sanctioned plan" means the set of plans and specifications submitted under the rules in connection with a building and duly approved and sanctioned by the Authority;

(57)

"Semi-detached Building" means a building detached on three sides;

(58)

"Service lane" means a road/lane provided at the rear or side of a plot for service purposes;

(59)

"Set back line" means a line usually parallel to the plot boundaries and laid down in each case by the Authority beyond which nothing can be constructed towards the site boundaries.

(60)

"Site" means a parcel of land enclosed by definite boundaries;

(61)

"Site corner" means a site at the junctions of two or more intersecting street; 6

(62)

"Site interior or tandem" means site, access to which is by a passage from a street, whether such passage forms part of

the site or not;

(63)

"Storey" means the portion of a building included between the surface of any floor and the surface of the floor next above it, or if there be no floor above it, then the space between any floor and the ceiling next above it;

(64)

"Street" means any means of access, namely, highway, street, lane, pathway, alley, stairway, passageway, carriageway, footway, square, place or bridge, whether a thoroughfare or not, over which the public have a right of passage or access or have passage and had access uninterruptedly for a specified period whether existing or proposed in any scheme and includes all bunds, channels, ditches, storm water drains, culverts sidewalks, traffic inslands, roadside trees and hedges retaining walls, fences, barriers and railines within the street lines;

(65)

"Street level or grade" means the officially established elevation or grade of the central line of the street upon which a plot fronts and if there is no officially established grade, the existing grade of the street at its mid-point;

(66)

"Street line" means the line defines the side limits of a street;

(67)

"To erect" or "to erect a building" means-

(a)

to erect a new building on any site whether previously built upon or not;

(b)

to re-erect any building of which portions above the plinth level have been pulled down, burnt or destroyed; and

(c)

conversion from one occupancy to another;

(68)

"To abut" means to abut on a street such that any portion of the building is on the road boundary;

(69)

"Travel distance" means distance from the remotest point on a floor of a building to a place of safety, whether it is vertical exist, or a horizontal exist or an outside exist measured along the line of travel;

(70)

"Varandah" means covered area with atleast one side open to the outside with the exceptions of parapet which may be of the height of one metre on the upper floors as may be provided on the open side;

(71)

"Water Closet (WC)" means a privy with arrangement for flushing the pan with water;

(72)

"Window" means an opening to the outside than a door which provides all or part of the required natural light or ventilation or both to an interior space.

3.

Applicability of the rules.

(1)

Where land is to be developed or re-developed into sub-divisions, plots or colonies, the rules shall apply to all the modifications to the land layout.

(2)

Where a building is erected, the rules shall apply to the design and construction of the building.

(3)

Where the whole of any part of the building is demolished, the rules shall apply to all parts of the building whether removed or not.

(4)

Where the whole or any part of the building is demolished, the rules shall apply to any remaining part and to the work involved in demolition.

(5)

Where a building is altered the rules shall apply to the whole building whether existing or new except that the rules shall

apply only to part if that part is completely self contained with respect to facilities and safety measures.

(6)

Where the occupancy of a building is changed, the rules shall apply to all parts of the building affected by the change.

4.

Rules not to apply to operational construction of the Government.

(1)

Nothing in these rules shall apply to-

(i)

lands to which sub-section 4 of Section 1 of the Act applies; and

(ii)

operational constructions.

(2)

The following constructions of the Government departments shall not come within the purview of operational construction for the purposes of these rules :-

(a)

new residential buildings (other than gate-lodges, quarters for limited essential operational staff);

(b)

roads and drains in colonies, hospitals, clubs, institutions and schools.

(3)

In case of doubt as to whether any construction partakes the nature of operational constructions, the matter shall be referred to the State Government whose decision shall be final.

5.

Existing Building.

- Nothing in these rules shall require the demolition, alteration or abandonment of a building existing on the date on which the relevant provisions of these rules come into force nor prevent continuance of the use or occupancy of an existing building unless in the opinion of the Authority, such building or portion thereof constitute a hazard to the safety of the adjacent property or to the safety of the occupants of the building itself, subject to the over all limitations on restrictions provided in the Development Plan for any area.

6.

Alternative materials, methods of design and construction and tests.

(1)

The provision of these rules are not intended to prevent the use of any material or method of design on construction not specifically prescribed by these rules or the Code, provided any such alternative has been approved by the Authority.

(2)

The Authority may approve any such alternative provided it is of the opinion that the proposed alternative is satisfactory and conforms to the provisions of relevant parts regarding material, design and construction and that material, method, or work offered is, for the purpose intended, at least equivalent to that prescribed in these rules or the Code as regards quality, strength, compatibility, effectiveness, fire and water resistance, durability and safety.

(3)

Whenever there is insufficient evidence before the Authority of compliance with the provisions of these rules or the Code or evidence that any material or method of design or construction does not conform to the requirements of these rules or the Code or in order to substantiate claims for alternative materials, design or methods of construction, the Authority may require tests sufficiently in advance as proof of compliance. These tests shall be made by an approved agency at the expense of the owner.

(4)

If there are no appropriate test methods specified in these rules or the Code, the Authority shall determine the test procedure.

(5)

Copies of the results of all such tests shall be retained by the Authority for a period of not less than two years after the acceptance of the alternative materials

Part II ? Organisation and Enforcement

7.

Department of building inspection.

(1)

The Authority shall have a department of Building Inspection which shall be in the charge of an Authority. Engineer having minimum qualifications prescribed in Rule 26 for an Engineer, or Architect or Town Planner and such Authority Engineer shall, for the purpose of these rules, be designated as Building Officer. The appointment of the Building Officer shall be subject to the approval of the Director, Town and Country Planning Department of the State Government or such other officer as the Director may specify for this purpose :

Provided that two or more local authorities may be permitted by the Director to have a common Building Officer on terms and conditions mutually acceptable to such local authorities.

(2)

The Authority shall appoint suitable number of Building Inspectors and other Technical Officers having qualifications not less than those prescribed for supervisors in Rule 26 to assist the Building Officer.

8.

Power and duties of the building officer.

(1)

The Building Officer shall enforce the provisions of these rules and all lawful orders or instructions issued pursuant thereto and shall act on any question related to the mode or manner of construction, addition, alteration, repair, removal or demolition.

(2)

The Building Officer-

(i)

shall receive all applications for permission under Rule 17 and may issue permission;

(ii)

shall examine the premises for which permissions have been issued and ensure compliance with these rules;

(iii)

may as and when necessary issue all necessary notices or orders to (a) remove illegal or unsafe construction, (b) require necessary safeguards during development or construction, (c) require adequate exit facilities in existing buildings and (d) ensure compliance with all the requirements of safety, health and general welfare of the public as contained in these rules.

9.

Right of Entry.

- The Building Officer or his duly authorised representative may, after giving previous notice, enter at any reasonable time any building or premises to perform any duty imposed upon him by these rules :

Provided that,-

(i)

in the case of any building used as a dwelling house, or upon any enclosed part of garden attached to such building, no such entry shall be made except between the hours of sunrise and sunset or without giving its occupiers atleast 24 hours, notice in writing of the intention to enter;

(ii)

sufficient opportunity shall in every instance be given to enable to women (if any) to withdraw from such land or building;

(iii)

due regard shall always be had so far as may be compatible with the exigencies of the purpose for which the entry is made, to the social and religious usages of the occupants of the land or building entered.

10.

Inspection.

- The Building Officer may make or cause to be made all the required inspections or he may accept reports of inspections of authoritative and recognized services or individuals; and all reports of inspections shall be in writing and certified by a responsible officer of such authoritative service or by the responsible individual. The Building Officer may engage any such opinion as he may deem necessary to report upon unusual technical issues that may arise, subject to the approval of the Authority.

11.

Constructions not according to Plan.

(1)

If at any stage the Building Officer is of the opinion that construction is not proceeding according to the sanctioned plan or is in violation of any of the provisions of these rules or any other law for the time being in force, he shall notify the owner and thereupon all further construction not in conformity with these rules or any other law shall be stopped until correction has been effected and approved.

(2)

If the owner fails to comply with the requirements at any stage of construction, the Authority may cancel the permission for building and shall cause notice of such cancellation to be securely posted upon the said construction, if the owner is not traceable at his address given in the notice and there is no agent to receive the notice on behalf of the owner. Posting of such a notice shall be considered sufficient notification of cancellation to the owner thereof.

12.

Occupancy Violations.

- Whenever any building is being used by any person contrary to provisions of these rules, the Building Officer may by order require discontinuance of such use of such building or portion thereof. Such person shall discontinue the use within ten days of the receipt of such notice or make the building or portion thereof comply with requirements of the rules.

13.

Board of Appeal.

(1)

The Authority may appoint a Board of Appeal consisting of persons who hold or have held the civil posts of,

(i)

a District Judge or Additional District Judge or a retired officer having not less than 5 years administrative experience as Collector or Additional Collector as the Chairman.

(ii)

The Joint or Deputy Director, Town and Country Planning for the area as a member.

(iii)

A representative nominated by the Authority as a member : Provided that if any appeal involves any matter falling under clause (c) or of sub-rule (2) and the Board does not have a member having requisite qualification and experience as a Civil Engineer the Chairman may coopt an officer of State P.W.D. not below the rank of a Superintendent Engineer for hearing such appeal.

(2)

The Board of Appeal shall hear appeals arising out of the following matters against the orders of the Authority or a Building Officer :-

(a)

conditions, if any, attached to the grant of permission;

(b)

the grounds on which permission has been refused;

(c)

suitability of alternative materials or methods of design or construction.

(3)

The Board shall make regulations for conducting its investigations and lay down its own procedure which, as far as may be, shall be consistent with principles of natural justice for hearing appeals and shall render all decisions and findings in writing to the Building Officer and furnish a copy of appellate decision to the appellant and may order such modifications as it may deem necessary.

(4)

The owner or Engineer/Architect signing the plans out of which the appeal arises shall appeal to the Board within thirty days from the grant or refusal of the permission, as the case may be. The appeal shall be decided as far as may be, within sixty days of the receipt of the appeal.

Part III ? Permission and Inspection

14.

Permission for Development or for Construction.

(1)

No person shall carry out any development or erect, re-erect or make alterations or demolish any building or cause the same to be done without obtaining a prior permission in writing in this regard from the Authority :

Provided that no permission shall be required for,-

(i)

Such alteration under below mentioned heads in a building, as do not otherwise violate any provisions regarding general building requirements, structural stability and fire safety requirements of these rules,-

(a)

opening and closing of a window or door or ventilator;

(b)

providing inter-communication doors;

(c)

providing partitions;

(d)

providing false ceilings;

(e)

gardening;

(f)

white washing;

(g)

painting;

(h)

re-tiling and repairing of roof;

(i)

plastering and patch work;

(j)

re-flooring;

(k)

constructions of sun shades on one's own land;

(l)

re-erection of portions of buildings damaged by earth-quake or other natural calamities, to the same extent and specifications as existed prior to such damage;

(m)

[re-erection of portion of buildings damaged by any other calamity as may be notified by the District Collector with the previous approval of the State Government to the same extent and specification as existed prior to damage]

[Inserted by Notification No. F. II (1)-(93)-XXXII, dated 15-4-1993.]

.

(ii)

carrying out works in compliance with any order or directions made by any authority under any law for the time being in force;

(iii)

carrying out works by any authority in exercise of its powers under any law for the time being in force;

(iv)

carrying out by the Central or the State Government or any local authority any work,-

(a)

required for the maintenance or improvement of a highway, road or public street, being works carried out on land within the boundaries of such highway, road or public street;

(b)

for the purpose of inspecting, repairing or renewing any drains, sewers, mains, pipes, cables, telephone or other

apparatus including the breaking open of any street or other land for that purpose :

Provided that no work which would entail breaking open any street shall be undertaken without prior intimation to the Authority.

[Provided also that in the case of a high rise building no permission shall be given save with express clearance given by the following site clearance Committee as the case may be consisting of the following members namely:-

(A)

Site clearance committee within Municipal Corporation area

(1)

Municipal Commissioner

Chairman

(2)

Superintendent of Police or his nominee not below the rank of Deputy Superintendent of Police or City Superintendent of Police, as the case may be.

Member

(3)

Executive Engineer of PWD (B & R) nominated by the Superintending Engineer

Member

(4)

Divisional Engineer of the respective jurisdiction the Madhya Pradesh Electricity Board

Member

(5)

A representative of the Fire Authority or an officer not below the rank of Assistant Fire Officer of any Corporation in the district nominated by the Collector

Member

(6)

Joint Director/Deputy Director of the Town & Country Planning Department to be nominated by the Director, Town & Country Planning.

Member

(B)

Site Clearance Committee outside Municipal Corporation area

(1)

Collector of the District

Chairman

(2)

Chief Executive Officer of Zila Panchayat/Chief Municipal Officer of urban local body as the case may be, of the authority concerned.

Member

(3)

Superintendent of Police or his nominee not below the rank of Deputy Superintendent of Police or City Superintendent of Police, as the case may be.

Member

(4)

Executive Engineer of PWD (B & R) nominated by the Superintending Engineer.

Member

(5)

Divisional Engineer of the respective jurisdiction of the Madhya Pradesh Electricity Board.

Member

(6)

A representative of the Fire Authority or an Officer not below the rank of Assistant Fire Officer of any Corporation in the district nominated by the Collector.

Member

(7)

Joint Director/Deputy Director of the Town & Country Planning Department to be nominated by the Director, Town & Country Planning.

Member Secretary]

[Substituted by Notification No. F-23(107)-95-XXXII(1), dated 7th April, 2000.]

(v)

the erection (including wells) made in the ordinary course of agricultural operation;

(vi)

the construction of a road intended to give access to land solely for agricultural purposes;

(vii)

the normal use of land which has been used temporarily for other purposes like marriage pandals, or for festive occasions; and

(viii)

in case of land, normally used for no purpose or occasionally used for any purpose, the use of land for the other purpose or occasions, not involving permanent diversion or diversion for substantial period.

(2)

Permission for development and in addition a permission for building shall be necessary for commencement of building activities involving development of land as a composite building scheme.

(3)

For construction for ground floor tenements with walls of non-combustible material on plots not exceeding 50 square metres in site and service schemes on plinth of 30 centimetres above ground level and with a living room of not less than 7.5 square metres, no building permission shall be required.

15.

Development/Building permit issued prior to these Rules.

- Any permission, sanction or approval given, order passed or any action taken or anything done in respect of the matters covered by these rules under any law or rule in force immediately before the commencement of these rules shall be governed in accordance with the provisions of law or rule under which such sanction or approval was given, order was passed or any action was taken or anything was done, as if these rules have not come into force.

16.

[Application for permission for Development or for Building. [[Substituted by Notification No. F-3-127-XXXII-98, dated 3-2-2001 old Rule 16 runs as under:

16. Application for permission for development or for Building. - Every person who intends to develop, erect, re-erect or make alterations in any place in a building shall give notice in writing to the Authority of his intention in the form given in Appendix 'A' and such notice shall be accompanied by plans and statements in quadruplicate. The plans may be in ordinary prints on farro paper or any other type. One set of such plans shall be cloth mounted which shall be retained in the office of the Authority for record after the issue of permit or a refusal.

The application shall be accompanied by documents, [***], showing proof of ownership or of any legal right in relation to the site.]]

- Every person who intends to develop, erect, re-erect or make alterations in any place in a building shall give notice in writing to the Authority of his intention in the form given in Appendix "A" and such notice shall be accompanied by plans

and statements in quadruplicate. The plans may be in ordinary prints on farro paper or any other type. One set of such plans shall be cloth mounted which shall be retained in the office of the Authority for record after the issue of permit or a refusal. The application shall be accompanied by documents, if any, showing proof of ownership or of any legal right in relation to the site.

The application shall also be accompanied by a certificate duly signed by Structural Engineer/Architect of the building ensuring all the provisions of Rule 84 (for Earthquake prone areas) of this Niyam.]

17.

(1)

Information Accompanying Notice.

- The notice shall be accompanied with the key plan, site plan, building plan, service plan, specifications, certificate of supervision and ownership title as prescribed in sub-rules (2) to (12).

(2)

Drawing sheet Sizes :-

(a)

The size of drawing sheets shall be any of those specified in Table 1.

Table 1

Drawing Sheet Sizes

[Rule 17 (2)(a)]

S.No.

Designation

Trimmed sized mm.

Untrimmed size mm.

(1)

(2)

(3)

(4)

1.

A0

841 X 1,189

980 X 1,230

2.

A1

594 X 841

625 X 880

3.

A2

420 X 594

450 X 625

4.

A3

297 X 420

330 X 450

5.

A4

210 X 297

240 X 330

6.

A5

148 X 210

165 X 240

(b)

Recommended Notation for Colouring Plans. - The plans shall be coloured as specified in Table-2.

Table 2

Colouring Plans

[Rule 17 (2)(b)]

Sl. No.

Item

Site plan

Building Plan

White plan

Blue print

Ammonia Print

White plan

Blue Print

Ammonia Print

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

1.

Plot lines

Thick Black

Thick Black

Thick Black

Thick Black

Thick Black

Thick Black

2.

Existing street

Green

Green

Green

3.

Future street, if any

Green dotted

Green dotted

Green dotted

4.

Permissible building lines

Thick dotted black

Thick dotted black

Thick dotted black

5.

Open spaces

No Colour

No Colour

No Colour

No Colour

No Colour

No Colour

6.

Existing work

Black (out line)

White

Blue

Black

White

Blue

7.

Work proposed to be demolished

Yellow hatched

Yellow hatched

Yellow hatched

Yellow hatched

Yellow hatched

Yellow hatched

8.

Proposed work (See Note 1)

Red filled in

Red

Red

Red

Red

Red

9.

Drainage and Sewerage work

Red dotted

Red dotted

Red dotted

Red dotted

Red dotted

Red dotted

10.

Water supply work

Black dotted thin

Black dotted thin

Black dotted thin

Black dotted thin

Black dotted thin

Black dotted thin

Note 1. - For entirely new construction this need not be done. For extension of an existing work this shall apply.

Note 2. - For land development, sub-division, layout, suitable colouring notations shall be used which shall be indexed.

(3)

Key Plan. - A key plan drawn to a scale of not less than 1 in 10,000 shall be submitted along with the application for permission for a development/building showing the boundary locations of the site with respect to neighbourhood landmarks. The minimum dimension of the key plan shall be not less than 75 mm.

(4)

Site Plan. - The site plan sent with an application for permit shall be drawn to a scale of not less than 1 in 1000 for site up to ten hectares and not less than 1 in 2000 for a site more than ten hectares and shall show :-

- (a) the boundaries of the site with dimensions and of any contiguous land belonging to the applicant indicating Khasra number or any other equivalent local denominations and in case the contiguous land owned by the applicant had been sub-divided earlier, public facilities provided in it and all streets within it opening out in the site for which the permission is being sought;
 - (b) the position of the site in relation to neighbouring street;
 - (c) the name of the street in which the building is proposed to be situated, if any;
 - (d) all existing buildings standing on, over or under the site including service lines;
 - (e) the position of the building, and of all other buildings (if any) which the applicant intends to erect upon his contiguous land referred to in (a) in relation to,-
 - (i) the boundaries of the site and in case where the site has been partitioned, the boundaries of the portion owned by the applicant and also of the portions owned by others;
 - (ii) all adjacent streets, buildings (with number of storeys and height) and premises within a distance of 12 m of the site and of the contiguous land (if any) referred to in (a); and
 - (iii) if there is no street within a distance of 12 m of the site, the nearest existing street;
 - (f) the means of access from the street to the building, and to all other buildings (if any) which the applicant intends to erect upon his contiguous land referred to in (a);
 - (g) space to be left about the building to secure a free circulation of air, admission of light and access for scavenging purposes;
 - (h) the width of the street (if any) in front and of the street (if any) at the side or near the buildings;
 - (i) the direction of north point relative to the plan of the buildings;
 - (j) the position of all existing features like high tension line, telegraph and electrical poles, underground pipe lines, trees, grave yards, religious buildings, railway lines, etc. within a distance of 30 metres from the nearest edge of the site, all major physical features of land proposed to be developed which include the approximate location and size of any water body, flood affected areas and contours at an interval of 0.3 metres, in case of the site which has a slope more than 1 in 20;
 - (k) present and proposed use of the land; and
 - (l) such other particulars as may be prescribed by the Authority.
- (5) Sub-Division/Layout Plan. - In the case of development work, the notice shall be accompanied by the sub-division/layout plan which shall be drawn on a scale of not less than 1 : 500 containing the following :-
- (a) scale used and north point;
 - (b) the location of all proposed and existing roads with their existing/proposed/prescribed width within the land;
 - (c) dimensions of plot alongwith building lines showing the setbacks with dimensions within each plot;

- (d)
the location of drains, sewers, public facilities and services, and electrical lines, etc.
- (e)
table indicating size, area and use of all the plots in the sub-division/layout plan;
- (f)
a statement indicating the total area of the site, area utilized under roads, open spaces for parks, play-grounds, recreation spaces and development plan reservations, schools, shopping and other public places alongwith their percentage with reference to the total area of the site proposed to be subdivided; and
- (g)
in case of plots which are sub-divided in built-up areas in addition to the above, the means of access to the sub-division from existing streets.
- (6)
Building Plan. - (i) The plan of the buildings and elevations and sections accompanying the notice shall be drawn to a scale of 1 : 100. The plan shall-
 - (a)
include floor plans of all floors together with the covered area clearly indicating the size and spacings of all framing members and sizes of rooms and the position of staircases, ramps and liftwells;
 - (b)
show the use of occupancy of all parts of the building;
 - (c)
show exact locations of essential services, for example, water closet, sink, bath including the water supply and drainage line;
 - (d)
include sectional drawing showing clearly the sizes of footings, thickness of basement wall, wall construction, size and spacing of framing members, floor slabs and roof slabs with their materials and size and locations of doors, windows and other openings. The section shall indicate the heights of buildings and rooms and also the height of the parapets; and the drainage and the slope of the roof. At least one section should be taken through the staircase;
 - (e)
schedule showing calculations and designs in respect of RCC work, if any, involving structural engineering such as roof, slabs, columns, frame etc.;
 - (f)
show all street elevations;
 - (g)
indicate details of served privy, if any;
 - (h)
give dimensions of the projected portions beyond the permissible building line;
 - (i)
include terrace plan indicating the drainage and the slope of the roof;
 - (j)
give indications of the north point relative to the plan, and the scale used;
 - (k)
schedule of built up area floor-wise, F.A.R., proposed schedule of set backs and coverage; and
 - (l)
for commercial building, indicate the placement and size of display boards;
- (ii)
[Building Plan for high rise/special Building]
[Substituted by Notification No. 4343-HP-XXXII-88, dated 12-8-88, for the words 'Building plan for Multi storeyed/Special Buildings'.]
. - [For high rise buildings]
[Substituted by Notification No. 4343-HP-XXXII-88, dated 12-8-88, for the words 'For multi storeyed buildings which are more than 15 m in height'.]

and for special buildings like educational assembly, institutional, industrial, storage and hazardous and mixed occupancies with any of the aforesaid occupancies having area more than 500 square metres the following additional information shall be furnished or indicated in the Building Plan in addition to the items given in item (i) above as applicable-

- (a) access to fire appliances/vehicles with details of vehicular turning circle and clear motorable accessway around the buildings;
- (b) size (width) of main and alternate staircases along with balcony approach, corridor, ventilated lobby approach,
- (c) location and details of lift enclosures;
- (d) location and size of fire lift;
- (e) smoke stop lobby/door, where provided;
- (f) refuse chutes, refuse chamber, service duct;
- (g) vehicular parking spaces;
- (h) refuse area, if any;
- (i) details of building services-Air-conditioning system with position of fire dampers, mechanical ventilation system, electrical services, boilers, gas pipes;
- (j) details of exits including provision of ramps, etc. for hospitals and special risks;
- (k) location of generator, transformer and switch gear room;
- (l) smoke exhaust system, if any;
- (m) details of fire alarm system net work;
- (n) location of centralized control, connecting all fire alarm systems, built-in-fire protection arrangements and public address system etc.;
- (o) location and dimensions of static water storage tank and pump room along with fire service inlets for mobile pump and water storage tank;
- (p) location and details of fixed fire protection installations such as sprinklers, wet risers hose-reels, drenchers, carbon-dioxide installations; and
- (q) location and details of first aid fire fighting equipments or installations.

(iii) [in respect of high rise buildings, the following additional information shall be given in addition to the information accompanying the notice, that is to say-

[Inserted by Notification No. 4343-HP-XXXII-88, dated 12-8-88.]

- (a) Urban Planning :
 - Land use as per Master Plan
 - Land use as per Zonal Plan (if any)

- Land use as per Layout Plan (if any)
- Proposed density.

(b)

Traffic Planning :

- Width of existing road.
- Width of proposed road.
- Provision of service road.
- A comprehensive circulation plan of the plot and of its adjoining areas.
- Arrangements for parking vehicles.

(c)

Fire prevention, fighting and protection Planning:

- Details of fire detection and fire fighting arrangements,

(d)

Planning of Services :

- Internal water, sewerage, drainage, power, tele-communication, garbage disposal and scavenging of common spaces.
- Peripheral water, sewerage, drainage and power.
- Trunk water, sewerage, drainage, power, tele-communication and garbage disposal.

(e)

Architecture:-

- Plans of each floor.
- Necessary number of cross-sections.
- Elevations of each sides.
- Details of toilet blocks and kitchen.
- Details of landscaping from Electric poles, Telephone poles.
- Systems of power connections from Electric poles, Telephone poles, Dust bins numbering parking of different vehicles, covering of drains, over-head tanks, underground water tank, tree plantation and landscaping.]

(7)

Service Plan. - Plans, elevations and sections of private water supply and sewage disposal system, if any, shall also be included. In case of, building having more than three stories, elevation and scheme of the services shall also be included.

(8)

Specification. - (i) Specifications both general and detailed, giving type and grade of materials to be used, duly signed by the licensed architect, structural engineer, engineer, supervisor or town planner, as the case may be, shall accompany the notice.

(ii)

Every application for permission for sub-division of land shall also be accompanied by the following statements :-

(a)

a statement containing general specifications of all improvements proposed to be made within the area e.g., grading and paving of roads and lanes, provisions of gutters, side drains, provision for sufficient, safe and assured water supply, arrangement of sewage disposal, street lighting and development of parks and play-fields and public utility;

(b)

the purpose for which the land is to be used and particulars of proposed distribution of land under different uses;

(c)

general specifications of the material to be used, estimated cost of the proposed development of the area; and

(d)

any other statement required by the Authority.

(9)

Supervision. - The notice shall be further accompanied by a certificate in form in Appendix B by the licensed architect, structural engineer, engineer, supervisor or town planner, as the case may be, undertaking the supervision.

[(10) Certificate of structural design. - In high rise buildings, a certificate about structural stability duly signed by a structural engineer alongwith all relevant calculations shall accompany the notice.]

[Sub-rule (10) Substituted by Notification No. 4343-HP-XXXII-88, dated 12-8-88.]

(11)

Proof of title etc. - Every notice shall be accompanied by the following as evidence of applicant's right, title or interest in the land or plot, namely :-

(a)

attested copy of the original sale deed, lease deed, or any other document under which right, title or interest in land or plot is claimed;

(b)

attested copy of the Khashra plan and Khatauni record, if any; or

(i)

[attested copy of No objection Certificate from Nazul (Provided that in case the No Objection Certificate for the entire approved layout has been taken from the concerned Nazul authority, Individual plot owners in the layout shall not be required to submit Individual No Objection Certificates from the Nazul authority :

[Inserted by Notification No. F. 23 (107)-95-XXXII-(1), dated 31-8-1998.]

(Provided also that No objection Certificate from the concerned Nazul authority shall be required only for the first application to erect, re-erect or construct a building. In no case shall a No Objection Certificate from the concerned Nazul authority for construction of the upper floors be required if the Ground floor has already been approved earlier by the Authority).]

(c)

other documents acceptable to the Authority.

In case of lease hold plots, the lessee shall have to prove that he is entitled to construct on the lease hold plot.

(12)

For buildings which need the approval of the Art Commission under Rule 36, such approval shall accompany the notice.

(13)

[In any area designated in the development plan for agricultural use, forest houses shall be permissible subject to the following conditions and such other conditions as may be imposed by the authority :-

(i)

Minimum size of the plot shall be 4045 sqm (one acre.)

(ii)

Maximum F.A.R. shall be 0.10.

(iii)

The maximum height of structure shall be 6.5 meters with sloping roof.

(iv)

The Forest House shall have a minimum of 200 live trees per acre to be planted before the application for building constructions is made to the Authority for approval.

(v)

The Forest House shall only be permitted on that land which is accessible by public passage/road, OR the area layout plan approved by the Director.

(vi)

The Forest House shall have a minimum 10 metres set back from all sides.]

18.

Preparation and signing of plans.

- The licensed architect, structural engineer, engineer, supervisor or town planner, as the case may be, shall prepare and duly sign all plans and shall indicate his name, address, qualifications and licence number as allotted by the Authority. The plans shall also be duly signed by the owner indicating his address. The type of buildings to be undertaken by the licensed professionals shall be as given in Rule 26.

19.

Notice for alteration only.

- When the notice is only for an alteration of the building, only such plans and statements, as may be necessary, shall accompany the notice.

20.

Notice for land adjoining the Government property.

- In case of a notice of intention to erect, re-erect or make alteration in a building or to make or enlarge any structure abutting on property maintained by Public Works Department, Military or other Government Departments, the notice and plan shall be in sufficient numbers to enable the Authority to forward one set each to the appropriate department for report before the permission is granted. The government department shall report to the authority within two weeks from the date of the receipt of the notice and plans whether or not they have any objection to the proposed construction, and give brief reasons for objection, if any. If no reply is received within two weeks or within such further period as may be extended by the Authority, from the Government Department, the authority shall be free to consider the question of sanctioning the plan.

21.

Fees.

- (1) Validity of Notice subject to payment of Fees. - No notice as referred to in Rule 16 shall be deemed valid unless the person giving notice has paid the fees for the time being in force to the Authority and an attested copy of the receipt of such payment is attached with the notice.

(2)

Fees not Refundable. - In case permission for building or development is not issued for any objection or defect the fees so paid shall not be refunded to the applicant, but he shall be allowed to re-submit it without any fees after complying with all the objections raised or after removing the defect within a period of one year from the date of rejection after which fresh fees shall have to be paid for such permission.

(3)

Scale of Fees. - The scale of fee shall be as under. -

(a)

For permission for development-

(i)

for development of area upto 1 hectare.

Rs. 500.00

(ii)

for development of area exceeding 1 hectare but not exceeding 2.5 hectares.

Rs. 1000.00

(iii)

for development of area exceeding 2.5 hectares but not exceeding 5 hectares.

Rs. 1500.00

(iv)

for development of area exceeding 5 hectares, for every 5 hectares or part there of, additional fee at.

Rs. 500.00

(b)

For permission for buildings other than high rise buildings

Item No.

Type of Construction

Built up area

Fees chargeable in rupees

Sq. meter to

Sq. metre

(1)

(2)

(3)

(4)

(5)

1.
A building intended to be exclusively for residence.
0761262013014016017511001125115012001above
2500
7512520030040060075010001250150020002500
200.00350.00600.00900.001200.002000.002500.003500.005000.007000.0010000.0015000.0025000.00
2.
A building intended to be used as shop, store house, factory or for carrying on trade or business or any other commercial or industrial purpose.
Fee specified in item No. 1 together with an additional charge of 50% of such amount of fees, except that for a built up area above 2500 square metres the fees chargeable shall be Rs. 40,000/-.
3.
A building intended to be used as administrative block in a factory.
Fees as prescribed in item No. 1.
4.
A building intended to be used for shop-cum-residence purposes.
Fees specified in item No. 1 together with an additional charge of 50% of such amount of fees.
5.
A building intended to be used as Cinema theatre.
Upto 800 seating capacity, Rs. 15,000.00Above 800 seating capacity Rs. 25,000.00
6.
A building intended to be used for any social charitable, cultural, educational purposes, Dharamshala and similar types of buildings and for any other purposes not specifically provided for.
50% of fees specified in item No. 4.
7.
Addition or alteration with built up area or external addition or alteration which does not add to the built up area such as Court yard compound wall, alteration in elevation or roofing such as tiles to A.C. Sheet or flat surface, additional opening or closing not covered by provision to sub rule (1) of Rule 14.
Rs. 50.00 in each case of building mentioned in item Nos. 1,3 and 6.Rs. 200.00 in each case of building mentioned in item Nos. 2, 4 and 5.
8.
In case of addition or alteration in the proposed plan:
Up to 5%Above 5% and up to 10%Above 10%
NilRs. 50.00Fresh application according to the rules shall be necessary
9.
Revalidation of the building permission.
10% of the amount of fees charged originally in respect of the building concerned.

(c)
For permission for high-rise buildings.
Item No.
Type of construction
Fees chargeable in rupees.

1.
A building intended to be exclusively for residence.
Rs. 10.00 per Sq. Mtr. floor area space.

2.
A building intended to be used as shops, store house, factory or for carrying on trade or business or any other commercial or industrial purpose.
Fees as prescribed in Item No. 1 with additional charges of 100% of amount of fees.

3.
A building intended to be used as administrative block in a factory.
Fees as prescribed in Item No. 1.

4.
A building intended to be used for shop-cum-residence purposes.
Fees specified in Item No. 1 together with additional charges of 50% of such amount of fees.

5.
A building intended to be used for any special, charitable, cultural, educational purposes including hospital, school, club, Dharamshala and similar types of buildings and for any other purpose not specifically provided for.
50% of fees specified for Item No. 1.
[Inserted by Notification No. F. 23 (107)-95-XXXII-(1), dated 31-8-1998.]
Clause (b) & (c) Substituted by Notification No. F. 23 (107)-95-XXXII (1), dated 31-8-1998.
Legislative Changes and Previous Position
Clauses (b) and (c) before substitution were as under:-
"(b) For permission for buildings other than high rise building.
{
Item No.
Type of Construction
Built up area
Fees chargeable in rupees
Sq. meter to
Sq. metre
(1)
(2)
(3)
(4)
(5)
1.
A building intended to be exclusively for residence.
0761262013014016017511001125115012001above
2500
7512520030040060075010001250150020002500

100.00200.00300.00450.00700.001000.001500.002500.003000.004000.005000.006500.008500.00

2.

A building intended to be used as shop, store house, factory or for carrying on trade or business or any other commercial or industrial purpose.

Fee specified in item No. 1 together with an additional charge of 50% of such amount of fees, except that for a built up area above 2500 square metres the fees chargeable shall be Rs.

15,000/-

3.

A building intended to be used as administrative block in a factory.

Fees as prescribed in item No. 1.

4.

A building intended to be used for shop-cum-residence purposes.

Fees specified in item No. 1 together with an additional charge of 25 of such amount of fees.

5.

A building intended to be used as Cinema theatre.

0 to 800 seating capacity, Rs. 4,000.00800 and above seating capacity Rs. 7,500.00

6.

A building intended to be used for any social charitable, cultural, educational purposes, including for Hospital, School, Club, Dharamshala and similar types of buildings and for any other purposes not specifically provided for.

50% of fees specified in item No. 1.

7.

Addition or alteration with built up area or external addition or alteration which does not add to the built up area such as Court yard compound wall, alteration in elevation or roofing such as tiles to A.C. Sheet or flat surface, additional opening or closing not covered by provision to sub rule (1) of Rule 14.

Rs. 25.00 in each case of building mentioned in item Nos. 1,3 and 6.Rs. 100.00 in each case of building mentioned in item Nos. 2, 4 and 5.

8.

In case of addition or alteration in the proposed plan:

Up to 5%Above 5% and up to 10%Above 10%

NilRs. 50.00Fresh application according to the rules shall be necessary

9.

Revalidation of the building permission.

5% of the amount of fees charged originally in respect of the building concerned.

(c)

For permission for high-rise buildings.

Item No.

Type of construction

Fees chargeable in rupees.

1.

A building intended to be exclusively for residence.

Rs. 5.00 per Sq. Mtr. floor area space.

2.

A building intended to be used as shops, store, house, factory or for carrying on trade or business or any other commercial or industrial purpose.

Fees as prescribed in Item No. 1 with additional charges of 100% of amount of fees.

3.

A building intended to be used as administrative block in a factory.

Fees as prescribed in Item No. 1.

4.

A building intended to be used for shop-cum-residence purposes.

Fees specified in Item No. 1 together with additional charges of 25% of such amount of fees.

5.

A building intended to be used for any social, charitable, cultural, educational purposes including hospital, school, club, Dharamshala and similar types of buildings and for any other purpose not specifically provided for.

50% of fees specified for Item No. 1.

l}

[(4) Standard Plan Permission. - Each Authority shall keep a set of approved standard building plans for plot sizes upto 150 square meters for various area in the city. In case the owner of a plot upto 150 Sq.M. plot area in an approved and authorised layout wishes to construct his residence as per one of the standard approved plans available with the Authority, he may apply to the Authority in the prescribed format and indicating his choice of the standard approved plan along with the requisite fees and his ownership documents. The receipt of payment received from the Authority in such case shall be considered as authorised building permission, provided that in case a plot is not part of an approved and authorised layout, prior planning permission under Section 29 of the Act shall be necessary.]

[Added by Notification No. F.23 (107) 95-XXXII(1), dated 31-8-1998.]

22.

Withdrawal of application.

- The owner may withdraw his application and plans at any time before sanction and such withdrawal shall terminate all proceedings with respect to such application. In the event of submission of a fresh application within a period of one year from the date of such withdrawal, the fee paid shall be adjusted toward fee payable for fresh application. In no case the fee once paid shall be refunded.

23.

[Duration of sanction.

[Substituted by Notification No. F.23 (107)-95-XXXII (1), dated 7th April, 2000.]

- The sanction once accorded shall remain valid upto three years. The permission shall be got revalidated before the expiration of this period. Such revalidation may be permitted for two consecutive terms of one year each, after which proposals shall have to be submitted afresh.]

24.

[Deviation during construction.

[Substituted by Notification No. F.23 (107)-95-XXXII (1), dated 7th April, 2000.]

- If during the construction of a building any departure [excepting for items as given in clause (i) of proviso to sub-rule (1) of Rule 14] from the sanctioned plan is made the authority may permit such deviations at the time of issuing of occupancy permit, but no deviation shall be permitted by the Authority relating to the following building control

parameters:-

(a)

Front M.O.S.

(b)

Building Height

(c)

Parking/Public utility space.]

25.

Revocation of Permission.

- The Authority may revoke any permission issued under the provisions of these rules wherever there has been any false statement or any misrepresentation of any material fact in the application on which the permission was based.

26.

Licensing of Architect/Engineer etc.

(1)

The Authority may issue licences in form given in Appendix C to Architects, Structural Engineers, Engineers, Supervisors and Town Planners, who possess the minimum qualifications as laid down in sub-rule (2).

(2)

The minimum qualification prescribed for the issue of licence to an Architect, Engineer etc. is given in column 2 against each-

Designation

Minimum Qualification

1.

Architect

Architects registered under the Architects Act, 1972.

2.

Structural Engineer

Graduate in Civil Engineering of recognised Indian or Foreign University and Chartered Engineer or Associate Member in Civil Engineering Division of Institution of Engineers (India) or equivalent Overseas Institution with three years experience in structural engineering practice with designing and field work:

Provided that the three years experience shall be relaxed to-

(a) two years in case of postgraduate degree of recognised Indian or Foreign University with branch of Structural

Engineering;

(b) one year in case of Doctorate in Structural Engineering.

3.

Engineer

The Corporate Membership (Civil) of the Institution of Engineers (India) or such Degree or Diploma in Civil, Municipal or Structural Engineering which makes him eligible for such membership.

4.

Supervisor

The qualification in Architecture or Engineering equivalent to the minimum qualification prescribed for direct recruitment to non-gazetted service as Architectural assistant or sub engineer by the Government of India or the State Government with 5 years experience in building design, construction and supervision.

OR

3 years Diploma in Engineering (Civil) or in Architecture from recognised Board with 5 years experience in building design, construction and supervision.

5.

Town Planner

Associate Membership of the Institute of Town Planner or Post-Graduate Degree or Diploma in Town and Country Planning which makes him eligible for such membership or recognised by the State Government for the post of Assistant Director Town Planning holding a degree in Architecture or Civil Engineering or equivalent thereto:

Provided that no person who immediately before the coming into force of these rules, in any area, was holding a licence from any municipal corporation/municipal council for carrying out any work which is now in this rule included within the competence of a supervisor shall be refused a licence to work as supervisor merely on the ground of qualification prescribed in the rule.

(3)

Any person desirous of getting a licence under this rule shall apply to the Authority with attested copies of-

(i)

certificates on which the claim is based; and

(ii)

receipt in token of payment of licence fee.

(4)

The Authority granting a licence shall maintain a register giving therein the details of the person to whom licence is issued or renewed.

(5)

The licence shall be valid for period of one year and renewable for the like period.

(6)

[Fee. - The annual fee for grant of licence shall be as under:-

(i)

For Architect, Structural Engineer, Engineer & Town Planner

Rs. 500.00

(ii)

For Supervisor

Rs. 250.00

(iii)

For a Group or Agency

Rs. 1250.00]

[[Substituted by Notification No. F. 3-127-XXXII-98, dated 3-2-2001 old sub-rule (6) runs as under:

(6)

Fee. - The annual fee for grant of licence shall be as under:-

(i)

For Architect, Structural Engineer, Engineer & Town Planner - Rs. 100.00

(ii)

For Supervisor - Rs. 50 00

(iii)

For Group or Agency - Rs. 250.0.]]

(7)

A licence may be renewed for similar period after the expiry of the period of the original licence on payment of fee prescribed in sub-rule (6).

(8)

Competence of the licensee. - A licensee shall work in accordance with the terms of his licence.

(9)

A licensed Architect/Structural Engineer/Engineer/Supervisor/Town Planner shall be competent to perform the duties indicated under each:-

(A)

Architect. - Competence. - The licensed Architect shall be competent to carryout the work related to the permission for building and shall be entitled to submit :

(a)

[all plans and information connected with permission for all buildings irrespective of size and height;]

[Substituted by Notification No. F. 23(107)-95-XXXII-(1), dated 31-8-1998.]

(b)

structural details and calculations for residential buildings on plot up to 500 square metres and up to three storeys or 11 metres in height;

(c)

certificate of supervision and completion of all buildings;

(d)

all plans and related information connected with permission for development of area up to 1 hectare; and

(e)

certificate of supervision for development of land area up to 1 hectare.

(B)

Structural Engineer. - Competence. - The licensed Structural Engineer shall be competent to carry out the work relating to permission of building etc. and shall be entitled to submit :

(a)

[all plans and information connection with permission for residential buildings on plot upto 500 sqm. and upto three storeys or 11 m in height;]

[Substituted by Notification No. F. 23(107)-95-XXXII-(1), dated 31-8-1998.]

(b)

the structural details and calculation for all buildings;

(c)

certificate of supervision and completion of all buildings;

(d)

all plans and related information connected with permission for development of area up to one hectare;

(e)

certificates of supervision for development of land are up to one hectare.

(C)

Engineer. - Competence. - The licensed engineer shall be competent to carry out the work related to the permission for building as given below and shall be entitled to submit :

(a)

[all plans and information connected with residential buildings on plot upto 300 sqm. and upto two storeys or 7.5 m in height;]

[Substituted by Notification No. F. 23(107)-95-XXXII-(1), dated 31-8-1998.]

(b)

structural details and calculation for all buildings up to 500 square metres and four storeys (15m);

(c)

certificate of supervision and completion for all buildings;

(d)

all plans and related information connected with permission for development of area up to 1 hectare; and

(e)

certificate of supervision for development of land of area up to 1 hectare.

(D)

Supervisor-Competence. - The licensed Supervisor shall be entitled to submit :

(a)

all plans and related information connected with the permission for residential buildings up to 200 square metres and up to two storeys or 7.5 metres height;

(b)

certificate of supervision for buildings in (a).

(E)

Town Planner-Competence. - The licensed Town Planner shall be entitled to submit :

(a)

all plans and related information connected with permission for development of all areas;

(b)

certificate of supervision for development of land of all areas.

(F)

Group or Agency. - When an agency or a group of qualified architects, engineers, town planners is practising, then the qualification and competence of work shall be the combination of the individual qualifications and competence.

27.

Grant of permission or refusal.

(1)

The Authority may either sanction or refuse the plans and specification or may sanction them with such modifications or directions as it may deem necessary and thereupon shall communicate its decision to the person giving the notice (See Appendix X).

(2)

In case of proposal for development work, if in the opinion of the Authority, the layouts of plots, or alignment of the street or accessway is not adopted to or would detrimentally affect the layout or development of adjoining lands, the Authority shall require the applicant to alter the layout as deemed necessary. The details of layout of roads of quality not less than 150 mm. W.B.M. Road, laying of water supply drainage lines to meet the requirement of water supply and sewage affluent of the population to the level of the municipal main, as decided by the Authority shall be furnished to the entire satisfaction of the Authority or the owner may deposit an amount equal to the expenses for such development, as estimated by the Authority.

28.

Limitation period for grant or refusal of permission.

- If within period prescribed in sub-section (5) of Section 30 of the Act, the Authority fails to intimate in writing to the person, who has given the notice, of its refusal or sanction, the notice with its plans and statements shall be deemed to have been sanctioned. Subject to the condition mentioned in this rule, nothing shall be construed to authorise any person to do anything in contravention of or against the terms of lease or titles of the land or against any other law operating on the site of the work.

29.

Reasons to be given when permission refused.

- In the case of refusal, the Authority shall give the reasons and relevant provisions of the rule which the plans contravene. The Authority shall as far as possible advise all the objections to the plans and specifications in the first instance itself and ensure that no new objections are raised when they are resubmitted after compliance of earlier objections.

30.

Owner to resubmit plan complying with objections.

- Once the plan has been scrutinised and objections have been pointed out, the owner or person giving notice shall modify the plan to comply with the objections raised and resubmit it. The Authority shall scrutinise the re-submitted plan and if there be further objections, the plan shall be rejected.

31.

Responsibilities and duties of the owner.

(1)

Neither the granting of the permit nor the approval of drawings and specifications, nor inspections made by the Authority during erection of the building shall in any way relieve the owner of such building from full responsibility for carrying out the work in accordance with the requirements of these rules.

(2)

Every owner shall-

(a)

permit the Authority or person authorised by it or the Building Officer or person duly authorised by him to enter the building or premises for which the permit has been granted at any reasonable time for the purpose of ensuring the compliance of these rules;

(b)

submit a document of ownership of or right or interest in relation to the site;

(c)

obtain, where applicable, from the Authority, permission relating to building, zoning, grades, sewers, water-mains, plumbing, signs, blasting, street, occupancy, electricity, highways, and all other permissions required in connection with the proposed work;

(d)

give notice to the Authority of the intention to start work on the building site (See Appendix E);

(e)

give notice in writing to the Building Officer to arrange inspection when the work reaches plinth level (See Appendix F);

(f)

give written notice to the Authority regarding completion of work described in the permission (See Appendix G); and

(g)

obtain permission for occupancy (See Appendix H) from the Authority prior to any :

(i)

occupancy of the building or part thereof after construction or alteration of that building or part; or

(ii)

change in the class of occupancy of any building or part thereof.

(h)

[Upon the request of the owner, the authority will issue occupancy certificate of the building within 30 days from the receipt of such request. If such permission is not issued within 30 days from receipt of the application or suitable instructions for changes have not been issued by the authority within the period it would be deemed that the occupancy permission has been issued as per clause (g).]

[Inserted by Notification No. F. 23(107)-95-XXXII-(1), dated 7th April, 2000.]

(3)

[In case of owner failing in fulfilling the responsibilities and duties, the building officer will take action as per the relevant provisions of Madhya Pradesh Municipal Corporation Act, 1956 (

No. 23 of 1956

) and Madhya Pradesh Municipalities Act, 1961 (No. 37 of 1961).]

[Inserted by Notification No. F. 23(107)-95-XXXII-(1), dated 7th April, 2000.]

32.

[x x x]

[Omitted by Notification No. 4343-HP-XXXII-88, dated 12-8-88.]

33.

Documents at site.

(1)

Where tests of any materials are made to ensure conformity with the requirements of these rules, records of the test data shall be kept available for inspection during the construction of the building and for such period thereafter as required by the Authority.

(2)

The person to whom a permission is issued shall during construction keep-

(a)

posted in conspicuous place on the property in respect of which the permission was issued, a copy of the permission for building and/or development, as the case may be; and

(b)

a copy of the approved drawings and specifications referred to in Rule 17 on the property in respect of which the permission was issued.

34.

Inspection.

(1)

Generally all construction or work for which permission is required shall be subject to inspection by the Authority and certain types of constructions involving unusual hazards or requiring constant inspection shall have continuous inspection by special inspectors appointed by the Authority.

(2)

Inspection, where required, shall be made within 7 days following the receipt of notice after which period the owner shall be free to continue the construction according to the sanctioned plan. At the first inspection, the Authority shall determine to the best of its ability that the building has been located in accordance with the approved site plans. The final inspection of the completion of the work shall be made within 21 days following the receipt of notice.

(3)

When inspection of any construction operation reveals that any lack of safety precautions exist, the Authority shall have right to direct the owner to stop the work immediately until the necessary remedial measures to remove the violation of safety precautions are taken.

35.

Demolition of Building.

- Before a building is demolished, the owner shall notify all utilities having service connections within the building, such as water, electric, gas, sewer and other connections. A permission to demolish a building shall not be issued until a release is obtained from the utilities stating that their respective service connections and appurtenant equipment, such as metres and regulators have been removed or sealed and plugged in a safe manner.

36.

Architectural control.

(1)

Compliance with the previous provisions of these rules is adequate for normal buildings. But for major public building complexes or buildings coming up in an important area or monumental buildings in cities, the aesthetics of the whole scheme may also have to be examined, vis-a-vis existing structures. In addition, any development which may mar the general characteristics and environment of historical, architectural or other monuments should also be subject to the provisions of this rule.

Note. - This clause is intended to very few structures to come up in the vicinity of historically important structures or monuments recognised or declared under any law for the time being in force and the scrutiny shall be limited to the external architectural features only so as to ensure an aesthetic continuance of the existing structures with the new.

(2)

The Authority may, with the approval of the Government, appoint an Art Commission for examining schemes of such buildings. This Commission may consist of elite of city, such as an architect, engineer, sculptor, painter, writer, landscape specialist and well known representatives of the town, city or area concerned.

(3)

The Commission may select only the important, buildings as in sub-rule (1) and examine the same. The Licensed Architect, Structural Engineer, Engineer, Supervisor, or Town Planner as the case may be, who has signed the plan may be examined either alone or with the owner. A study of the plans, elevations, models, etc. shall be made. The architect shall explain in general terms the purposes which the building is to serve and the main conditions which have influenced him in preparing the design. The Commission after full discussion, may communicate their decision in writing to the parties concerned. The Commission may recommend a change in the whole scheme or suggest modifications in the existing scheme.

(4)

The Art Commission may also advise the Government, on schemes which will beautify the city and add to its cultural vitality.

Part IV ? Development Control

37.

Land use classification and uses permitted-Land use Classification.

- The various land use classifications shall be as indicated below:-

(i)

Residential Zone

Residential

(R1)

Residential with shop Lines at Ground Floor

(R2)

(ii)

Commercial Zone

Local Commercial Area

(C1)

Distt. Commercial Area

(C2)

(iii)

Industrial Zone

Service Industries

(I1)

General Industries

(I2)

Special Industries

(I3)

(iv)

Green Zone.

(v)

Special Reservations.

38.

Industries permitted in R1, R2 and commercial zones.

(1)

Subject to other provisions of this rule-

(i)

industries, listed in Part-I of Appendix J may be allowed in zone R1; provided that not more than 5 workers at a time are employed in such industry and it does not employ or use any steam, electricity, oil, water or any other mechanical power :

Provided further that the industries, listed at serial numbers 1 to 38 may be permitted the use of electric power load of maximum of 1 K.W

(ii)

industries listed in Part I and Part II of Appendix J may be allowed in R2 zone provided that an industry in Part II uses only electricity with a maximum load of power indicated against each and as per conditions laid down therein;

(iii)

industries listed in Part III of Appendix J with a maximum power load of 5 K.W. may be allowed in commercial zone, in addition to industries listed in Part I and Part II.

(2)

Building use and occupancies to be according to Development plan. - The various building uses and occupancies permitted in the various zones shall be as given in the Development Plan.

(3)

Uses to be in conformity with the Zone. - Where the use of buildings or premises is not specifically designated on the

Development Plan, it shall be in conformity with the zone in which they fall.

(4)

Uses as Specifically Designated on Development Plan. - Where the use of a site is specifically designated on the Development Plan, it shall be used only for the purpose so designated.

(5)

Non-conforming Uses. - No plot shall be used for any use occupancy or premises other than the uses identified in Rule 37 except with the prior approval of the Authority.

39.

Means of access.

- (1) No building to deprive any other Building of means of Access. - No building shall be erected so as to deprive any other building of the means of access.

(2)

Building/plot to abut on a public/private means of Access. - Every building/plot shall, as far as may be, abut on a public/private means of access like streets/roads duly formed.

(3)

Construction of Building not to encroach upon an area set upon for means of Access. - Every person who erects a building shall not at any time erect or cause or permit to be erected any building which in any way encroaches upon or diminishes the area set apart as means of access required under these rules.

(4)

Width of means of Access. - (a) The residential plots shall abut on a public means access like streets or road. Plots which do not abut on a street/road shall abut/be opposite to or have access from spaces directly connected from the street or road. The width and other means of access shall be as nearly as be as given in Table-3. In no case development on plots shall be permitted unless it is accessible by a public street of width not less than 6 metres.

Table 3

Width and length of means of access

[Rule 39 (4)]

S.No.

Width of Means of access in metres

Length of means of access in metres

1.

6.0

100

2.

7.5

150

3.

9.0

250

4.

12.0

400

5.

18.0

1000

6.

24.0

above 1000

Note. - (1) The means of access shall be clear of marginal open spaces of at least 3 metres from the existing building line.

(2)

If the development is only on one side of the means of access, the prescribed width may be reduced by 1 metre in each

case.

(b)

Other Building. - For all industrial buildings, theatres, cinema houses, assembly halls, stadia, educational buildings, markets, other buildings which attract large crowd, the means of access shall not be less than the following-

Width of means of access in metres

Length of means of access in metres

12.0

200

15.0

400

18.0

600

24.0

above 600

Further in no case shall the means of access be lesser in width than the internal access ways in layouts and sub-division.

(5)

Pathways. - The approach to the buildings from road/street or internal means of access shall as far as may be, through paved pathway of width not less than 1.5 metres provided its length is not more than 30 metres.

(6)

Width of Pathway for low income housing schemes. - In the case of special housing schemes for Low Income Group and Economically Weaker Sections of Society developed up to two storeyed Row/Cluster Housing Scheme, the pathway width shall be 3 metres which shall not serve more than 8 plots on each side of pathway; the length of the pathway shall be not more than 50 metres.

(7)

Length of means of access. - Length of main means of access shall be determined by the distance from the farthest plot (building) to the public street. The length of the subsidiary access way shall be measured from the point of its origin to the next wider road on which it meets.

(8)

Authority may require larger width of means of access in general interest. - (1) In the interest of general development of an area, the Authority may require the means of access to be of larger width than that required under sub-rule (4).

(9)

Boundary of plots in existing built up area to be shifted with reference to control line of street. - In existing built-up areas in the case of plots facing street/means of access less than 4.5 metres in width, the plot boundary shall be shifted to be away by 2.25 metres from the central line of the street/means of accessway to give rise to a new street/means of accessway width of 4.5 metres.

40.

Levelling etc. of means of access.

(1)

Means of access shall be levelled, matalled, flagged, paved, sewerred, drained, channelled, lighted, aid with water supply line and provided with trees for shade to the satisfaction of the Authority free of encroachment by any structure or fixture so as not to reduce its width below the minimum required under sub-rule (4) of Rule 39 and shall be maintained in a condition to the satisfaction of the Authority.

(2)

If any private street or any other means of access to a building is not levelled, matalled, flagged or paved, sewerred, dramed channeled lighted or laid with water supply line or provided with trees for shade to the satisfaction of the Authority, it may, by written notice require the owner or owners of the several premises situate in front of or adjoining the said street or other means of access or abutting thereon or to which access is obtained through such street or other means of access or which shall benefit by works executed to carry out any or more of the aforesaid requirements in such manner as it shall direct.

(3)

If any structure or fixture is set upon a means of access so as to reduce its width below the minimum required, the Authority may remove or cause to be removed the same further and recover the expenses so incurred from the owner.

41.

Access from Highways/Important Roads.

- No premises other than highway amenities like petrol pumps, motels shall have an access direct from highways and such other roads not less than 52 metres in width which the Authority with the approval of the Highway Authority shall specify from time to time. The Authority, shall maintain a register of such roads which shall be open to public inspection at all times during office hours. The portion of such roads on which direct access may be permitted shall be as identified in the development plan. However, in case of existing development on highways/other roads referred to above, the operation of this clause shall be exempted. These provisions shall however be subject to the provisions of the Madhya Pradesh Highway Act, 1936 (No. XXXIV of 1936) and National Highway Act, 1956 (No. 48 of 1956).

42.

[Additional Provisions for buildings other than residential buildings]

[Substituted by Notification No. 4343-HP-XXXII-88, 12-8-88 for the words 'Additional Provisions for High Rise Buildings'.]

.

- [For building other than residential]

[Substituted by Notification No. 4343-HP-XXXII-88, 12-8-88 for the words 'For high rise buildings and buildings other than residential'.]

the following additional provisions of means of access shall be ensured.

(a)

The width of the main street on which the building abuts shall not be less than 12 metres and one end of this street shall join another street of width not less than 12 metres;

(b)

The approach to the building and open spaces on its all sides upto 6 metres width and the layout for the same shall be done in consultation with Fire Authority of the city as approved by the Government and the same shall be hard surface capable of taking the weight of fire engine, weighing up to 18 tonnes. The said open space shall be kept free of obstructions and shall be motorable; and

(c)

Main entrance to the plot shall be of adequate width to allow easy access to the fire engine and in no case it shall measure less than 4.5 metres. The entrance gate shall fold back against the compound wall of the premises, thus leaving the exterior access way within the plot free for movement of fire service vehicles. If main entrance at boundary wall is built over, the minimum clearance shall be 4.5 metres.

42A.

[Additional provisions for buildings above 12.5 m. height.

[Substituted by Notification No. F. 23 (107)-95-XXXII(1), dated 7th April. 2000.]

(a)

For buildings above 12.5 m and upto 18 m. height-

(i)

the size of the plot shall not be less than 1000 sq. m. and minimum plot frontage shall not be less than 18 metres. Allowable coverage shall not exceed 30%.

(ii)

the width of main street on which frontage of the building abuts shall not be less than 12 metres.

(b)

High rise buildings :-

1. For building above 18 metres and upto 24 m. height-

(i)

The size of the plot shall not be less than 1500 Sq. m. and minimum plot frontage shall not be less than 21 metres. Allowable coverage shall not exceed 30%.

(ii)

The width of main street on which frontage of the building abuts shall not be less than 18 metres.

2. For building above 24 m. height-

(i)

The size of the plot shall not be less than 2d00 Sq. m. and minimum plot frontage shall not be less than 30 metres. Allowable coverage shall not exceed 30%.

(ii)

The width of main street on which frontage of the building abuts shall not be less than 30 metres.

(c)

For building having height more than 12.5 metres and upto 18 metres the necessary drawings and details shall be submitted to the authority incorporating all the fire fighting measures recommended in National Building Code Part-IV. The occupancy permit shall be issued only after ensuring that the fire fighting provisions are physically provided.

(d)

For all high rise buildings site clearance from District Committee under third proviso to sub-rule (1) of Rule 14 shall be necessary. After the site clearance by the committee, the planning permission from the Town & Country Planning and building permission from the Authority shall be necessary.

(e)

The approach to the building and open spaces on its all sides upto 6 metres width and its layout shall be proposed in consultation with the Fire Authority of the city as approved by the Government and its surface shall be as hard as is required to bear the weight of fire engine of 18 tonnes. The said open space shall be kept free of obstructions and shall be motorable; and

(f)

Main entrance to the plot shall be of adequate width to allow easy access to the fire engine and in no case it shall measure less than 4.5 metres. The entrance gate shall fold back against the compound wall of the premises, thus leaving the exterior access way within the plot free for movement of fire service vehicles. If the main entrance at boundary wall is built over the minimum clearance shall be 4.5 metres.]

43.

Cul-De-Sacs.

- Cul-De-Sacs giving access to plots and extending from 150 to 275 metres in length with an additional turning space at 150 metres will be allowed only in residential areas provided that cul-de-sacs would be permissible only on straight roads and further provided that cul-de-sacs end shall be higher in level than the level of starting point of such dead end road, the turning space, in which case shall be not less than 81 square metres in area with no dimension being less than 9 metres.

44.

Alley.

- Alley shall be provided in commercial and industrial area except where Authority may relax this requirement or when assured provision is made for service access such as off street loading/unloading and parking consistent with and adequate for the use provided. The width of the alley, where provided shall not be less than 6 metres and no dead end alley shall be permitted unless provided with an adequate turn around facilities.

45.

Intersection of Roads.

(1)

The layout shall be provided at the junctions of roads in such a way that as far as possible all roads meet at right angle. Roads meeting at less than 30 degree should be avoided However, in case it is necessary to so provide due to unavoidable circumstances, adequate and satisfactory arrangement has to be made from traffic and circulation point of view.

(2)

For junctions of roads meeting at right angles as well as other than right angles, the rounding off or cut off or similar treatment shall be done, to the satisfaction of the Authority, depending upon the width of roads, the traffic generated, the sighting angle etc.

46.

Building Line.

- Subject to Rule 56, building line shall be set back at least 3 metres from internal means of access in a layout of buildings in a plot.

47.

Community Open Spaces and Amenities.

- (1) Residential and Commercial Zones. - In any layout or sub-division of land measuring 0.2 hectare or more in residential and commercial zones, the community open spaces shall be reserved for recreational purposes which shall, as far as possible, be provided in one place or planned out for the use of the community in clusters or pockets.

(2)

Minimum area. - The community open spaces shall be provided catering to the needs of area of layout, population for which the layout is planned and the category of dwelling units.

A following minimum provision shall be made :-

(i)

10 per cent of the area of the layout; or

(ii)

0.3 to 0.4 hectare/1000 persons; for low income housing the open spaces shall be 0.2 hectare/1000 persons.

(3)

Area of recreational space. - No recreational space shall be generally less than 450 square metres.

(4)

Minimum average dimension of recreational space. - The minimum average dimension of such recreational space shall not be less than 7.5 metres; if the average width of such recreational space is less than 24 metres, the length thereof shall not exceed two and half times the average width. However, depending on the configuration of the site, commonly open spaces of different shapes may be permitted by the Authority, as long as the open spaces provided serve the needs of the immediate community contiguous to the open spaces.

(5)

Pavilion/gymnasia. - In such recreational spaces, a single storeyed structure as pavilion or gymnasia up to 25 square metres in area may be permitted ; such area may be excluded from floor area ratio calculations ; no toilet block shall be permitted.

(6)

Independent means of access. - Each recreational area and the structure on it shall have an independent means of access. Independent means of access may not be insisted upon if recreational space is approachable directly from every building in the layout. Further the building line shall be atleast 3 metres away from the boundary of recreational open space.

48.

Industrial Zones.

- (1) Amenity open space in Industrial Zones. - In the case of sub-division of land in industrial zones of area 0.8 hectares or more, 5 per cent, of the total area shall be reserved as amenity open space which shall also serve as a general parking space; when such amenity open space exceeds 1500 square metres the excess area could be utilized for the construction of buildings for banks, canteens, welfare centres and such other common purposes considered necessary for the industrial use as approved by the Authority.

(2)

Amenity open space in Industrial plots. - Further in all industrial plots measuring 1000 square metres or more in area, 10 per cent of the total area shall be provided as an amenity open space to a maximum of 2500 square metres. Such an amenity open space shall have a means of access and shall be so located that it would be conveniently utilised as such by the persons working in the industry.

49.

Other Amenities.

(1)

In addition to commonly open spaces, the layouts shall provide for the community facilities on the scale laid down in Table 4.

Table 4

[Rule 49 (1)]

Community Facilities and other Sub-Divisions Requirements

No.

Facilities required

Scale of provision (No required)

Area required and remark

Main type

Sub-type

(1)

(2)

(3)

(4)

(5)

1.

Educational facilities.

Nursery School (3 to 5 age group)

1 for 4000 population.

0.1 hectare.

Primary School (5 to 11 age group).

1 for 4000 population.

0.6 hectare for density up to 250

persons per hectare.

0.5 hectare for density from 251

to 500 persons per hectare.

0.4 hectare for density of 501 persons per hectare &

above

High School (11 to 16 age group).

1 for 16000 population.

2.0 hectares for density up to 250

persons per hectare.

1.8 hectares for density from 251 to 500 persons per hectare.

Degree College

1 for 80000 population.

4 to 6 hectares.

2.

Health Facilities

Health center

1 for every 16000 population

1.0 hectare with residential staff quarters

General Hospital

1 for every 80000 population

4.0 hectare for 200 beds with ancillaries and staff quarters.

3.

Commercial facilities including shopping facilities

Convenience shopping centre.

up to 10 shops for 4000 population.

0.05 to 0.1 hectare

Local shopping centre.

up to 20 shops for 16000 population.

0.4 hectare.

Zonal shopping centre.

up to 80 to 100 shops for 80000 population.

2.5 hectare.

4.

Communication facilities and essential services.

Sub-post office

1 for every 10000 population

40 square meters

Post and Telegraph Office cum Delivery and Booking including

Telephone exchange of 1000 lines.

1 for every 10000 population.

1.0 hectare.

Electric Sub-station

1 in all shopping centers.

12 meters.

Police Station with staff quarters.

1 for every 50000 population.

0.8 hectare.

Police post with staff quarters

1 for every 20000 population.

0.4 hectare.

Fire Station staff quarters.

1 for every 5 kilometer radial distance.

0.8 hectare

5.

Social and Cultural Facilities

Religious building

1 for every 15000 population

0.8 hectare location not on a intersection of roads and 60

meters away from Junctions.

Community Hall and library.

1 for every 15000 population.

0.3 hectare.

Cinemas

1 for every 25000 population

0.3 hectare with parking location in Zonal shopping centers,

business and commercial area not in residential zone.

6.

Facilities for industrial area.

Labour Welfare Center.

1 for every 40 Hectare.

0.2 hectare.

Convenience shops

5 shops of 10 square meters each.

0.2 hectare.

Bus station.

Health center

1 for every 200 hectare.

0.6 hectare.

Post Office

0.04 hectare.

Telephone exchanges

0.06 hectare.

Bank

200 square meters.

Petrol pump cum-service-station.

30 meters x 45 meters.

Police Station with staff quarters.

0.4 hectare.

Fire station staff quarters.

0.8 hectare.

Note. - The requirements of essential amenities for low income housing shall be as given in Appendix L.

(2)

Table 4 based on population shall be the guide line to workout different requirements of sub-division plan. The density proposed in the Master Plan shall guide the development to workout the actual population of an area. In areas where a Master Plan or a Regional Plan has not been prepared, the density pattern for that area shall be determined by the Authority in consultation with Additional Director, Town and Country Planning.

(3)

An application can be made to the Authority on prescribed form as given in Appendix K to obtain proposals of Development Plan or Zoning Plan for the land in which an applicant may be interested for preparation of sub-division proposals to develop the area. The Authority shall supply to the applicant such information as may be necessary for him to prepare a sub-division plan for his land in accordance with the zoning plan or the Development plan or any proposed land use or density pattern, as the case may be within thirty days from the date of receipt of such application by the Authority.

50.

Requirements of site.

- No piece of land shall be used as a site for the construction of building,-

(a)

if the authority considers that the site is insanitary or that it is dangerous to construct a building on it;

(b)

if the site is within a distance of 9 metres of the highest water mark, and if there be major water course nearby the distance of the plot from the same shall be 9 metres from average high flood mark or 15 metres from the defined boundary of water course, whichever is more;

(c)

if the owner of the building has not shown to the satisfaction of the Authority all the measures required to safeguard the construction from constantly getting damp;

(d)

if the building is for assembly use like cinemas and theatres as well as for public worship, which has not been previously cleared by the Authority;

(e)

if the building is proposed on any area filled up with carcasses, excreta, filthy and offensive matter, till the production of certificate from Health Officer and Municipal Engineer to the effect that it is from the health and sanitary point of view, fit to be built upon;

(f)

if the site is not drained properly or is incapable of being well drained;

(g)

if the use of the said site is for the purpose which in the opinion of the Authority, will be a source of annoyance to the health and comfort of the inhabitants of the neighbourhood;

(h)

if the plot has not been approved as a building site either by Authority or City Improvement Trust/Board or Planning Authority;

(i)

if the proposed occupancy of the building on the site does not conform to the land use proposals in the development plans or zoning regulations;

(j)

if the building has to be constructed over/under a Municipal drain/sewer line or water main or overhead transmission

line.

51.

Surface Water Drains.

(1)

Any land passage or other area within the curtilage of a building shall if the Authority so requires, be effectively drained by surface water drains or other means.

(2)

Written permission required to join water drain to a Sewer. - The written approval of the Authority shall be obtained for connecting any subsoil or surface water drain to a sewer.

52.

Distance from Electric Lines.

(1)

No verandah, balcony or the like shall be allowed to be erected or re-erected or any additions or alterations made to a building within the distance quoted below in accordance with the current Indian Electricity Rules and its amendments from time to time between the building and any overhead electric supply line :-

Vertically Metre

Horizontally Metre

(a)

Low and Medium voltage lines and service lines.

2.5

1.2

(b)

High voltage lines up to and including 33000 volts.

3.7

1.2

(c)

Extra high voltage lines beyond 33000 volts.

(See Note)

Note. - For building close to extra high voltage lines beyond 33000 volts clear horizontal corridor of 15 metres, or as specified in the latest version of the Indian Electricity Rules shall be provided.

(2)

The minimum clearance specified in sub-rule (1) above shall be measured from the maximum sag for vertical clearance and from maximum deflection due to wind pressure for horizontal clearance.

53.

Size of Plots.

(1)

Residential :-

(i)

Subject to the limitation of the Urban Land (Ceiling and Regulation) Act, 1976 (No. 33 of 1976), each plot shall have a minimum size/front-age corresponding to the type of development as given below :-

Type of Development

Plot size Square Metre

Frontage Metre.

Detached building

Above 250

Above 12

Semi-detached building

125-250

8 to 12

Row type building

50-125

4.5 to 8

(ii)

For Low Income Group Housing, the minimum plot size shall be as follows, with a coverage not exceeding 75 per cent :-

Type of development

Minimum plot size

Incremental housing with one room cooking and combined bath and W.C. on ground floor and future extension of one room and a bath on first/ground floor.

30 square metres.

Two roomed house on each floor for group housing/individual ownership house.

40 square metres.

Note. - (1) The minimum size of plots takes into account the need for incremental housing. In the case of cities with population less than 0.5 million, the size of the plot may be increased by 33? percent.

Note. - (2) In exceptional cases in metropolitan cities with population more than 1 million the size of plots may be brought down to 25 square metres in case of low income house colonies located in congested areas or in areas as decided by the Authority:

[Provided that in case of a high rise building the plot shall not be less than 1500 Sq. metres and the width of the plot shall not be less than 21 metres. Subject to the minimum road width stipulation being fulfilled for the relevant category of plots.]

[Substituted by Notification No. F. 23(107)-95-XXXII(1), dated 7th April, 2000.]

(2)

Industrial. - The size of plot shall not be less than 300 square metres and the width of plot shall not be less than 15 metres.

(3)

Other land uses. - The minimum size of plots for buildings for other uses like business, educational, mercantile, assembly (cinema theatre), mangal karyalaya, petrol filling station etc. shall be as decided by the Authority subject to clauses (i) to (iii) below :-

(i)

Assembly Halls/Cinema Theatres. - The minimum size of plot for assembly building/cinema theatres used for public entertainment with fixed seats shall be on the basis of seating capacity of the building at the rate of 3 metres per seat.

(ii)

Mangal Karyalaya/Kalyan Mandapam/Barat Ghar/Community Halls. - The size of plot shall not be less than 1000 square metres.

(iii)

Petrol filling Station. - The size of plot shall not be less than :-

(a)

32 metres X 17 metres in the case of Petrol Filling Station with Kiosk without service bay;

(b)

37 metres X 31 metres in the case of Petrol Filling Station with service bay.

Part V ? General Building Requirements

(i)

Classification

54.

Classification of Buildings.

- Buildings are classified on the basis of occupancy as follows :-

(a)

Residential;

(b)

Educational;

(c)

Institutional;

(d)

Assembly;

(e)

Business;

(f)

Mercantile (will include both retail and wholesale stores);

(g)

Industrial (will include low, moderate and high fire hazards);

(h)

Storage;

(i)

Hazardous.

(ii)

Open Spaces (within a Plot)

55.

General.

- Every room intended for human habitation shall abut on an interior or exterior open space or an open verandah open to such interior or exterior open space.

(2)

Open spaces to cater for lighting and ventilation requirement. - The open spaces inside or around building have essentially to cater for the lighting and ventilation requirements of the rooms abutting such open spaces, and in the case of building abutting streets in the front, rear or sides, the open spaces provided shall be sufficient for the future widening of such streets.

(3)

Open spaces separate for each building or wing. - The open spaces shall be separate or distinct for each building and where a building has two or more wings, each wing shall have separate or distinct open spaces for the purposes of light and ventilation of the wings.

(4)

Separation between accessory and main buildings more than 7 metres in height shall not be less than 1.5 metres. For buildings up to 7 metres in height no such separation shall be required.

56.

Residential Buildings-Exterior open spaces.

- (1) Front open space. - (a) Every building facing street shall have a front space, forming an integral part of the site as below :-

Front open space Min.

Width of street facing the plot

(i)

1.5 metres

upto 7.5 metres.

(ii)

3.0 metres

7.5 to 18 metres*

(iii)

4.5 metres

18 to 30 metres.

(iv)

6.0 metres

above 30 metres.

*For building up to a maximum height of 7 metres.

Note. - In case the two or more sides of the building front a street, the values apply to the average width subject to a

minimum of 1.8 metres for cases (ii) (iii) and (iv).

(b)

For streets less than 7.5 metres in width the distances of the building (building line) shall be at 5 metres from the centre line of the street.

Note. - This limiting distance has to be determined by the Authority for the individual road/street width taking into account the traffic flow.

(2)

Rear Open Space. - (a) Every residential building shall have a rear open space, forming an integral part of the site, of an average width of the 3 metres and at no place measuring less than 1.8 metres except in the case of back-to-back site the width of the rear open space shall be 3 metres throughout. Subject to the condition of free ventilation, the open space left up to half the width of the plot shall also be taken into account for calculating the average width of the rear open space. For plots of depth less than 9 metres, for buildings up to 7 metres in height, the rear open space may be reduced to 1.5 metres.

(b)

Rear open space to extend through the rear wall. - The rear open space shall be co-extensive with the entire face of the rear wall. If a building abuts on two or more streets, such rear open space shall be provided throughout the entire face of the rear wall. Such rear wall shall be the wall on the opposite side of the face of the building abutting on the wider street unless the Authority otherwise directs.

(3)

Side open space. - (a) Every semi-detached and detached building shall have a permanently open air space, forming integral part of the site as below :-

(i)

For detached buildings there shall be minimum side open spaces of 5 metres on both the sides.

Note. - For detached residential building upto 7 metres in height on plots with a frontage less than 12 metres one of the side open space may be reduced to 1.5 metres.

(ii)

For semi-detached buildings there shall be a minimum side open space of 3 metres on one side.

Note. - For semi-detached, buildings up to 7 metres in height on plots with a frontage less than 9 metres (See Rule 53(i) the side open space may be reduced to 1.5 metres.

(iii)

For row-type buildings, no side open space is required.

(b)

In the case of semi-detached buildings, the open spaces provided on one side shall be as in this sub-rule and all habitable rooms shall abut either on this side open space or front and rear open spaces or an interior open space.

(4)

Provision of sub-rules (2) and (3) not to apply to certain parking lock up garage. - The provisions of sub-rules (2) and (3) are not applicable to parking lock up garages up to 3 metres in height located at a distance of 7.5 metres from any street line or from boundary of the plot.

(5)

Provision of sub-rules (1) to (3) to apply to residential building up to 10 metres in height. - The open spaces mentioned in sub-rules (1) to (3) shall be for residential buildings up to height of 10 metres.

(6)

Open space for building of more than 10 metres height. - For building of height above 10 metres the open spaces (Sides and rear) shall be as given in Table 5. The front open spaces for increasing heights of buildings shall be governed by Rule 62 (a).

Table 5

Open spaces for different heights of buildings

[Rule 56 (6)]

S.No.

Height of building in metres

Open spaces to be left around building

excepting front on plot in metres

- | | |
|--------------|----|
| 1. | 10 |
| 3 | |
| 2. | 15 |
| 5 | |
| 3. | 18 |
| 6 | |
| 4. | 21 |
| 7 | |
| 5. | 24 |
| 8 | |
| 6. | 27 |
| 9 | |
| 7. | 30 |
| 10 | |
| 8. | 35 |
| 11 | |
| 9. | 40 |
| 12 | |
| 10. | 45 |
| 13 | |
| 11. | 50 |
| 14 | |
| 12. | |
| 53 and above | 15 |

Note 1. - For buildings above 24 metres in height, there shall be a minimum front open space of 6 metres.

Note 2. - Where rooms do not derive light and ventilation from exterior open space the width of such exterior open space as given in column (3) may be reduced by 1 metre subject to a minimum of 3 metres and a maximum of 8 metres. No further projections shall be permitted.

Note 3. - If the length or depth of the building exceeds 40 metres, add to column (3) 10 per cent of length or depth of building minus 4.0 metres.

(7)

Height of Building subject to front open space-The front open space would govern the height of the building (See Rule 62).

(8)

Interior open spaces. - (a) Inner Courtyard. - (i) The whole of one side of every room excepting bath, water closet and store room and not abutting on either the front, rear or side(s) open spaces shall abut on an inner courtyard, whose minimum width shall be 3 metres.

(ii)

Further the inner courtyard shall have an area, through out its height, of not less than the square of one-fifth the height of the highest wall abutting the courtyard; provided that when any room (excluding staircase bay and bath rooms and water closet) is dependent for its light and ventilation on an inner courtyard, the dimension shall be such as is required for each wing of the building.

(iii)

Where only water closet and bath room are abutting on the interior courtyard, the size of the interior courtyard shall be in line with the provision for ventilation shaft as given in clause (b).

(b)

Ventilation Shaft. - For ventilating the spaces for water closet and bath room if not opening on the front, side, rear and interior open spaces, shall open on to the ventilation shaft, the size of which shall not be less than the values given below :-

Height of buildings in metres

Size of ventilation shaft in square metres

Minimum size of shaft in metres

Upto 10

1.2

0.9

12

2.8

1.2

18

4.0

1.5

24

5.4

1.8

30

8.0

2.4

above 30

9.0

3.0

Note 1. - For buildings above 30 metres mechanical ventilation system shall be installed besides the provision of minimum ventilation shaft.

Note 2. - For fully air-conditioned residential buildings for lodging purposes the ventilation shaft need not be insisted provided the air-conditioning system works in an uninterrupted manner; also there is an alternate source of power supply.

(c)

Outer Courtyard. - The minimum width of outer courtyard (as distinguished from its depth) shall be not less than 24 metres. If the width of the outer courtyard is less than 2.4 metres, then it shall be treated as a notch and the provisions of outer courtyard shall not apply. However, if the depth of outer courtyard is more than the width, the provisions of Rule 55 (3) shall apply for the open spaces to be left between the wings.

(9)

Joint open air space. - (a) Every such interior or exterior open air space, unless the latter is a street, shall be maintained for the benefit of such building exclusively and shall be entirely within the owner's own premises.

(b)

If such interior or exterior open air space is intended to be used for the benefit of more than one building belonging to the same owner, then the width of such open air space shall be the one specified for the tallest building as specified in sub-rules (5) and (6) of Rule 56 abutting on such open air space.

(c)

If such interior or exterior open air space is jointly owned by more than one person, then its width shall also be as

specified in Rules 59 provided that every such person agrees in writing to allow his portion of such joint open air space to be used for the benefit of every building abutting on such joint open air space and provided he sends such written consent to the Authority for record. Such common open air space shall thenceforth be treated as a permanently open air space required for the purposes of these rules. No boundary wall between such joint open air space shall be erected or raised to a height of more than 2.0 metres.

57.

Open spaces for other occupancies.

- Open spaces for other occupancies shall be as follows :-

(a)

Educational Buildings. - Except for nursery schools, the open spaces around the building shall be not less than 6 metres;

(b)

Institutional Buildings. - The open spaces around the building shall be not less than 6 metres; and

(c)

Assembly Buildings. - The open space at front shall be not less than 12 metres and the other spaces around the building shall be not less than 6 metres.

Note. - However if assembly buildings are permitted in purely residential zones, the open spaces around the building shall not be less than 12 metres.

(d)

Business Mercantile and Storage Buildings. - The open spaces around the buildings shall be not less than 4.5 metres. Where these are situated in purely residential zone or residential with shops line zone, the open spaces may be relaxed.

(e)

Industrial Buildings. - The open spaces around the buildings shall be not less than 4.5 metres for heights up to 16 metres with an increase of the open spaces of 0.25 metres for every increase of 1 metre or fraction thereof in height above 16 metres.

(f)

Hazardous Occupancies. - The open spaces around the building shall be as specified for industrial buildings [See clause (e) above],

58.

Projections.

- (1) Projection into open spaces. - Every open space provided either interior or exterior shall be kept free any erection thereon and shall be open to the sky except as below :-

(a)

Cornice, roof or weather shade not more than 0.75 metre wide;

(b)

Sunshade over windows/ventilators or other openings not more than 0.75 metre wide;

(c)

Canopy at level not lower than lintel level of the first floor, but not to be used as a sit out with clearance of 1.5 metres between the plot boundary and the canopy;

(d)

[Projected balcony at higher floors of width not more than 1.20 metre:

[Substituted by Notification No. F. 23(107)-95-XXXII(1), dated 7th April, 2000.]

Provided that the balcony area may be merged with the adjoining room to the extent of 10 per cent of the floor area; and]

(e)

Projecting rooms balconies [See clause (d)] at alternate floors such that rooms of the lower two floors get light and air and the projection being not more than the height of the storey immediately below.

However these projections into open spaces shall not reduce the minimum required open front, rear or side spaces.

(2)

Accessory Building. - The following accessory buildings may be permitted in the open spaces :-

(a)

in existing buildings, sanitary block 2.4 metres in height subject to a maximum of 4 square metres in the rear open space at a distance of 1.5 metres from the rear boundary may be permitted.

(b)

Parking lock up garages not exceeding 2.6 metres from plinth level in height and an area not exceeding 20 square metres shall be permitted in the side or rear open spaces at a distance of 7.5 metres from any road line or the front boundary of the plot:

Provided that the space allowed for garage may be permitted to be used for any other purpose and construction up to one more floor on it may be allowed. However, the area so allowed shall be included in the covered area but shall be treated as an exception to open space; and

(c)

Suction tank and pump room each up to 2.5 square metre in area.

(3)

Projections into street. - In existing built up or congested areas no projection of any sort whatever except sun-shade extending more than 23 centimetres below a height of 4.3 meters shall project over the road or over any drain or over any portion outside the boundaries of the side provided that the projection arising out of the vertical part of the rain water spouts projecting at the road level or the water pipe may be permitted in accordance with the drainage plan:

Provided that in congested shopping streets not having heavy vehicular traffic, the Authority may as a special case allow projection of balconies not more than 0.75 meter in width over footpaths at a height not lower than 3.65 meters from the centre line of the street.

(4)

Porticoes in existing developed area. - Porticoes in Bazar areas of existing developed areas may be permitted to project on road land subject to the following limitations :-

(a)

porticoes may be allowed on such roads leaving a minimum clear space of 19 meters between kerbs;

(b)

it shall not be less than 3 meters wide;

(c)

nothing shall be allowed to be constructed on the portion which shall be used as an open terrace;

(d)

nothing shall be allowed to project beyond the line or arcades; and

(e)

the space under the portico shall be paved and channelled according to the directions of the authority.

(5)

Sunshades over windows and ventilators. - Projections of sunshades over windows or ventilators in existing built-up or congested areas when permitted by the Authority shall fulfil the following conditions :-

(a)

No sun-shade shall be permitted over the road or over any drain or over any portion outside the boundaries of the site below a height of 2.8 meters from the road level;

(b)

Sunshades provided above a height of 2.8 meters from the ground level shall be permitted to project up to a maximum width of 60 centimetres of the road over which they project exceeds 9 meters in width; and

(c)

No Sunshade shall be permitted on roads less than 9 meters width or on roads having no footpath.

59.

Limitation to open space.

- (1) Safeguard against reduction of open spaces. - No construction work on a building shall be allowed if such work operates to reduce an open air space of any other adjoining building belonging to the same owner to an extent less than what is prescribed at the time of the proposed work or to reduce further such open space if it is already less than that prescribed.

(2)

Additions or Extensions to a building. - Additions or extensions of building shall be allowed provided the open spaces for

the additions or extensions would satisfy rule 56 after such additions or extensions are made.

60.

Group housing.

- (1) Multi-storied blocks to be preferred. - Group housing development may preferably be in multistoreyed blocks; it shall not be a customary subdivision of land into streets and plots. The layout plan shall be governed by good design standards suiting the site and socioeconomic requirements of the occupants as may in its discretion be decided by the Authority.

(2)

Access to dwelling in low-cost housing. - Access to dwellings in low cost housing for weaker sections of the society shall be provided with footpaths and their width shall be governed by design requirements. The footpaths shall open on a residential street or cul-de-sac or loop street or preferably 6 meters width.

(3)

Minimum size of plots. - The minimum size of the plots for this type of development shall be 5000 square meters.

(4)

No limitation on floors and height. - No limit to floors and height shall be applicable except in areas near protected monuments and airports etc., but the coverage and floor area ratio for various densities may be as given in Table 6 unless otherwise provided in the Development plan.

Table 6

Floor area Ratio and coverage for group housing

[Rule 60(4)]

S.No.

Gross residential density Persons/Hectare

Maximum coverage in per cent.

Floor area ratio

1.

125

25

0.75

2.

250

30

1.25

3.

425

33 ½

1.50

4.

500

35

1.75

5.

625

35

2.00

Note. - The coverage shall be calculated on the basis of the whole area reserved for group housing after deducting

(i)

the area of any highway, any road upto 25 metres and major residential road of 18 metres wide road around the Group Housing Area (residential street, loop street, cul-de-sac, service lanes and footpaths shall not be deducted);

(ii)

the area of school (excluding sites for Nursery Schools) and other community facilities within the Group Housing Area; and

(iii)
the open space except playgrounds and toilets of local nature.

(iii)
Area and Height Limitations

61.

Floor Area Ratio.

- The Floor Area Ratio (FAR) for different use group shall be as given below in Table 7.

Table 7

F.A.R. for different use group

[Rule 61]

S. No.

Use Group

Remarks

1.

Residential

F.A.R. and Density may be adopted as provided in the
Development Plans of respective places.

2.

Business Commercial

1.001.201.503.00

Neighbourhood shopping centre.Sub-district shopping
centre/District shopping centre.Central Business district
areaOffice areas.

3.

Education

1.00

4.

Institutional

1.50

5.

Assembly

1.50

6.

Industrial

0.600.550.500.450.400.30

Upto to 250 square metres250 to 300 square metres300
square metres to 0.2 hectare.0.8 to 1.2 hectare1.2 to 2.8
hectareabove 2.8 hectares.

[Note 1.]

[Re-numbered by Notification No. F. 23(107) 95-XXXII-(1), dated 31-8-1998.]

- In case where the owner of the plot surrenders and vests in the Authority a portion of the plot for the prescribed road width of a public road without claiming any compensation he shall be allowed floor area ratio calculated by adding twice the area as surrendered by him to the remaining area of his plot.

(2)

[In case of redevelopment of Jhuggi-Jhopadi area, an additional FAR upto a limit of 0.50 may be allowed in addition to the permissible F.A.R. that area, provided that the permissibility of building height is maintained.

[Added by Notification No. F. 23(107)-95-XXXII-(1), dated 31-8-1998.]

(3)

For plots from 200 Sq.m. to 500 Sq.m. only one servant quarter and for plots above 500 Sq.m. 2 servant quarters shall be permitted in addition to the F.A.R. stipulated. The size of one servant quarter shall not be more than 20 Sq.m. which shall include one dwelling room having floor area not less than 11 Sq.m. and the remaining 9 Sq.m. may be used for

cooking verandah and one toilet.

(4)

For Flatted Development (i.e., residential units in flats) and Group Housing of four or more floors, on plots of 425 Sq. m. or more in area, if the covered parking with a height of 2.4 meter is provided within the permissible ground coverage, such area of parking shall not be counted for the purpose of Floor Area Ratio and permissible height calculations.

(5)

In case of redevelopment of areas in the old part of any city/town (after redevelopment plan having been prepared) the old and dilapidated structures may be reconstructed and if needed, an additional F.A.R. upto an extent of 0.25 shall be sanctioned in addition to normal prescribed F.A.R. of the area subject to the height restrictions of buildings in that area :

Provided that no such benefit shall be given if a redevelopment plan for the area has not been prepared.]

6. [The following relaxation of FAR shall be allowed to establish Software Units under information Technology in different cities of the State

[Inserted by Notification No. F-3-183-XXXII-2000, dated 15-2-2001, published in Madhya Pradesh Rajpatra (Asadharan) dated 15-2-2001, pp. 192 (3-6).]

(a)

Relaxation up to 25% in existing FAR in Indore, Bhopal, Gwalior and Jabalpur.

(b)

There shall be no restriction on FAR in rest of the towns of the State for Software Units.

The above relaxation shall be allowed subject to following conditions:

1. Proposed buildings shall be constructed on 20,000 Square Feet of land.

2. In case of old buildings, the Software Unit should have been in existence for more than one year.

3. 75% of the total built-up area of the proposed building shall be used for its units and remaining part should be utilised for ancillary purposes.

4. The above relaxation shall be given only in existing FAR stipulated in rules. The provisions in rules for Ground Coverage. M.O.S. and Height of building shall remain unchanged.]

62.

Height Limit.

- The height and number of storeys shall be related to floor area ratio, open spaces and the width of the street opposite the plot as per details given below :-

(a)

the maximum height of building shall not exceed one and half times the width of road abutting plus the front open spaces;

(b)

if a building abuts on two or more streets of different widths, the building shall be deemed to face such street as has the greater width and the height of the building shall be regulated by the width of that street and may be continued to this height to a depth of 24 metres along the narrower street subject to conformity of Rule 56; and

(c)

for building in vicinity of aerodromes, the maximum height of such buildings shall be as given in Table 8 :

Provided that nothing contained in this rule shall be construed to confer any right to construct a building greater in height than what may be permitted by the authority in any area keeping in view the existing fire-fighting equipments and other civil amenities available in the said area.

Table 8

Height Restrictions near Aerodromes

[Rule 62 (c)]

S. No.

Limits of distance from the aerodrome reference point of buildings, structures or installations measured horizontally.

Permissible height of building, structures or installation from aerodrome reference point.

1.

International Civil Airports and their alternates

- (a) Between 8534 Meters and 22224 M
152 Meters
- (b) Between 7315 Meters and 8534 M
122 Meters
- (c) Between 6096 Meters and 7315 M
91 Meters
- (d) Between 4877 Meters and 6096 M
61 Meters
- (e) Between 4267 Meters and 4877 M
49 Meters
- (f) Between 3658 Meters and 4267 M
37 Meters
- (g) Between 3048 Meters and 3658 M
24 Meters
- (h) Between 2438 Meters and 3048 M
12 Meters
- (i) Between 2438 Meters and less
Nil, except with the prior concurrence of the Local Aerodrome Authorities.

2.

Other Civil Airports and Civil Aerodromes

- (a) Between 7925 metres and 2224 m
152 Meters
- (b) Between 6709 metres and 7925 m
122 Meters
- (c) Between 5486 metres and 6709 m
91 Meters
- (d) Between 4267 metres and 5486 m
61 Meters
- (e) Between 3658 metres and 4267 m
49 Meters
- (f) Between 3043 metres and 3658 m
37 Meters
- (g) Between 2438 metres and 3048 m
24 Meters
- (h) Between 1829 metres and 2438 m
12 Meters
- (i) Between 1829 metres and less
Nil, except with the prior concurrence of the Local Aerodrome Authority.

Note 1. - For serial Nos. (g), (h) and (i) no trees should be planted within the limits of the distances indicated.

Note 2. - Irrespective of their distance from the aerodrome (that is beyond 22224 Meters of the aerodrome/aerodrome reference point) not radio masts or such similar type of installations exceeding 152 Meters in height should be erected without prior permission to the concerned civil aviation authority.

Note 3. - No building, structure or installation exceeding the height indicated in 1 and 2 of the table should be permitted without prior consultation with the local aerodrome authority.

Note 4. - The location of a slaughter house/butcher house and other areas for activities like depositing of garbage in garbage dumps which would generate the collection of high flying birds like eagles/hawks, etc, shall not be permitted within a radius of 10 kilometres from aerodrome reference points.

63.

Height exceptions-Roof Structures.

- The following appurtenant structures shall not be included in the height of the building unless the aggregate area of such structures including pent-houses exceeds one-third of the area of roof of the building upon which they are erected :-

(a)

roof tanks and their supports;

(b)

Ventilating, air-conditioning, lift rooms and similar service equipment;

(c)

roof structure other than plant-houses; and

(d)

chimneys and parapet walls and architectural features not exceeding 1 meter in height.

64.

Planting of trees.

- In all new layouts of building each plot having an area of 100 square Meters or more shall be planted with trees after the completion of construction of building. The number of trees to be planted shall be worked out at 100 square Meters for one tree of the area of individual plot. The occupancy certificate for the building will be issued only when the authority is satisfied that the provisions of this rule have been complied with. Every effort shall be made to protect the existing trees on the plot.

(iv)

Requirements of parts of building

65.

Plinth.

- (1) Main Building. - The plinth or any part of a building or out house shall be so located with respect to surrounding ground level that adequate drainage of the site is assured. The height of the plinth shall be not less than 45 Centimetres from the surrounding ground level.

(2)

Interior courtyard. - Every courtyard shall be raised at least 15 Centimetres above the level of the centre of the nearest street and shall be satisfactorily drained.

66.

Habitable rooms.

- (1) Height. - The height of all rooms for human habitation shall not be less than 2.6 Meters measured from the surface of the floor to the lowest point of the ceiling (bottom of slab). In case of pitched roof, average height of rooms shall not be less than 2.6 Meters. The minimum clear head room under a beam, folded plates or caves shall be 2.4 Meters. In case of air-conditioned rooms a height of not less than 2.4 meters measured from the surface of the floor to the lowest point of air-conditioning duct or the false ceiling shall be provided.

(2)

The requirements of sub-rule (1) apply to residential business and mercantile buildings. For educational and industrial buildings the following minimum requirements apply:-

(a)

Educational building. - Ceiling height 3.6 metres for all regions; in cold region 3 metres.

(b)

Industrial building. - Ceiling height 3.6 metres except when air-conditioned 3 metre (Factory Act, 1948 and rules thereunder shall govern such height where applicable).

(3)

Size. - (i) The area of habitable room shall not be less than 9.5 square metres where there is only one room with a minimum width of 2.4 metres. Where there are two rooms, one of these shall not be less than 9.5 square metres and the other be not less than 7.5 square metres with a minimum width of 2.1 metres. In the case of hostels in educational institutions the minimum size of a habitable room for single person shall be 7.5 square metres.

(ii)

However in the case of special housing schemes for Economically Weaker Section of Society, low income group housing, slum clearance scheme or industrial labour housing schemes, the norms for the size of the rooms shall be as

follows:-

(a)

A single room tenement shall consist of a room not less than 9.5 square metres in area with a minimum width of 2.4 metres and a multipurpose space of area not less than 4.0 square metres, with a minimum width of 1.5 metres;

(b)

In the case of double room tenement there shall be a living room not less than 9.5 square metres in area and another room not less than 7.5 square metres in area.

67.

Kitchen.

- (1) Height. - The height of a kitchen measured from the surface of the floor to the lowest point in the ceiling (bottom slab) shall not be less than 2.6 metres except for the portion to accommodate floor trap of the upper floor.

(2)

Size. - The area of a kitchen where separate dining area is provided, shall be not less than 5.0 square metres and with a minimum width of 1.8 metres. Where there is a separate store, the area of the kitchen, may be reduced to 4.5 square metres. A kitchen, which is intended for use as a dining area also, shall have a floor area of not less than 7.5 square metres with a minimum width of 2.1 metres.

(3)

Other requirements. - Every room to be used as kitchen shall have,-

(a)

unless separately provided in a pantry, means for the washing of kitchen utensils which shall lead directly or through a sink to a grated and trapped connection to the waste pipe;

(b)

an impermeable floor;

(c)

a flue, if found necessary; and

(d)

a window or ventilator or opening of size not less than as specified in note 3 sub-rule (3) of Rule 80.

68.

Bathroom and Water Closets.

- (1) Height. - The height of a bathroom or water closet measured from the surface of the floor to the lowest point in the ceiling (bottom of slab) shall not be less than 2.2 metres.

(2)

Size. - (i) The size of a bathroom shall not be less than 1.5 square metres. The floor area of water closet shall be 1.1 square metres with a minimum width of 0.9 metre. If bath and water closet are combined, its floor area shall not be less than 2.4 square metres with a minimum width of 1.2 metres. The area of W.C. with wash basin shall not be less than 1.3 square metres.

(ii)

In case of Special Housing Scheme referred to in Rule 66 (3) (ii), the sizes of bathrooms/water closets shall be as follows:-

(a)

independent water closet-1.1 m X 0.9 metre

(b)

independent bathroom-1.3 m X 1.1 metres

(c)

combined bathroom and closet-2.0 square metres with minimum width of 1.1 metres.

(d)

Water closet with wash basin-1.3 square metres.

(3)

Other requirements. - Every bathroom or water-closet shall,-

(a)

be so situated that at least one of its walls shall open to external air;

- (b)
not be directly over or under any room other than another water-closet, washing place, bath or terrace, unless it has a water tight floor;
- (c)
have the platform or seat made of watertight non-absorbent material;
- (d)
be enclosed by wall or partitions and the surface of every such wall or partition shall be finished with a smooth impervious material to a height of not less than 1 metre above the floor of such a room;
- (e)
be provided with an impervious floor covering, sloping towards the drain with a suitable grade and not towards verandah or any other room; and
- (f)
have a window or ventilator, opening to a shaft or open space, of area not less than 3 square metres with side not less than 0.3 metre.

(4)
No room containing water-closet shall be used for any purpose except as a lavatory and no such room shall open directly into any kitchen or cooking space by a door, window or other opening. Every room containing water closet shall have a door completely closing the entrance to it.

69.

Ledge or Tand/Loft.

- (1) Height. - It shall have a minimum head-room of 1.5 metres.

(2)

Size. - A ledge or "TAND" in a habitable room shall not cover more than 25 percent, of the area of the floor on which it is constructed and shall not interfere with the ventilation of the room under any circumstances.

(3)

Loft. - A loft, if provided, on a kitchen shall not exceed 25 per cent of the area of kitchen and shall leave minimum height of 2.2 metres under the loft. On bathroom, water-closet and corridor, the loft may cover as much area as would allow a person to keep article there with reasonable space for body movement.

70.

Mezzanine (Entresol) Floor.

- (1) Height. - It shall have a minimum height of 2.2 metres.

(2)

Size. - The minimum size of the mezzanine floor, if it is to be used as a living room, shall not be less than 9.5 square metres. The aggregate area of such mezzanine floor in a building shall in no case exceed ? of the plinth area of the room in which it is provided.

(3)

Other requirements. - A mezzanine floor may be permitted over a room or a compartment; provided that-

(a)

it conforms to the standards of living rooms as regards lighting and ventilation in case the size of mezzanine floor is 9.5 square metres or more;

(b)

it is so constructed as not to interfere, under any circumstances, with the ventilation of the space over and under it;

(c)

such mezzanine floor is not sub-divided into smaller compartments;

(d)

such mezzanine floor or any part of it shall not be used as a kitchen; and

(e)

in no case a mezzanine floor shall be closed so as to make it liable to be converted into unventilated compartments.

71.

Store room.

- (1) Height. - The height of a store room shall be not less than 2.2 metres.

(2)

Size. - The size of a store room, where provided in a residential building, shall be not less than 3 square metres.

72.

Garage.

- (1) Height. - The height of a garage shall be not less than 2.2 metres.

(2)

Size. - The size of garage shall be as below :-

(a)

Private Garage. - 2.5 metres X 5.0 metres minimum :

Provided that the authority may permit space for garage in a residential building to be converted into living room with permission to construct thereon up to first floor only for use as servant's quarter;

(b)

Public Garage. - Based on the number of vehicles parked etc. (See Rule 82-parking space).

73.

Basement.

(1)

Basement shall not be used for residential purpose.

(2)

The construction of the basement shall be allowed by the Authority in accordance with the land used and other provisions specified under these rules.

(3)

Basement may be put to only the following uses to be constructed within the prescribed set-backs and prescribed building lines and subject to maximum coverage on Floor 1 (entrance floor) :-

(a)

Storage or house-hold or other goods of ordinarily combustible materials;

(b)

Strong rooms, bank cellars;

(c)

Air-conditioning equipment and other machine used for services and utilities of the building; and

(d)

Parking spaces.

(4)

The basement shall have the following requirements, namely:-

(a)

Every basement shall be in every part at least 2.4 metres in height from the floor to the underside of the roof slab or ceiling;

(b)

adequate ventilation shall be provided for the basement. The ventilation requirements shall be the same as required by the particular occupancy according to these rules. Any deficiency may be met by providing adequate mechanical ventilation in the form of blowers, exhaust fans, air conditioning systems, or the like;

(c)

the minimum height of the ceiling of any basement shall be 0.9 metre and maximum of 1.2 metres above the average surrounding ground level;

(d)

adequate arrangements shall be made such that surface drainage does not enter the basement;

(e)

the walls and floors of the basement shall be watertight and be so designed that the effect of the surrounding soil and moisture, if any, are taken into account in design and adequate damp proofing treatment is given; and

(f)

the access to the basement shall be separate from the main and alternate staircase providing access and exit from higher floors. Where the staircase is continuous in case of building served by more than one staircase the same shall be

of enclosed type serving as a fire separation from the basement floor and higher floors. Open ramps shall be permitted if they are constructed within the building line subject to the provision of clause (d).

(5)

[The construction of multi basement shall be allowed by authority in accordance with land use and other provisions specified under these rules subject to the condition that :-

(a)

the minimum frontage of the plot shall be 21 metres and the minimum average depth be 30 metres and Such plot abuts 18 metres wide road; and

(b)

they shall be allowed only in detached buildings.

(6)

only the upper most level basement of the multi level basement may be used for commercial purposes, but the area proposed (or commercial use shall be included in the permissible FAR. The basement to be used for commercial purpose shall have habitable height.]

[Inserted by Notification No. F. 23(107)-95-XXXII(1), dated 7th April, 2000.]

74.

Parapet.

- Parapet walls and handrails provided on the edges of roof terraces, balcony or verandah shall not be less than 1.05 metres in height from the finished floor level.

75.

Boundary Wall.

- The requirements of the boundary wall are given below :-

(a)

Except with the special permission of the Authority, the maximum height of the compound wall shall be 1.5 metres above the centre line of the front street. Compound wall up to 2.4 metres height may be permitted if the top 0.9 metre is of open type construction of a design to be approved by the Authority;

(b)

the rear and side compound walls shall not have a height more than 3 metres above the central line of the service road in case it exists, otherwise 2 metres shall be measured above the central line of the front street. In case of a corner plot the height of the boundary wall abutting on the side road shall also not be more than 1 5 metres till the Court yard width starts; and

(c)

the provisions of (a) and (b) are not applicable to boundary walls of jails, electric sub-stations, transformer stations, institutional buildings like, sanatoria, hospitals, industrial buildings like workshops, factories and educational buildings like schools, colleges, including the hostels, and other uses of public utility undertaking, where height up to 2.4 metres may be permitted by the Authority.

76.

Septic Tanks.

- Where a septic tank is used for sewage disposal, the location, design and construction of the septic tank shall conform to the following requirements :-

(i)

Location of Septic Tanks and Sub-Surface absorption systems. - A sub-soil dispersion system shall not be within 18 metres from any source of drinking water, such as well, to mitigate the possibility of bacterial pollution of water supply. It shall also be as removed from the nearest habitable building as economically feasible but not within 2 metres thereof so that there is no damage to the structures.

(ii)

Other Requirements :-

(a)

Dimensions of septic tanks-Septic tanks shall have minimum width of 75 centimetres minimum depth of one metre below the water level and a minimum liquid capacity of one cubic metre. Length of tanks shall be 2 to 4 times the width;

(b)

Septic tanks may be constructed of brick work, stone masonry concrete or other suitably materials as, approved by the Authority;

(c)

under no circumstances should effluent from a septic tank be allowed into an open channel drain or body of water without adequate treatment;

(d)

minimum nominal diameter of pipe shall be 100 millimetres. Further, at junctions of pipes in manholes, direction of flow from a branch connection should not make an angle exceeding 45 degrees with the direction of flow in the main pipe;

(e)

the gradients of land drains, under-drainage as well as the bottom of dispersion trenches and soakways should be between 1:300 and 1:400;

(f)

every septic tank shall be provided with ventilating pipe of at least 50 millimeter diameter. The top of the pipe shall be provided with a suitable cage of mosquito proof wire mesh. The ventilating pipe shall extend to a height which would cause no smell nuisance to any building in the area. Generally, the ventilating pipe may extend to a height of about 2 metres when the septic tank is at least 15 metres away from the nearest building and to a height of 2 metres above the top of the building when it is located closer than 15 metres;

(g)

when the disposal of septic tank effluent is to seepage pit, the seepage pit may be of any suitable shape with the least cross-sectional dimension of 90 centimetres and not less than 100 centimetres in depth below the invert level of the inlet pipe. The pit may be lined with stone, brick or concrete blocks with dry open joints which should be backed with at least 7.5 centimetres of clean coarse aggregate. The lining above the inlet level should be finished with mortar. In the case of pits of large dimensions, the top portion may be narrowed to reduce the size of the reinforced cement concrete cover slabs. Where no lining is used, specially near trees, the entire pit should be filled with loose stones. A masonry ring may be constructed at the top of the pit to prevent damage by flooding of the pit by surface run off. The inlet pipe may be taken down a depth of 90 centimetres from the top as an anti-mosquito measures; and

(h)

when the disposal of septic tank effluent is to a dispersion trench, the dispersion trench shall be 50 to 100 centimetres deep and 30 to 100 centimetres wide excavated to a slight gradient and shall be provided with 10 to 25 centimetres of washed gravel or crushed stones. Open jointed pipes placed inside the trench shall be made of unglazed earthenware clay or concrete and shall have minimum internal diameter of 75 to 100 millimeters. Each dispersion trench should not be longer than 30 metres and trenches should not be placed closer than 1.8 metres.

77.

Staircase.

(1)

The minimum clear width and maximum riser of staircases for buildings shall be as given in sub-rules (2) to (4).

(2)

Minimum Width. - The minimum width of staircase shall be as follows :-

(i)

Residential buildings (dwellings)

0.85 metres.

Note. - For new housing with two storeys the minimum width shall be 0.75 metre.

(ii)

Residential hotel buildings

1.5 metres.

(iii)

Assembly buildings like auditorium, theatres and cinemas

1.5 metres.

(iv)

Educational buildings-up to 24 m in height

1.5 metres.

more than 24 m in height.

2.0 metres.

(v)

Institutional buildings-upto 10 beds

1.5 metres.

more than 10

beds

2.0 metres.

(vi)

All other buildings

1.5 metres.

(3)

The landing width shall be a minimum of twice staircase width plus 15 centimetres.

(4)

Minimum Tread. - The minimum width of tread without nosing shall be 25 centimetres for residential buildings. The minimum width of tread for other buildings shall be 30 centimetres.

(5)

Maximum Riser. - The maximum height of riser shall be 17 centimetres for residential buildings and 15 centimetres for other buildings and these shall be limited to 15 per flight.

(6)

Head Room. - The minimum head-room in a passage under the landing of a staircase shall be 2.2 metres. The minimum clear headroom in any staircase shall be 2.2 metres.

78.

Roofs.

(1)

The roof of a building shall be so constructed or framed as to permit effectual drainage of the rain-water therefrom by means of sufficient rain-water pipes of adequate size, whenever required, so arranged, jointed and fixed as to ensure that the rain-water is carried away from the building without causing dampness in any part of the walls or foundations of the buildings or those of an adjacent building.

(2)

The authority may require rain-water pipes to be connected to a drain or sewer to a covered channel formed beneath the public footpath to connect the rain-water pipe to the road gutter or in any other approved manner.

(3)

Rain-water pipes shall be affixed to the outside of the external walls of the building or in recesses or chases cut or formed in such external walls or in such other manner as may be approved by the Authority;

(4)

[Roof top water harvesting method shall be provided on all type building to utilise rain water having plot size more than 250 Square metre as per the options mentioned in Annexure-N.] [[Substituted by Notification No. F-3-10-XXXII-2001, dated 30th May, 2001, published in Madhya Pradesh Raipatra Part IV (Ga), dated 29-6-2001, p. 106 old sub-rule (4) runs as under:

(4)

Rain Roof water harvesting method shall have to be provided on all type of buildings having plot size more than 500 Square metre as per the options mentioned in Annexure-N.]]

(v)

Lighting and Ventilation

79.

Lighting and Ventilation of Rooms.

(1)

Rooms shall have, for the admission of light and air, one or more openings, such as windows and ventilators, opening directly to the external air or into an open verandah with a maximum width of 2.4 metres.

(2)

Where the light and ventilation requirements are not met through day lighting and natural ventilation, the same shall be ensured through artificial lighting and mechanical ventilation as per Part VIII-Building services Section 1, Lighting and Ventilation of the Code as revised from time to time.

(3)

Notwithstanding the area of openings obtained under sub-rule (2), the minimum aggregate area (See Notes 1 to 3) of such openings excluding doors inclusive of frames shall be not less than one-tenth of the floor area.

Note 1. - If a window is partly fixed, the openable area shall be counted.

Note 2. - No portion of a room shall be assumed to be lighted, if it is more than 7.5 metres away from the opening assumed for lighting that portion.

Note 3. - Area of openings as given in this sub-rule shall be increased by 25 per cent in case of a kitchen.

(vi)

Lifts

80.

[Provision of Lifts.

[Substituted by Notification No. F. 23 (107)-95-XXXII(1), dated 7th April, 2000.]

- Provision for lifts shall be made for building more than 12.5 metres in height. Planning and designing of lifts shall be done in accordance with the provision given in Part VIII Building Services Section 5. Installation of lifts and Escalators, of the Code as revised from time to time.]

(vii)

Parking Space

81.

[Parking Space.

[Substituted by Notification No. F. 23 (107)-95-XXXII-(1), dated 7th April, 2000.]

- The off-street parking spaces and other than off street parking spaces given in the Appendices L, and L-A respectively shall be considered by the Authority in conjunction with any other law for the time in force relating to the development of land.]

(viii)

Exits

82.

Exit Requirements.

- (1) General. - The following general requirements shall apply to exits :-

(a)

every building meant for human occupancy shall be provided with exits sufficient to permit safe escape of occupants in case of fire or other emergency;

(b)

in every building exits shall comply with the minimum requirements of this part except those not accessible for general public use;

(c)

all exits shall be free of obstruction;

(d)

no building shall be altered so as to reduce the number, width or protection of exits to less than that required;

(e)

exits shall be clearly visible and the routes to reach the exit shall be clearly marked and sign posted to guide the population of floor concerned;

(f)

all exit ways shall be properly illuminated;

(g)

fire fighting equipment, where provided along exits, shall be suitably located and clearly marked but must not obstruct the exit way and yet there should be clear indication about its location from either side of the exit way;

(h)

alarm devices shall be installed to ensure prompt evacuation of persons inside through the exits;

(i)
all exits shall provide continuous means of access to the exterior of a building or to an exterior open space leading to a street; and

(j)
exits shall be so arranged that they may be reached without passing through another occupied unit, except in the case of residential buildings.

(2)
Types of Exits. - (a) Exits shall be either of horizontal or vertical type. An exit may be doorway, corridor, passageway to an internal staircase or external staircase, ramps or to a verandah and/or terraces which have access to the street or to roof of a building. An exit may also include a horizontal exit leading to an adjoining building at the same level.

(b)
Lifts and escalators shall not be considered as exits.

(3)
Number and size of Exits. - The requisite number and size of various exits shall be provided, based on the number of persons occupying or visiting each room, area of floor based on the occupant load, capacity of exits, travel distance and height of buildings as per provisions of clauses (i) to (iii) below :-

(i)
Arrangement of Exit. - Exits shall be so located that the travel distance on the floor shall not exceed 22.5 metres for residential, educational, institutional and hazardous occupancies and 30 metres for assembly, business, mercantile, industrial and storage occupancies. Whenever more than one exit is required for a floor of a building, exits shall be placed as remote from each other as possible. All the exits shall be accessible from the entire floor area at all floor levels.

(ii)
Occupant Load. - The population in rooms, areas of floors shall be calculated based on the occupant load given in Table 9 :

Table 9

Occupant Load

[Rule 82]

S. No.

Group of Occupancy

Occupant load Gross Area* in square metres
per person

1.

Residential

12.5

2.

Educational

4

3.

Institutional

15#

4.

Assembly-

(a) with fixed or loose seats and dance floor

0.6\$

(b) without seating facilities including dining rooms

1.5\$

5.

Mercantile-

(a) street floor and sales basement

3

(b) upper sale floors

6

6.

Business and Industrial

10

7.

Storage

30

8.

Hazardous

10

* The gross area shall mean plinth area or covered area.

Occupant load in dormitory portions of homes for the aged, orphanages, insane asylums and the like, where sleeping accommodation is provided, shall be calculated at not less than 7.5 square metres gross area/person.

\$ The gross area shall include, in addition to the main assembly room or space, any occupied connecting room or space in the same storey or in the storeys above or below, where entrance is common to such rooms and spaces and they are available for use by the occupants of the assembly place. No deductions shall be made in the gross area for corridors, closets or other sub-divisions, and area shall include all space serving the particular assembly occupancy.

(iii)

Capacity of Exits. - The capacity of exits (doors and stairways) indicating the number of persons that could be safely evacuated through a unit exit width of 50 centimetres shall be as given in Table 10 :

Table 10

[Rule 82 (3)(iii)]

S. No.

Group of occupancy

Number of occupants

Stairways

Doors

1.

Residential

25

75

2.

Educational

25

75

3.

Institutional

25

75

4.

Assembly

60

90

5.

Business

50

75

6.

Mercantile

50

75

7.

Industrial

50

75

8.

Storage

50

75

9.

Hazardous

25

40

(iv)

Number of staircases. - For all other buildings excepting single and multi-family dwellings below 15 metres in height, there shall be a minimum of two stairways and one of them shall be an enclosed stairway and the other shall be on the external wall of building and shall open directly to the exterior, interior open space or to any open place of safety.

(v)

Minimum width for stairways. - Notwithstanding the detailed provision for exits as per clause (i) to (iii) above the provisions of sub-rule (2) of Rule 77 will govern the width of stairways.

(4)

Other requirements of individual exits. - The detailed requirements of individual exits are given in clauses (i) to (ix) below:-

(I)

Doorways-

(a)

Every exit doorway shall open into an enclosed stairway, a horizontal exit, or a corridor or passage way providing continuous and protected means of egress.

(b)

No exit doorway shall be less than 100 centimetres in width. Doorway, shall be not less than 200 centimetres in height. Doorways for bathrooms, water closet or stores shall not be less than 75 centimetres.

(c)

Exit doorways shall, as far as possible, open outwards, that is, away from the room but shall not obstruct the travel along any exit. No door, when opened, shall reduce the required width of stairway or landing to less than 90 centimetres over head or sliding doors shall not be installed.

(d)

Exit door shall not open immediately upon a flight of stairs; a landing equal to at least the width of the door shall be provided in the stairway at each doorway level of landing shall be the same as that of the floor which it serves.

(e)

Exit doorways shall be openable from the side which they serve without the use of a key.

(II)

Revolving Doors :-

(a)

Revolving doors shall not be used as required exits except in residential, business and mercantile occupancies, but shall not constitute more than half the total required door width.

(b)

When revolving doors are considered as required exit way the following assumptions shall be made

(i)

each revolving door shall be credited one half a unit exit width;

(ii)

revolving doors shall not be located at the foot of a stairway. Any stairway served by a revolving door shall discharge through a lobby or foyer.

(III)

Stairways. - Subject to the provision of Rule 77-

(a)

interior stairs shall not be constructed of ordinarily combustible materials throughout.

(b)

interior staircase shall be constructed as a self-contained unit with at least one side adjacent to an external wall. Wherever a building is not identified by clause (ii) of sub-rule (6) of Rule 17 exceeds 10.5 metres in height and is served by a staircase the same shall be of enclosed type.

(c)

A staircase shall not be arranged round a lift shaft unless the latter is entirely enclosed by a material of fire resistance rating as that for type of construction itself. For buildings more than 15 metres in height, the staircase location shall be to the satisfaction of the competent fire Authority as approved by the Government.

(d)

The minimum width of treads shall be governed by sub-rule (4) of Rule 77. The treads shall be constructed and maintained in a manner to prevent slipping.

(e)

The maximum height of riser shall be governed by sub-rule (5) of Rule 77.

(f)

Handrails shall be provided with a minimum height of 90 centimetres from the centre of the tread.

(g)

The minimum headroom in a passage under the landing of a staircase and under the staircase shall be governed by sub-rule (6) of Rule 77.

(h)

No living space, store or other fire risk shall open directly into the staircase.

(i)

External exit door of staircase enclosure at ground level shall open directly to the open spaces or can be reached without passing through any door other than a door provided to form a drought lobby.

(j)

In the case of assembly, institutional residential hotels and business buildings the exit sign with arrow indicating the way to the escape route shall be provided at a height of 0.5 metre from the floor level on the wall and shall be illuminated by electric light connected to corridor circuits. All exits way marking signs should be flush with the wall and so designed that no mechanical damage shall occur to them due to moving of furniture or other heavy equipments. Further all landings of floor shall have floor indication boards indicating the number of floor as defined in Rule 2 (28). The floor indication board shall be placed on the wall immediately facing the flight of stairs and nearest to the landing. It shall be of size not less than 0.5 X 0.5 metre.

(k)

In case of single staircase it shall terminate at the ground floor level and the access to the basement shall be by a separate staircase. Wherever the building is served by more than one staircase one of the staircase may lead to basement level provided the same is separated at ground level by either a ventilated lobby with the discharge points at two different ends or through enclosure.

(IV)

Fire Escape or External Stair-

(a)

Fire escapes shall not be taken into account in calculating the evacuation time of a building.

(b)

All fire escape shall be directly connected to the ground.

(c)

Entrance to fire escape shall be separate and remote from the internal staircase.

(d)

The route to fire escape shall be free from obstructions at all times, except a doorway leading to the fire escape which shall have the required fire resistance.

(e)

Fire escape shall be constructed of non-combustible materials.

(f)

Fire escape stairs shall have straight flight not less than 75 centimetres wide with 15 centimetres treads and risers not higher than 19 centimetres. The number of risers shall be limited to 16 per flight.

(g)

Handrails shall be of a height not less than 90 centimetres.

(V)

Spiral Stairs (fire escape). -

(a)

The use of spiral staircase shall be limited to low occupant load and to a building of height of 9 metres unless they are connected to platforms, such as balconies and terraces to allow escapes to pause.

(b)

A spiral fire escape shall be not less than 150 centimetres in diameter and shall be designed to give adequate headroom.

(VI)

Roof Exit. - Where roofs are used as roof gardens or for other habitable purposes, sufficient stairways shall be extended to it to provide the necessary exit facilities required for such occupancy.

(VII)

Ramps. -

(a)

Ramps with a slope of not more than 1 in 40 may be permitted for and shall comply with all the applicable requirements of required stairways as to enclosure, capacity and limiting dimensions, Ramps shall be surfaced with approved non-slipping material.

(b)

The minimum width of the ramps in hospitals shall be 2.25 metres.

(c)

Handrails shall be provided on both side of the ramp.

(d)

Ramps shall lead directly to outside open space at ground level of courtyards or safe place.

(VIII)

Corridors. -

(a)

The minimum width of a corridor shall be 1.0 metre.

(b)

For building more than 15 metres in height the interconnecting corridor between staircases shall be provided with at least one smoke stop door across the corridor or enclosed space between the doors in the enclosing walls of any two staircases.

(IX)

Refuge areas. -

(a)

For all buildings exceeding 15 metres in height excepting multi-family building, one refuge area on the floor immediately above 18 metres shall be provided.

(b)

Refuge area shall be provided on the external walls as cantilever projections or in any other manner (which will not be covered in floor area ratio) with a minimum area of 15 square metres and to be calculated based on the population on each floor at the rate of 1 square metres per person.

(X)

Fire and Structural Safety and Services

82A.

[Facilities for physically handicapped persons in all Public buildings/Public residence.

[Inserted by Notification No. F-3-66-2001-XXXII, dated 16-1-2002, published in Madhya Pradesh Rajpatra Part IV (Ga), dated 1-2-2002, pp. 18-20.]

(1) Access Path/Walk way. - Access path from plot entry and surface parking to- a Building entrance shall be minimum of 1800 mm wide having even surface without any steps. Slopes, if any, shall not have gradient greater than 5%. Selection of floor material shall be made suitable to attract or to guide visually impaired persons (limited to coloured floor material) whose colour and brightness is conspicuously different from that of the surrounding floor material or the material that emit different sound to guide visually impaired persons hereinafter referred to as guiding floor material "(Appendix-O)". Finishes shall have a non-slip surface with a texture traversable by a wheel chair. Curbs wherever provided should blend to a common level.

(2)

Parking. - For parking of vehicles of handicapped people the following provisions shall be made:-

(a)

Surface parking for two car spaces shall be provided near entrance for the physically handicapped persons with maximum travels distance of 30.0 meter from building entrance;

(b)

The width of parking bay shall be minimum 3.6 meter ;

(c)

The information stating that the space is reserved for wheel chair users shall be conspicuously displayed;

(d)

Guiding floor material shall be provided or a device which guides visually impaired persons with audible signals or other devices which serves the same purpose shall be provided.

(3)

Building requirements. - The specified facilities for the buildings for physically handicapped persons shall be as follows:-

(a)

Approach to plinth level;

(b)

Corridor connecting the entrance/exit for the handicapped;

(c)

Stair-ways;

(d)

Lift;

(e)

Toilet;

(f)

Drinking water

(4)

Approach to plinth level. - Every building should have at least one entrance accessible to the handicapped and shall be indicated by proper signage. This entrance shall be approached through a ramp together with the stepped entry.

(5)

Ramped Approach. - Ramp shall be finished with non slip material to enter the building minimum width of ramp shall be 1800 mm with maximum gradient 1:12 length ramp shall not exceed 9.0 meter having 800 mm high handrail on both side standing 300 mm beyond top and bottom of the ramp. Minimum gap from the adjacent wall to the handrail shall be 50 mm.

(6)

Stepped Approach. - For stepped approach Size of trade shall not be less than 300 mm and maximum riser shall be 150 mm. Provision of 800 mm high handrail on both sides of the stepped approach similar to the ramped approach.

(7)

Exit/Entrance Door. - Minimum clear opening of the entrance door shall be 900 mm and it shall not be provided with a step that obstructs the passage of a wheel chair user. These shall not be raised more than 12 mm.

(8)

Entrance Landing. - Entrance landing shall be provided adjacent to ramp with the minimum dimension 1800 mm X 2000 mm. The entrance landing that adjoin the top end of a slope shall be provided with floor material to attract the attention of visually impaired persons limited to coloured floor material whose colour and brightness conspicuously different from that of the surroundings for material or the material that emit different sound to guide visually impaired persons hereinafter referred to as "guiding floor material" (Appendix-O). Finishes shall have a non slip surface with a texture traversable by a wheel chair. Curbs wherever provided should blend to a Common level.

(9)

Corridor connecting the entrance/exit for the handicapped. - The Corridor connecting the entrance/exit for handicapped leading directly outdoors to a place where information concerning the overall use of the specified building can be provided to visually impaired persons either by a person or by signs, shall be provided as follows;

(a)

Guiding floor materials shall be provided or devices that emit sound to guide visually impaired persons;

(b)

The minimum width shall be 1500 mm ;

(c)

In case there is a difference of level slope ways shall be provided with slope of 1 : 2;

(d)

Handrails shall be provided for ramps/slope ways.

(10)

Stair ways. - One of the stair-ways near the entrance/exit for the handicapped shall have the following provisions:-

(a)

The minimum width shall be 1350 mm;

(b)

Height of the riser shall not be more .than 150 mm. and width of the tread 300 mm. The steps shall not have abrupt (square) nosing;

(c)

Maximum number of risers on a height shall be limited to 12;

(d)

Handrails shall be provided on both sides and shall extend 300 mm. on the top and bottom of each flight of steps.

(11)

Lifts. - Wherever lift is required as per rules, provision of atleast one lift shall be made for the wheel chair user with the following cage dimensions of lift recommended for passenger lift of 13 persons capacity by Bureau of Indian Standards:-

Clear internal depth

:

1100 mm.

Clear internal width

:

2000 mm.

Entrance door width

:

900 mm.

(a)

A handrail not less than 600 mm. long at 1000 mm. above floor level shall be fixed adjacent to the control panel.

(b)

The lift lobby shall be of an inside measurement of 1800 mm. x 1800 mm. or more;

(c)

The time of an automatically closing door should be minimum 5 seconds and the closing speed should not exceed 0.25 Meter per Second;

(d)

The interior of the cage shall be provided with a device that audibly indicate the floor the cage has reached and indicates

that the door of the cage for entrance/exit is either open or closed.

(12)

Toilets. - One special W.C. in a set of toilet shall be provided for the use of handicapped with essential provision of wash basin near the entrance for the handicapped:-

(a)

The minimum size shall be 1500 mm x 1750 mm;

(b)

Minimum clear opening of the door shall be 900 mm. and the door shall swing out;

(c)

Suitable arrangement of vertical/horizontal Handrails with 50 mm. clearance from wall shall be made in the toilet;

(d)

The W. C. seat shall be 500 mm. from the door.

(13)

Drinking Water. - Suitable provision of drinking water shall be made for the handicapped near the special toilet provided for them.

(14)

Designing for Children. - In the building meant for the pre-dominant use of the children, it will be necessary to suitably alter the height of the handrail and other fitting and fixture etc.]

83.

[Fire protection Requirements.

[Substituted by Notification No. 4343-HP-XXXII-88, dated 12-8-1988.]

(a)

The Government may designate a person or body to be designated as the "Fire Authority".

(b)

No high rise building shall be approved unless cleared, in writing by the Fire Authority.

(c)

Every building shall be designed and constructed to ensure fire safety and this shall be done in accordance with Para IV. "Fire Protection", of the code as revised from time to time. In the case of high rise building and buildings with more than 400 sq. metres ground coverage and all other buildings of industrial, storage, assembly and hazardous type, the building scheme shall conform to Schedule I of these rules.]

84.

[Structural Design. [[Substituted by Notification No. F. 3-127-XXXII-98, dated 3rd February, 2001, published in Madhya Pradesh Rajpatra (Asadharan) dated 3-2-2001, pp. 160-160(1) old Rule 84 runs as under:

84. Structural Design. - The structural design of masonry, timber, plain concrete, reinforced concrete, pre-stressed, concrete and structural steel shall be carried out in accordance with 'Part VI Structural Design, Section I-Loads, Section 2-Foundation, Section 3-Wood, Section 4-Masonry, Section 5-Concrete, Section 6-Steel of the Code as revised from time to time.']]

- The structural design of masonry, timber, plain concrete, reinforced concrete, pre-stressed, concrete and structural steel shall be carried out in accordance with "Part VI Structural Design, Section 1 Loads, Section 2-Foundation, Section 3 Wood, Section 4 Masonry, Section 5 Concrete, Section 6 Steel of the Code as revised from time to time.

For Earthquake prone areas in 15 districts namely-Sidhi, Shahdol, Jabalpur, Damoh, Narsinghpur, Raisen, Hoshangabad, Betul, Sehore, Dewas, East Nimar, West Nimar, Indore, Dhar and Jhabua the structural design must be in accordance with:-

For R.C.C. Construction & Pucca-brick construction

(i)

IS : 1893 - 1986

(ii)

IS : 13920 - 1993 (to be read with IS : 456, IS : 1893)

(iii)

IS : 4326 - 1993 (to be read with IS : 1893)

For low-strength masonry or clay mud and blocks

(iv)

IS : 13827 - 1993

(v)

IS : 13828 - 1993

For Repair & Strengthening

(vi)

IS : 13935 - 1993]

85.

Quality of Materials and Workmanship.

(1)

Quality of material-all materials and workmanship shall be of good quality conforming generally to accepted standards of Public Works Department of the State or Indian Standard Specifications or as included in Part V Building Materials and Part VII Constructional Practices and Safety of the Code as revised from time to time.

(2)

Quality of materials may be relaxed in LIG Scheme. - For housing schemes put up for economically weaker sections and low income groups, the quality of materials to be used may be relaxed subject to the approval of the Authority :

Provided that the housing units constructed of combustible materials are properly segregated from fire protection point of view.

(3)

Used Materials. - The use of old building material shall be allowed in construction provided that these conform to the standards of new materials as specified above.

(4)

Storage of Materials. - All building materials shall be stored on the building site in such a way as to prevent deterioration or impairment of their structural and other essential properties. Further, the storage of materials shall be done exclusively within a building plot. If in congested area where it is not possible to store within building plot, temporary storage of materials like sand, stone etc. may be permitted on the public roads by Authority provided that such storage does not cause serious traffic nuisance, both pedestrian and vehicular.

(5)

Burrow pits dug in the course of construction. - All burrow pits dug in the course of construction and repair of buildings, roads, embankments, and the like shall be deep and connected with each other in the formation of a drain directed towards the lowest level and properly sloped for discharge into a river stream, channel or drain and no person shall create any isolated burrow pit which is likely to cause accumulation of water which may breed mosquitoes.

(6)

Demolition. - Following provisions shall apply for any demolition work within any area to which these rules apply:-

(a)

Before commencing any work of demolition, a careful and detailed study shall be made of the structure to be demolished including its surroundings. While working out the plan of demolition, safety of the adjoining structures shall be ensured and a certificate to that effect by the Licensed Technical Personnel shall be produced. The final plan of sequence of operations shall have to be approved by the Authority.

(b)

Before commencing any demolition work, specific permission shall be obtained from the Authority, and shall be pasted prominently at the site.

(c)

If the structure to be demolished is one which may have hidden damage caused by fire, flood, or earthquake, measures necessary to prevent accidental collapse, such as bracing, shoring, and the like shall be provided to the satisfaction of the Authority.

(d)

Prominent danger signs shall be pasted all around the property and all openings giving access to the structures shall be barricaded and closed to all except the workmen. During night, warning light shall be placed on or above all barricades.

(e)

All gas, water, electrically, steam and other service lines shall be shut off outside the property line after notifying the

service companies and authorities concerned and obtaining their approval. Any temporary service connections required for the demolition work shall be separately taken and arranged in such a manner as to afford safety to the workmen.

(f)

When work is not in progress, watchman shall be provided to prevent unauthorised entry of the public into the danger zone.

(g)

All necessary safety appliances shall be issued to workers before starting of work.

(h)

Safety distances to ensure the safety of the public shall be clearly marked and indicated by signs. All main roads shall be kept open. Diversions for pedestrians shall be constructed, where necessary for safety.

86.

Building Services.

- The planning design, and installations, electrical installation, air-conditioning and heating work, shall be carried out in accordance with Part VIII "Building Services", Section 2 "Electrical installation", Section 3-"Air-conditioning and Heating" of the Code as revised from time to time.

87.

Plumbing Services.

- The planning, design, construction and installation of water supply, drainage and sanitation and gas supply systems shall be in accordance with Part IX "Plumbing Service" Section 1 "Water Supply", Section 2, "Drainage and Sanitation" and Section 3 "Gas Supply" of the Code as revised from time to time.

88.

Requirement of water supply in buildings.

- The requirement of water supply for various occupancies shall be as given in Tables 11, 12 and 13, subject to availability thereof.

Table-11

"Per Capita" water requirements for various occupancies/use

Sl. No.

Type of occupancy

Consumption per head per day (in litres)

subject to availability

1.

Residential

(a) in living units

135

(b) Hotels with lodging accommodation (per bed)

180

2.

Educational

(a) Day Schools

45

(b) Boarding Schools

135

3.

Institutional (Medical Hospitals)

(a) Number of beds not exceeding 100

340

3.

Institutional (Medical Hospitals)

(a) Number of beds not exceeding 100

340

(b) Number of beds exceeding 100

450

(c) Medical quarters and hostels

135

4.

Assembly-Cinema theatres, auditoria and like (Per seat of accommodation)

15

5.

Government or Semi/public business

45

6.

Mercantile (Commercial)

(a) Restaurants (per seat)

70

(b) other business buildings

45

7.

Industrial

(a) Factories where bath rooms are to be provided

45

(b) Factories where no bath rooms required to be provided

30

8.

Storage (including warehousing)

30

9.

Hazardous

30

10.

Intermediate stations (excluding mail and express stops)

45 (25)*

11.

Junction stations

70 (45)

12.

Terminal stations

45

13.

International and Domestic Airports

70

* The values in parenthesis are for stations where bathing facilities are not provided.

Note. - The number of persons for serial Nos. 10 to 13 shall be determined by the average of passengers handled by the station daily, due consideration may be given to the staff and workers likely to use the facilities.

Table-12

Flushing Storage Capacities subject to availability

S.No.

Classification of Building

Storage capacity

1.

For tenements having common conveniences

900 litres net per water closet seat.

2.

For residential premises other than tenements having common conveniences.

270 litres net for one water closet seat and 180 liters for each additional seat in the same-flat.

3.

For factories and workshops.

900 litres per water closet and 180 litres per urinal seat.

4.

For cinemas, public assembly halls etc.

900 litres per water closet seat and 350 litres per urinal seat.

Table-13

Domestic Storage Capacities

No.

No. of floors

Storage capacity

Remarks

For premises occupied as tenements with common conveniences.

1.

Floor 1 (Ground)

Nil

Provided no down-take fittings are installed.

2.

Floor 2, 3, 4, 5 and upper floors

500 litres per tenement

For premises occupied as Flats or Blocks.

1.

Floor 1

Nil

Provided no down take fittings are installed.

2.

Floor 2, 3, 4, 5 and upper floors

500 litres per tenement

Note 1. - If the premises are situated at a place higher than the roac level in front of the premises storage at ground level shall be provided on the same lines as on floor 2.

Note 2. - The above storage may be permitted to be installed provided that the total domestic storage calculated on the above basis is not less than the storage calculated on the number of downtake fittings according to the scales given below :-

Down take taps

70 litres each

Down take taps

135 litres each

Bath-tubs

200 litres each

89.

Requirements of Sanitary fittings.

- The sanitary fittings and installations for different occupancies shall be as given in Tables 14, 15, 16, 17, 18, 19, 20, 21, 22, 23, 24 and 25.

Table-14

Sanitation Requirements for shops and Commercial Offices

S.No.	
Fitments	
For Personnel	
1.	
Water closet	
One for every 25 persons or part thereof exceeding 15	
(including employees and customers).	
For female personnel 1 for every 15 persons or part thereof	
exceeding 10.	
2.	
Drinking Water Fountain	
One for every 100 persons with a minimum of one on each	
floor.	
3.	
Wash Basin	
One for every 25 persons or part thereof.	
4.	
Urinals	
Same as at serial No. 3 of Table 19.	
5.	
Cleaner's Sink	
One per floor minimum, preferably in or adjacent to sanitary	
rooms.	
Note. - Number of customers for the purpose of the above calculation shall be the average number of persons in the	
premises for a time interval of one hour during the peak period. For male-female calculation of ratio 1:1 may be	
assumed.	
Table-15	
Sanitation Requirements for hotels	
S. No.	
Fitments	
For residential public and staff	
For public rooms	
For non-residential staff	
For males	
For females	
For male	
For female	
1	
2	
3	
4	
5	
6	
7	
1.	
Water Closet	
1 per 8 persons omitting occupants of the room with attached	
water closet, minimum of 2 in both sexes lodged	
1 per 100 persons upto 400 persons for over 400 add at the	
rate of 1 per 250 persons or part thereof	
2 for 100 persons up to 200 persons over 200 add at the rate	

of 1 per 100 or part thereof

1 for 1-152 for 16-353 for 36-654 for 66-100

1 for 1-122 for 13-253 for 26-404 for 41-57

2.

Ablution taps

1 in each water closet

1 in each water closet

1 in each water closet

1 in each water closet

1 in each water closet

One water tap with draining arrangements shall be provided for every 50 persons or part thereof in the vicinity of water closet and urinal.

3.

Urinals

1 for 50 persons or part thereof

Persons Nil up to 61 for 7-202 for 21-403 for

41-704 for 71-100

4.

Wash basins

1 per 10 persons omitting the wash basins installed in the room suites

1 per water closet and urinal provided

1 for water closet provided

Persons 1 for 1-152 for 16-353 for 36-654 for

66-100

Persons 1 for 1-122 for 13-253 for 26-404 for

41-575 for 58-776 for 78-100

5.

Baths

1 per 10 persons omitting occupants of the room with bath in suite

6.

Slop sinks

1 for 30 bed rooms (one per floor minimum)

7.

Kitchen sinks

1 in each kitchen

1 in each kitchen

1 in each kitchen

1 in each kitchen

1 in each kitchen

Note. - It may be assumed that the two-thirds of the number are males and one third females.

Table-16

Sanitation requirements for Educational Occupancy

No.

Fitments

Nursery Schools

Boarding Institution

Other Educational Institutions

For Boys

For Girls

For Boys

For Girls

1

2

3

4

5

6

7

1.

Water Closet

One per 30 pupils or part thereof

One per 8 pupils or part thereof

One per 6 pupils or part thereof

One per 80 pupils or part thereof

One per 50 pupils or part thereof

2.

Ablution Tap

One in each water closet

One in each water closet

One in each water closet

One in each water closet

One in each water closet

One water tap with draining arrangements shall be provided for every 50 persons or part thereof in the vicinity.

3.

Urinals

One per 25 pupils or part thereof

One per 20 pupils or part thereof

4.

Wash Basin

One per 30 pupils or part thereof

One per 8 pupils or part thereof

One per 60 pupils or part thereof

One per 80 pupils or part thereof

One per 80 pupils or part thereof

5.

Baths

One bath sink per 40 pupils

One or every 8 pupils or part thereof

One for every 6 pupils or part thereof

Nil

Nil

6.

Drinking water fountains

One for every 50 pupils or part thereof

One for every 50 pupils or part thereof

One for every 50 pupils or part thereof

One for every 50 pupils or part thereof

One for every 50 pupils or part thereof

7.

Cleaners sink

One per floor minimum

One per floor minimum

One per floor minimum

One per floor minimum

Note. - For teaching staff, the schedule of fitments shall be the same as in the case of office buildings (table 19).

Table 17

Sanitation Requirements for Institutional (Medical) occupancy Hospitals

S. No.

Fitments

Hospitals with indoor patient wards

Hospitals with outdoor patient wards

Administrative building

For males and for females

For males

For females

For male personnel

For female personnel

1

2

3

4

5

6

7

1.

Water Closet

One for every 8 beds or part thereof

One for every 100 persons or part thereof

Two for every 100 persons or part thereof

One for every 25 persons or part thereof

One for every 15 person of part thereof

2.

Ablution Taps

One in each water Closet

One in each water Closet

One in each water Closet

One in each water Closet

One in each water Closet

One water tap with draining arrangements shall be provided for every 50 persons or part thereof in the vicinity of water closet and urinals.

3.

Wash Basins

2 up to 30 bed add one for every additional 30 beds or part thereof.

One for every 100 persons or part thereof

One for every 100 persons or part thereof

One for every 25 persons or part thereof

One for every 4 persons or part thereof

4.
Baths with shower
One Bath with shower for every 8 beds or part thereof
?
?
One on each floor
One on each floor
 5.
Bed pan washing sinks
One for each ward
?
?
?
?
 6.
Cleaners sink
One for each ward
One per floor minimum
One per floor minimum
One per floor minimum
One per floor minimum
 7.
Kitchen sinks and dish washes (where kitchen is provided)
One for each ward
?
?
?
?
 8.
Urinals
?
One for every 50 persons or part thereof
?
?
One up to 20 persons2-for 21-45 persons3-for 46-70
person4-for 71-100 personsfor 101 to 200 persons add at
the rate of 3 percentFor over 200 persons add at the rate of
2.5 percent
- Table 18
Sanitation requirements for Institutional (Medical) Occupancy (Staff Quarters & Hostels)
- S. No.
- Fitments
- Doctor's Dormitories
- Nurses Hostel
- For male staff
- For female staff
- 1
 - 2
 - 3
 - 4
 - 5

1.
Water closet
One for 4 persons
One for 4 persons
One for 4 persons or part thereof
 2.
Ablution taps
One in each water closet
One in each water closet
One in each water closet
 3.
Wash Basins
One for every 8 persons or part thereof
One for every 8 persons or part thereof
One for every 8 persons or part thereof
 4.
Baths (with shower)
One for 4 persons or part thereof
One for 4 persons or part thereof
One for 6 persons or part thereof
 5.
Cleaner's sinks
One per floor minimum
One per floor minimum
One per floor minimum
- Table 19
Sanitation Requirements for Governmental and public business occupancies and offices
- S. No.
- Fitments
- For males personnel
- For female personnel
- 1
 - 2
 - 3
 - 4
1.
Water closet
One for every 25 persons or part thereof
One for every 15 persons or part thereof
 2.
Ablution taps
One in each water closet.
One in each water closet
One water tap with draining arrangement shall be provided for every 50 persons or part thereof in the vicinity of water closets and urinals.
 3.
Urinals
Nil up to 6 personsOne for 7-20 persons2 for 21-45 persons3 for 46-70 persons4 for 71-100 personsFor 101 to 200 persons add at the rate of 3 percent.For over 200

persons add at the rate of 2.5 percent.

4.

Wash basins

One for every 250 persons or part thereof.

5.

Drinking water fountains

One for every 100 persons with a minimum of one for each floor.

6.

Baths

Preferably one on each floor

7.

Cleaners Sinks

One per floor minimum preferably in or adjacent to sanitary rooms

Table - 20

Sanitation requirements for residences

S. No.

Fitments

Dwelling with individual conveniences

Dwelling without individual Conveniences

(1)

(2)

(3)

(4)

1.

Bath Rooms

1 provided with water tap

1 for every three tenements

2.

Water closet

1

1 for every three tenements

3.

Sink (or NAHANI) in the floor

1

4.

Water Tap

1

1 with draining arrangements in each tenement in common bath rooms and common water closets

Note. - Where only one water closet is provided in a dwelling, the bath and water closet shall be separately accommodated.

Table 21

Sanitation Requirements for Assembly Occupancy Buildings (Cinema, Theatres and Auditoria)

S. No.

Fitments

For public

For staff

Male

Female

Male

Female

(1)

(2)

(3)

(4)

(5)

(6)

1.

Water closets

1 per 100 persons up to 400 persons.

3 per 100 persons up to 200 persons.

1 for 1-15 persons 2 for 16-35 persons

1 for 1-12 persons 2 for 13-25 persons

For over 400 persons, add at the rate of 1 per 250 persons or part thereof.

For over 200 persons add at the rate of 2 per 100 persons or part thereof.

2.

Ablution Taps

1 in each water closet

1 in each water closet

1 in each water closet

1 in each water closet

One water tap with draining arrangements shall be provided for every 50 persons or part thereof in the vicinity of water closets and urinals.

3.

Urinals

1 for 50 persons or part thereof

Nil up to 6 persons. 1 for 7-20 persons. 2 for 21-45 persons.

4.

Wash basins

1 for every 200 persons or part thereof.

1 for every 200 persons part thereof.

1 for 1-15 persons 2 for 16-35 persons

1 for 1-12 persons 2 for 13-25 persons

5.

Drinking water Fountains

1 for 100 persons or part thereof

Note. - It may be assumed that two-thirds of the number are males and one-third females.

Table-22

Sanitation Requirements for Assembly Occupancy Buildings (Art Galleries, Libraries and Museums)

S. No.

Fitments

For public

For staff

Male

Female

Male

Female

- (1)
- (2)
- (3)
- (4)
- (5)
- (6)

1.

Water closets

1 per 200 persons up to 400 persons. For over 400 persons, add at the rate of 1 per 250 person or part thereof.

1 per 100 persons up to 200 persons. For over 200 persons, add at the rate of 1 per 150 person or part thereof.

1 for 1-15 persons 2 for 16-35 persons

1 for 1-12 persons 2 for 13-25 persons

2.

Ablution Taps

1 in each water closet

1 in each water closet

1 in each water closet

1 in each water closet.

One water tap with draining arrangements shall be provided for every 50 persons or part thereof in the vicinity of water closets and urinals.

3.

Urinals

1 for 50 persons

Nil up to 6 persons 1 for 7-20 persons 2 for 21-45

person

4.

Wash basins

1 for every 200 persons or part thereof. For over 400 persons add at the rate of 1 per 250 persons or part thereof.

1 for every 200 persons or part thereof. For over 200 persons add at the rate of 1 per 150 persons or part thereof.

1 for 1-15 persons 2 for 16-25 persons

1 for 1-12 persons 2 for 13-25 persons

5.

Cleaners Sinks

1 per floor minimum.

Note. - It may be assumed that two-thirds of the number are males and one-third females.

Table-23

Sanitation Requirements for Restaurants

S. No.

Fitments

For public

For staff

Male

Female

Male

Female

- (1)
- (2)
- (3)
- (4)
- (5)
- (6)

1.

Water closets

1 for 50 seats upto 200 seats. For over 200 seats add at the rate of one per 100 seats or part thereof.

1 for 50 seats upto 200 seats. For over 200 seats, add at the rate of one per 100 seats or part thereof.

1 for 1-15 persons. 2 for 16-35 persons. 3 for 36-65 persons. 4 for 66-100 persons

1 for 1-12 persons. 2 for 13-25 persons. 3 for 26-40 persons. 4 for 41-57 persons. 5 for 58-77 persons. 6 for 78-100 persons

2.

Ablution Taps

1 in each water closet

1 in each water closet

1 in each water closet

1 in each water closet.

One water tap with draining arrangements shall be provided for every 50 persons or part thereof in the vicinity of water closets and urinals.

3.

Urinals

One per 50 seats.

Nil upto 6 persons. 1 for 7-20 persons. 2 for 21-45 persons. 3 for 46-70 persons. 4 for 71-100 persons

4.

Wash basins

1 for every water closet provided.

5.

Kitchen sinks and dish washer

1 in each kitchen.

6.

Stop or service sink.

1 in the restaurant.

Note. - It may be assumed that two-thirds of the number are males and one-third females.

Table - 24

Sanitation Requirements for Factories

S. No.

Fitments

For Male personnel

For Female personnel

- (1)
- (2)
- (3)
- (4)

1.

Water closets

1 for 1-15 persons 2 for 16-35 persons 3 for 36-65

persons 4 for 66-100 persons For 101 to 200 persons, add at the rate of 3 percent. For over 200 persons and at the rate of 2.5 percent

1 for 1-12 persons 2 for 13-25 persons 3 for 26-40

persons 4 for 41-57 persons 5 for 58-77 persons 6 for

78-100 persons For 101 to 200 persons, add at the rate of 5 percent. For over 200 persons add at the rate of 4 percent.

2.

Ablution Taps

1 in each water closet

1 in each water closet.

One water tap with draining arrangements shall be provided for every 50 persons or part thereof in the vicinity of water closets and in urinals.

3.

Urinals

Nil up to 6 persons. 1 for 7-20 persons 2 for 21-45

persons 3 for 46-70 persons 4 for 71-100 persons For 101

to 200 persons add at the rate of 3 percent. For over 200 persons add at the rate of 2.5 percent.

4.

Washing taps with draining arrangements

1 for every 25 persons or part thereof.

1 for every 25 persons or part thereof.

5.

Drinking water Fountains

1 for every 100 persons with a minimum of one on each floor.

6.

Baths (preferably showers)

As required for particular trades or occupations.

Note. - For many trades of a dirty or dangerous character, more extensive provisions are required.

Table - 25

Sanitary Requirements for Large Stations and Airports

Sl.No.

Place

WC for Males

WC for female

Urinals for Males only

(1)

(2)

(3)

(4)

(5)

1.

Junction station intermediate stations and bus stations.

3 for first 1000 persons and 1 for every subsequent 1000 persons or part there of.

4 for first 1000 persons and 1 for every additional 1000

persons or part thereof.

4 for every 1000 persons and 1 for a very additional 1000 persons or part thereof.

2.

Terminal stations and bus terminals

4 for first 1000 persons and 1 for every subsequent 1000 persons or part thereof.

5 for first 1000 persons and 1 for every subsequent 2000 persons or part thereof.

6 for first 1000 persons and 1 for every additional 1000 persons or part thereof.

3.

Domestic Airports, Min.

for 200 persons

for 400 persons

for 600 persons

for 800 persons

for 1000 persons

2*

5

9

12

16

18

4*

8

15

20

26

29

2*

6

12

16

20

22

4.

International airports

for 200 persons

for 600 persons

for 1000 persons

6

12

18

10

20

29

8

16

22

Note. - Provision for wash basins, baths including shower stalls, shall be in accordance with Part IX Section 2 Drainage

and Sanitation of the Code.

(x)

Special Requirements of Individual Occupancies

90.

Cinemas, Theatres and Public Assemble Halls.

(1)

No permission for construction of a building for cinema shall be granted by the Authority unless it conforms to the provisions of the Madhya Pradesh Cinema (Regulations) Act, 1952 (No. XVII of 1952) and the rules made thereunder.

(2)

Set back from regular line of the street for Cinema/Assembly buildings. - No person shall erect a building intended to be used as a cinema theatre or public assembly hall or convert the use of any existing building to any such purpose, unless such building is set back at least 9 metres from the regular line of the street or from the street, if no such line exists. Further the location for such building shall be governed by the provisions of development plans (if any) and subject to approval of the Authority.

91.

Factories and Industrial Structures-Provisions of the Factories Act, 1948 (No. LXIII of 1948) to apply.

(1)

In addition to the provisions of these rules, regulations prescribed under the Factories Act, 1948 (No. LXIII of 1948) and rules made thereunder shall be applicable.

(2)

Location of Factory. - The location of the factory site shall be governed by the provisions of development plans (if any) and shall be approved by the Authority. For areas having no development plan the Authority shall approve the site in consultation with the Director, Town and Country Planning, Madhya Pradesh.

(3)

Disposal of Trade Waste and Effluent. - In the case of a factory where the drainage system is proposed to be connected to the public sewerage system or natural water course nearby, prior approval of the arrangements shall be obtained from the Authority and the Madhya Pradesh State Prevention and Control of Water Pollution Board constituted under Water (Prevention and Control of Pollution) Act, 1974 (No. 6 of 1974), if found necessary and a copy of the approval shall be attached with the application. All the drainage systems shall be connected by a suitable trap as to exclude volatile and other objectionable matters.

(4)

Planning, design and construction of factories to be to the satisfaction of Chief Inspector of Factories. - The Planning design and construction of the factories and other industrial buildings shall be to the satisfaction of the Chief Inspector of Factories.

92.

Petrol filling stations.

- The location of the petrol filling stations and its layout shall be approved by the Authority in consultation with the Director, Town and Country Planning, Government of Madhya Pradesh depending upon the width of roads, normal value of traffic, location with respect to points of intersections and proximity to occupancies of educational assembly/mercantile, storage and hazardous uses.

93.

Signs and outdoor display structure-Provisions of Code to apply.

- (i) Subject to these rules, the display of advertising signs on buildings and lands shall be in accordance with Part X-"Signs and Outdoor Display structures" of the Code as revised, from time to time.

(2)

In the case of shopping units in commercial areas and/or residential-cum-commercial buildings, the display boards shall be at the same height above the shopping arcade and shall ordinarily be 45.5 centimetres to centimetres height. The placement and size of the boards shall form a part of the bunding than permission and no change therein shall be permitted nor shall any additional boards be allowed to be displayed.

(3)

General. - The following signs are prohibited along National Highways, State Highways, and other major roads of width

exceeding 18

(a)

any sign that by reason of its shape, position or colour may be confused with an authorised traffic sign or signal;

(b)

any sign containing the word "Stop" "Lock" "Danger" or other similar word that might mislead or confuse the travellers;

(c)

any sign that is attached to or printed on a rock or other natural objects; and

(d)

any sign that is located within a public right-of-way unless it is an official street name, traffic signs or signal or other official sign.

(4)

Ground Signs. - Following provisions shall apply for ground signs within any area to which these rules apply:-

(a)

Dimension. - No ground sign shall be erected to a height exceeding 9 metres above the ground. Lighting reflections may extend beyond the top of face of the sign;

(b)

Supports and Anchorage. - Every ground sign shall be firmly supported and anchored to the ground, supports and anchors shall be of treated timber in accordance with good practice or metal treated for corrosion resistance or masonry or concrete;

(c)

Obstruction to Traffic. - No ground sign shall be erected so as to obstruct from access to or egress from any building; and

(d)

Set Back. - No ground sign shall be set nearer to the street line than the established building line.

(5)

Roof sign. - Following provisions shall apply for Roof signs within any area to which these rules apply:-

(a)

Location. - No roof sign shall be placed on or over the roof of any building, unless the entire roof construction is of noncombustible material;

(b)

Projection. - No roof sign shall project beyond the existing building line of the building on which it is erected or shall extend beyond the roof in any direction: and

(c)

Support and Anchorage - Every roof sign shall be thoroughly secured and anchored to the building on or over which it is erected All loads shall be safely distributed to the structural members of the building.

(6)

Wall signs - Following provisions shall apply for wall signs within any area to which these rules apply

(a)

Dimensions - The total area of the sign shall not exceed 10 per cent of the total area of the facade on which the sign is created. The facade of the building shall be sub-divided into blocks of uniform height and the area of the sign erected on a particular block shall not exceed 10 per cent of the area of that block;

(b)

Projection-No wall sign shall extend above the top of the wall or beyond the ends of the wall to which it is attached. At any place where pedestrians may pass along a wall, any wall sign attached thereto shall not project more than 7.5 centimetres therefrom within a height of 2.5 metres measured from the level of such place,

(c)

Support and Attachment-Every wall sign shall be securely attached to walls. Wooden blocks or anchorage with wood used in connection with screws, staples or nails shall not be considered proper anchorage, except in the case of wall signs attached to walls

(d)

Reflectors-Lighting reflectors may project 2.4 metres beyond the face of the wall provided such reflectors are at least 4

metres above the footpath level, but in no case shall such reflectors project beyond a vertical plane one metre inside the kerb line.

(7)

Projecting Signs-No projecting sign or any part of its supports or framework shall project more than 2 metres beyond the main face of the building to which such sign is attached. At every place where may pass underneath a projecting sign, an over-head clearance of at least 2.5 metres shall be maintained.

94.

Special requirements of Low-Income Housing Group.

- Notwithstanding anything contained in these rules, special requirements for low income housing such as E.W.S. and L.I.G. Housing Schemes Developed as clusters by Public/Agencies/Government bodies shall be as given in Appendix M.

95.

Power of Relaxation.

- The Director of Town and County Planning, Government of Madhya Pradesh may permit special relaxation to any of the rules, provided the relaxation sought does not violate the health safety, fire safety, structural safety, public safety of the inhabitants and the building and neighbourhood.

96.

[Plinth construction check survey.

[Rules 96 to 98 added by Notification No. 4343-H.P.-XXXII-88, dated 12-8-88.]

- In the use of a high rise building, on completion of the construction of the plinth the owner of the building shall obtain from the authority a certificate to the effect that the plinth has been constructed strictly in accordance with the permissible covered area. The owner shall give a notice to the authority, which shall either issue the certificate or order suitable changes to be made as per the approved site plan. The owner shall carry out such instructions as are given, failing which the authority will be competent to demolish such part of the plinth as is under objection. The granting of a certificate or the issue of instructions regarding necessary changes will be done within 15 days of the notice, failing which it will be deemed that the certificate has issued.

97.

Issue of Service Certificate.

- On completion of the civil works of the building the owner shall give an application to the Authority for issue of a services certificate on the basis of which service connections, especially, water, sewerage and power, shall be granted by the authorities concerned. If the certificate is not issued within 15 days of the notice, or suitable instructions for changes have not been issued by the authority within the period, it would be deemed that the certificate has issued.

98.

Completion certificate.

- Every owner of a high rise building on completion of the building and before its occupation shall obtain, from the authority, a completion certificate to the effect that the building has been completed as per the sanctioned plan. Occupancy of a building for which a completion certificate has not been obtained shall be deemed to be a violation of the permission as per the provisions of under Section 36 of the Madhya Pradesh Nagar Tatha Gram Nivesh Adhiniyam, 1973 (No. 23 of 1973) and shall invite the penalty prescribed therein].

Appendix A

[Rule 17(1)]

Form for First Application to Develop, Erect, Re-Erect or to Make Alteration in any Place in a Building

To

.....

.....

.....

Sir,

I hereby give notice that I intend to develop, erect, re-erect or to make alteration in the building No.....or to.....on/in Plot No.....in colony/Street.....Mohalla/Bazar/Road.City.....and in accordance with the Rule 17 of the Madhya Pradesh Bhumi Vikas Rules, 1984. I forward herewith the following plans and specifications in quadruplicate duly signed by me and..... the Architect/Structural

Engineer/Engineer/Supervisor/Town Planner.

(Name in Block letters)

Licence No.....who will supervise its erection

1. Key Plan

2. Site Plans

3. Sub-Division/Layout Plan

4. Building Plans

5. Services Plans

6. [Specifications, General and Detailed]

[A format may be prepared by the Authority for direct use.]

7. Ownership Title.

I, request that the development construction may be approved and permission accorded to me to execute the work.

Signature of the Owner.....

Name of the Owner.....

Address of the Owner.....

Date.....

Appendix B

[Rule 17 (9)]

Form for Supervision

I hereby certify that the development, erection, re-erection or material alteration in/of Building No.....or the on/in Plot No.....in Colony/Street Mohalla/Bazar/Road.....City.....shall be carried out under my supervision and I certify that all the materials (type and grade) and the workmanship of the work shall be generally in accordance with the general and detailed specifications submitted alongwith, and that the work shall be carried out according to the sanctioned plans.

Signature of Architect/Structural Engineer/Engineer,
Supervisor/Town Planner

.....

Name of Architect/Structural Engineer /Engineer /Supervisor
/Town Planner

.....

(in block letters)

Licence No. of Architect/Structural Engineer / Engineer
/Supervisor /Town Planner

.....

Address of Architect/Structural
Engineer/Engineer/Supervisor/Town Planner

.....

Date.....

Appendix C

[Rule 26]

Name of the Authority having jurisdiction

Form of Licence Issued under Madhya Pradesh Bhumi Vikas Rules, 1984 To work as Architect/structural
Engineer/engineer/supervisor/town Planner

Licence No 20.....

Date.....

This licence is granted to Shri/Messrs (Name & Address).....to perform duties of [Architect]

[Strike off which is not required.]

/Structural Engineer/Engineer/Supervisor/Town Planner as laid down in Madhya Pradesh Bhumi Vikas Rules, 1984
within the jurisdiction of the (Name of the authority having jurisdiction).

This licence will expire on the.....20.....

The licensee has paid the fee Rs.....vide Receipt No.... Book No.....Date.....

This licence is subject to the conditions set forth hereunder.

PlaceDate

Seal ofAuthority

Signature & designationof the authorised Officer to
grant licence.

Conditions

1. The licence is non-transferable.
2. The licensee shall display the original copy of this licence on a conspicuous place in his/their office and it shall be subject to inspection by the authorised officers of.....(Authority having jurisdiction) at all reasonable times.
3. The licensee shall get this licence renewed prior to the date of its expiry.
4. The licensee shall abide by the provisions of the Madhya Pradesh Bhumi Vikas Rules, 1984 and work strictly within the terms of this licence.
5. The competence of the licensee shall be restricted as under :-
 - A. Architect-The licensed Architect shall be competent to carry out the work related to the building permit as given below and shall be entitled to submit-
 - (a) all plans and information connected with building permit;
 - (b) structural details and calculations for residential buildings on plot up to 500 square metres and up to three storeys or 11 metres in height;
 - (c) certificate of the supervision and completion of all buildings;
 - (d) all plans and related information connected with development permit of area up to one hectare; and
 - (e) certificate of supervision c*f development of land of area upto one hectare.
 - B. Structural Engineer-The licensed Structural Engineer shall be competent to carry out the work relating to permission of building etc. and shall be entitled to submit-
 - (a) all plans and information connected with permission for all buildings irrespective of size and height;
 - (b) structural details and calculations for all buildings;
 - (c) certificate of supervision and completion of all buildings;
 - (d) all plans and related information connected with permission for development of area up to one hectare;
 - (e) certificate of supervision for development of land upto one hectare in area.
 - C. Engineer-The licensed Engineer shall be competent to carry out the work related to the building permit as given below and shall be entitled to submit-
 - (a) all plans and information connected with building permit;
 - (b) structural details and calculations for all buildings;
 - (c) certificate of supervision and completion for buildings up to 500 sq. metres and 4 storeys (15m);
 - (d) all plans and related information connected with development permit of area up to one hectare; and
 - (e) certificate of supervision for development of land of area up to one hectare.
 - D. Supervisor-The licensed Supervisor shall be entitled to submit-

(a)
all plans and related information connected with building permit for residential buildings up to 200 square Metres and up to two storeys or 7.5,metres in height.

(b)
certificate of supervision for buildings in (a).

E. Town Planner-The licensed Town Planner shall be entitled to submit-

(a)
all plans and related information connected with development permit of all areas;

(b)
certificate of supervision for development of land of all areas.

b. Group of Agency-When an agency or a group of a qualified architect or engineer or town planner is practising then the qualification and competence of work will be combination of the individual qualifications and competence.

6. The licensee shall keep all relevant records for the preparation of plans and supervision work done by him. This record shall be subject to inspection by the authorised officers of the Authority having jurisdiction.

7. The licensee shall put up his signature, name and licence number of each document prepared and submitted to the Authority having jurisdiction,

8. This licence is subject to the conditions set forth in the Madhya Pradesh Bhumi Vikas Rules, 1984 and any breach of any of these conditions will entail cancellation of the licence without prejudice to any other legal action against the licensee under any law for the time being in force.

Appendix D

[Rule 27]

Form for Sanction of Refusal of Permission of Development Permission for Building

To

.....
.....
.....

Sir,

With reference to your application.....dated.....for grant of permit for the development of land/building in khasra No. . . .on/in plot No.....in colony/street..... Mohalla/Bazar.....City No.....I have to inform you that the sanction has been refused/granted by the Authority on the following grounds/subject to the following terms and conditions :-

2.

3.

4.

5. or

Officer Stamp

Office (Communication)

No.

Dated

.....

Signature of the Authority Name and Designation Address of Authority

Appendix E

[Rule 31 (2)(d)]

Form for Notice for Commencement

I hereby certify that the development of land, erection re-erection or material alteration in/of building No.....of.....or the.....on/in plot No.....Colony/Street..... Mohalla/Bazar/Road.....City.....shall be commenced on..... as per your permission vide No dated.....under the supervision ofLicensed Architect/Structural Engineer/Engineer/Supervisor/Town Planner, Licence No.....and in accordance with the plans sanctioned vide No.....dated.....

Signature of Owner

Name of Owner (in block letters)

Address of Owner

Dated

Appendix F

[Rule 31 (2)(c)]

Form of Notice for Inspection of Building at Plinth Level

I hereby notify that the erection, re-erection or material alteration in/of building No.....or the.....on/in plot No..... building No. colony/street.....Mohalla/Bazar/Road.....City.....for which a notice of commencement was given on.....has reached plinth level. You are therefore, requested to inspect the work within seven days from the date of this notice where after I shall commence erection above plinth level.

The said work is covered by your permission given vide No.....dated.....and is being done under the supervision of.....licensed Architect/Structural Engineer/Engineer/Supervisor/Town Planner licence No and in accordance with the plans sanctioned vide No Dated.....

Dated :

Signature of the ownerName of owner (in block letters)Address of owner

Dated:

Appendix G

[Rule 31 (2)(f)]

Form for Completion Certificate

I hereby [certify]

[Strike out whichever is not applicable.]

that the development of land, erection, re-erection or material alteration in/of building No.....or the.....on/in plot No.....in Colony/Street..... Mohalla/Bazar/Road.....has been supervised by me and has been completed onaccording to the plans sanctioned, vide No.....dated.....The work has been completed to my best satisfaction, the workmanship and all the materials (type and grade) have been used strictly in accordance with general and detailed specifications. No provisions of Madhya Pradesh Bhumi Vikas Rules, 1984 no requisition made, conditions prescribed or orders issued thereunder have been transgressed in the course of the work. The land is fit for construction for which it has been developed or re-developed or the building is fit for use for which it has been erected or altered, constructed and enlarged.

I hereby also enclose the plan of the building completed in all aspects. Signature of

Signature of Architect/Structural Engineer/Engineer,

Supervisor/Town Planner

.....

Name of Architect/Structural Engineer /Engineer /Supervisor

/Town Planner

.....

(in block letters)

Licence No. of Architect/Structural Engineer / Engineer

/Supervisor /Town Planner

.....

Signature of the owner

Name and address of owner (in block letters)

Date

Appendix H

[Rule 31 (2)(g)]

Form for Occupancy Permit

The work of erection, re-erection or alteration in/of building No.....or the..... on/in Plot No.....in Colony/Street Mohalla/Bazar/Road.....City.....completed under the supervision of.....Architect/Structural Engineer/Engineer/Supervisor, Licence No.....has been inspected by me. The building can be permitted/not permitted for occupation subject to the following :-

1.

2.

3.

One set of completion plans duly certified is returned herewith.

Signature of the Authority.

Office Stamp Date

Appendix J

[Rule 38 (1)]

Industries Permitted in Residential and Commercial Zones

Part I ? A List of Industries which may be Permitted in Zone R1

1. Agarbatti, Dhoop Batti Etc.

2. Cane and Bamboo products

3. Clay modelling

4. Zari work

5. Hosiery Garments (not hosiery cloth)

6. Products such as-

(i)

Blanco cake

(ii)

School chalk

(iii)

Tailoring chalk

(iv)

Chalk crayon

7. Food products including ice cream, sweets, jam, jelly, sauces, cakes, "Papad" and "Badi", scented supari, creamery vermicelli, potato chips and popcorn

8. Book binding

9. Framing of pictures and looking glasses (not frame making)

10. Tailoring, Readymade garments

11. Thread balls

12. Assembly and repairing of domestic electric & electronic items

13. Umbrella assembly

14. Ivory carving

15. Card board boxes

16. Toys and Dolls (except plastic, mechanical or rubber)

17. Candles

18. Carpentry (only with hand tools)

19. Leather (footware) and fancy articles from resin and leather

20. "Khadi charkha"

21. Spectacles

22. Photocopy and cyclostyling

23. Stove pins, aluminium buttons

24. Sweater knitting

25. Embroidary

26. Writing ink

27. Camphor and phenyle tablets

28. Cleaning and detergent powder

29. Rubber stamps

30. Decorated glass articles

31. "Shikakai" and soap nut powder

32. File covers

33. Industrial hand gloves

- 34. Refil (ball point pen)
- 35. Nail polish
- 36. Miniature electric bulb decorative series (only preparation allowed)
- 37. Typewriters and Duplicating machine repairing
- 38. Cycle repairs
- 39. Manufacture of Bidi without power (only with manual labour).
- 40. Flour Mills up to 7.5 K.W.
- 41. [Computing devices including :]
[Inserted by Notification No. F-3-183-XXXII-2000, dated 15-2-2001, published in Madhya Pradesh Rajpatra (Asadharan) dated 15-2-2001, pp. 192 (3-6).]
 - (i)
Desktop
 - (ii)
Personnel Computer
 - (iii)
Servers
 - (iv)
Work-Station
 - (v)
Nodes
 - (vi)
Terminals
 - (vii)
Net-work P.C.
 - (viii)
Home P.C. ,
 - (ix)
Lap-top Computer
 - (x)
Note Book Computer
 - (xi)
Palm Top Computer PDA.
- 42. Net-work Controller Cards/Memories including:
 - (i)
Net-work Interface Card (NIC)
 - (ii)
Adapter-Ethornet/PCI/EISA/Conmbao/PCMCIA.
 - (iii)
SIMMS-Memory
 - (iv)
DIMMs-Memory
 - (v)
Central Processing Unit (CPU)
 - (vi)
Controller-SCSI/Array
 - (vii)
Processors-Processor/Processor Power Module/Upgrade
- 43. Storage Units including:
 - (i)
Hard Disk Drives/Hard Drives
 - (ii)

Raid Devices & their Controllers

(iii)

Floppy Disk Drives

(iv)

C.D. ROM Drives

(v)

Tape-Drives-DLT Drives DAT

(vi)

Optical Disk Drives

(vii)

Other Digital Storage Devices

(viii)

CD WRITE-RE WRITE DEVICES.

44. Others :

(i)

Key Board

(ii)

Monitor

(iii)

Mouse

(iv)

Multi-media Kits.

45. Printers and Output Devices including :

(i)

Dot-Metrix

(ii)

Laserjet

(iii)

Inkjet

(iv)

Deskjet

(v)

LED Printers

(vi)

Line Printers

(vii)

Glotters

(viii)

Pass-book Printers.

46. Net-working products including:

(i)

Hobs

(ii)

Routers

(iii)

Electronic Switches

(iv)

Concentrators

(v)

Trans-receivers.

47. Software including:

(i)
Application Software

(ii)
Operating system

(iii)
Middleware/Firmware.

48. Power supplies to Computer Systems including :

(i)
Switch, mode power supplies

(ii)
Uninterrupted power supplies.

49. Net-working/Cabling & related accessories (related to I.T. Industry)

(i)
Fibre Cable

(ii)
Signal Single Cable (Copper)

(iii)
Cables

(iv)
Connectors, Terminal Blocks

(v)
Jack panels, patch cord

(vi)
Mounting Cord, patch panels

(vii)
Bread Borads, wiring blocks

(viii)
Surface mount boxes.

50. Consumables including:

(i)
C.D. ROM/Compact Disk

(ii)
Floppy Disk

(iii)
Tapes DA/DLT

(iv)
Prints Ribbons

(v)
Toners for printers

(vi)
Inkjet Cartridges

(vii)
Inks for Output devices.

51. Electronic Components : Used for Computers in IT.

(i)
Printed Circuit Board assembly/populated.

(ii)
Printed Circuit Board/PLB

(iii)
Transistors

(iv)

Integrated Circuits/ICs

(v)

Diodes/Thyristor/LED

(vi)

Resistors

(vii)

Capacitors

(viii)

Switches (On/off, Push button, Rocker etc).

(ix)

Plugs/Sockets/relays used for Computers/Electronic.

(x)

Magnetic heads for Computer devices and Print heads for Computer Printers.

(xi)

Connectors

(xii)

Microphones/Speakers used in Computers

(xiii)

Fuses.

52. Tele-Communication Equipments including:

(i)

Videophones

(ii)

Fax Cards

(iii)

Multiplexers/Muxes

(iv)

Modome

(v)

Amtonna & Mest

(vi)

Wireless datacom equipment-including Set

(vii)

Top Boxes for both Video and Digital Signalling

(viii)

VSATS

(ix)

Video Conferencing Equipments.

53. I.T. enable service such as Transcriptions.

Note. - 1. Whole-salers, retailers, marketing agents, distributors consignment and forwarding agents dealing in the above items shall not be included.

2. Condition of "not more than 5 workers at a time are employed" is not applicable for industries listed after number 40].

Part II ? List of Industries Which may be Permitted in Zone R2

1. A floor mill maximum power 5 K.W.

2. Printing press Maximum 5 K.W.

3. Service stations for light vehicle like Mopeds and cars only 5 K.W. (Max.)

4. Dry cleaning, dyeing and darning 3 K.W. (Max.)

5. Wire products 3 K.W. (Max).

These products will include only-

(i)

Paper pins

(ii)

Blouse hooks

(iii)

Gem clips

(iv)

Glued staples

(v)

Curtain rings

(vi)

Key rings

In the case of industries from 1 to 5 above, the distance between two industries should not be less than one-half kilometre and the distance from nearest residential building should not be less than 4.5 metres.

6. Cotton filling, wood carrying and artistic wares, plastic products, Cogappes and brass products, block making and enlargements may be allowed with motive power upto 1 K.W. only in areas that may be specified for such industries and until such areas are specified, in shopping centres.

Part III ? List of Items Manufacture of Which may be Allowed in Commercial areas with A Restricted Power Load of 5 K.W.

Commercial/Hosiery/Paper Products

1. Printing press

2. Tel Ghani

3. Shoe-laces

4. File Tags

5. File covers (hard board)

6. Auto-painting

7. Plastic injections moulded goods

8. Plastic blow moulded goods

9. Plastic compression moulded goods

10. Tyre re-treading (with boiler)

11. Optical lens Grinding

12. Paper products

(i)

Plates

(ii)

Cups

(iii)

Envelops

(iv)

Drinking Straws

(v)

Paper bags.

13. Card Board boxes

14. Polythene Bags (hand process)

15. Plastic rain-coats, file covers, dairy covers and the like.

16. Ball point pens and fountain pens

17. Upholstery work

18. Battery recharging

19. Cycle seat covers

20. Electroplating

21. Laundry

22. Tooth powder

23. "Agarbatti"

24. Fountain pen ink and writing ink
25. Bakelite electrical accessories
26. Confectionery
27. Bread making
28. Shoes and chappals
29. Foam leather belts, travelling goods, and the like
30. Industrial leather gloves
31. Wicks for stoves
32. Cosmetic
33. Plastic name plates
34. Pharmaceutical tabletting and capsule filling and liquid filling
35. Meethi supari
36. Ice-candy
37. Jams, Jelleys, pickles, sauces, etc.
38. Readymade garments
39. Surgical bandages
40. Reeling of threads
41. Scientific glass apparatus
42. Exercise-books
43. Distilled water
44. Rubber stamps
45. Rubber balloons
46. Grinding of species
47. Pan Masala
48. Detergent powder
49. Sports goods
50. Chalk crayons
51. Flour mills (chakki)
52. Watch straps (PVC)
53. Creamery and dairy products
54. Re-packing of medicines and the like.
55. Transistor Radio covers (leather)
56. Dyeing and darning
57. Photostat copy centre and cyclostyling
58. Knitting of sweaters etc.
59. Embroidary electrical
60. Voltage stablisers
61. Electric motor winding
62. Refrigerator repairing
63. Battery eliminators and chargers
64. Hi-fi-speakers
65. Heating elements
66. Decoration service of miniature lamps
67. Etching of printed circuit boards
68. Small transformers and chokes
69. Electric bells and Buzzers
70. Emergency lights
71. One/two band transistor radios
72. Loud speaker assembly
73. RF/IF Transformer and tuning coils
74. Wire wound Registers

75. Aerials/Antennas Radio Receivers/TV Receivers

76. Electronic Fan regulators

77. Electric light dimmers

78. Electronics Gas Lighters/Cigarette lighters

79. Electric-Mechanical components for Electronic appliances.

(a)

Switches other than Reed Relays

(b)

Relays other than Reed Relays

80. Repairing of Electrical/Electronic Domestic Appliance instruments.

Mechanical

81. Scooter and car repairing and servicing

82. Sewing machine spacing assembly and repairing

83. Link clips

84. Paper pins/Gem clips

85. Shoe eye lets

86. Aluminium furniture

87. Watch straps (Metallic)

88. Hair pins

89. Wire made kitchen stands

90. Umbrella assembly

91. Venetian Blinds

92. Buckles

93. Fountain pen nibs

94. Spectacle hinges

95. Hose clamps

96. Imitation Jewellery

97. Pile mechanism

98. M.S. Washers

99.

Wooden toys

100.

Wooden electrical fittings

101.

Luggage carriers

102.

Photo framing

103.

Watch repairing

104.

Bicycle assembly and repairing

105.

Gold smithy.

Appendix K

[Rule 49 (3)]

Form for Obtaining Proposals of Development Plan

To

The Authority

[.....]

[Name of City/Municipal Corporation/Municipality/Development Authority/Town Planning Officer.]

Madhya Pradesh.

Sir,

I hereby intend to develop/redevelop the land of khasra No.....on/in plot No.....in Colony/Street..... in Mohalla/Bazar..... in City.....The proposals of the Development Plan/Zonal Development Plan pertaining to the area may be made available for the preparation of sub-division plan for the land referred to above. The necessary payment for procuring the proposals of Development Plan/Zonal Development Plan has been made and the attested copy of receipt is enclosed.

Signature of Owner Name of Owner (in block letters)Address of Owner

Appendix L

[Rule 81]

Off-Street Parking Spaces

L-1. The spaces to be left out for off-street parking as given in L-2 to L-6 shall be in addition to the open spaces left out for lighting and ventilation purposes as given in Rule 80. However, one row of car parking may be provided in the front open space of 12 metres without reducing the clear vehicular accessway to less than 6 metres.

(2)

Further 50 percent of the open spaces required under Rule 55 around buildings may be allowed to be utilized for parking or loading or unloading spaces, provided that minimum distance of 3.6 metres around the building shall be kept free from any parking, loading or unloading spaces.

L-2. Each off-street parking space provided for motor vehicles (car) shall not be less than 13.75 square metres area, and for scooters and cycles the parking spaces provided shall not be less than 1.25 square metres and 1.00 square metre, respectively.

L-3. For building of different occupancies, off-street parking space for vehicles shall be provided as stipulated below :-

(a)

Motor Vehicles-Space shall be provided as specified in the following Table for parking motor vehicles (cars).

Table

Off-Street parking spaces

(Clause L-(3))

One car parking space for every

Sl. No.

Occupancy

Population 2,00,000 to 10,00,000

Population 50,000 to 2,00,000

Population less than 50,000

(1)

(2)

(3)

(4)

(5)

1.

Residential (i) Multi-family

(a) 2 tenements having carpet area 101 to 200 square meters.(b) 1 tenements Exceeding 201 sq. meters carpet area.

(ii) Lodging establishments tourist Homes and hotels, with lodging accommodations.

4 guest rooms

8

12

2.

Educational

70 square meters carpet area or fraction thereof

Administrative office area and public service areas.

3.

Institutional (Medical)

10 beds (private) 15 beds (public)

15 (private) 25 (public)

20 (private) 30 (public)

4.

(i) Assembly Halls, Cinema Theatres

25 seats

80

120

(ii) Restaurants Up to first 20 seats nil, one for every

Additional

20 seats

40

60

(iii) Marriage Halls, Community Hall

200 square meters plot area.

400 square meter plot area.

600 square meter plot area.

5.

(i) Business office and firms for private business.

100 square meters carpet area or fraction thereof.

200 square meter carpet area or fraction thereof.

300 square meter carpet area or fraction thereof.

(ii) Public/or semi-public offices.

200 square meters carpet area.

300 square meters carpet area.

500 square meters carpet area.

6.

Mercantile

100 square meters carpet area or fraction thereof.

200 square meters carpet area or fraction thereof.

300 square meters carpet area or fraction thereof.

7.

Industrial

200 square meters carpet area or fraction thereof.

300 square meter carpet area or fraction thereof.

400 square meters carpet area or fraction thereof.

8.

Storage

500 square meters or part thereof.

Note 1. - In the case of auditoria for educational buildings parking space shall be provided as Per Serial No. 4.

Note 2. - For plots upto 100 square metres as in the case of shops. Parking space need not be insisted on.

Note 3. - For other institutions transport/communication centre parking space requirement shall be assessed based on proposed building.

Note 4. - The requirement for off-street parking for metropolitan city with population more than 4,00,000 shall be broadly based on column (3) and appropriately adopted to suit the increased traffic generated, the traffic pattern as well as the nature of vehicles in the city.

(b)

Other type of vehicles-For non-residential building, in addition to the parking areas provided in (a) above, 25 to 50 per cent, additional parking space shall be provided for parking other types of vehicles and the additional spaces required for other vehicles shall be as decided by the Authority, keeping in the nature of traffic generated in the city.

L-4- Off-street parking space shall be provided with adequate vehicular access to a street and the area of drives, aisles and such other provisions required for adequate manoeuvring of vehicles shall be exclusive of the parking space stipulated in these rules.

L-5. If the total parking space required by these rules is provided by a group of property owners for their mutual benefits, such use of this space maybe construed as meeting the off-street parking requirements under these rules, subject to the approval of the Authority.

L-6- In addition to the parking spaces provided, for buildings of Mercantile (Commercial), Industrial and Storage, at the rate of one such space of 3.5 metres x 7.5 metres for loading and unloading activities, for each 1000 square metres of floor area or fraction thereof, shall be provided.

L-7. - Parking spaces shall be paved and clearly marked for different types of vehicles.

L-8. - In the case of parking spaces provided in basements at least two ramps of adequate width and slope shall be provided located preferably at opposite ends.

[Appendix L-(A)]

[Inserted by Notification No. 23 (107)-95-XXXII-(I), dated 7th April, 2000.]

[See Rule 81]

In providing the parking, care has to be taken that minimum 25% of the open space is left for landscaping (soft surface) and is not accounted for into parking calculations.

Note. - Area for each car space :-

(i)

Basement

35 Sq. m.

(ii)

Stilts

30 Sq. m.

(iii)

Open

25 Sq. m.

Parking space shall be provided with adequate vehicular access to a street and the area of drive, aisles and such other provisions required for adequate manoeuvring of vehicle shall be inclusive of the parking space stipulated in these rules.

If the total parking space required by these rules is provided by a group of property owners for their mutual benefits, such parking shall meet the requirements under these rules subject to the approval of the Authority.

In addition to the parking spaces provided, for buildings of wholesale market, Industrial and Storage, at the rate of one such space for loading and unloading activities for each 100 sq. m. of floor area or fraction thereof exceeding the first 200 sq. m. of floor area, shall be provided. Parking spaces shall be paved and cleanly marked for different types of vehicles.

In the case of parking spaces provided in basement, at least two ramps of adequate width and slope shall be provided, located preferably at opposite ends."

Appendix M

[Rule 94]

Special Requirements for Low Income Housing Only

1. General. - (1) The requirements cover the planning and general building requirements of low income housing developed as clusters. The requirements regarding layout planning of low income housing colonies are applicable to Public agencies/Government bodies. The requirements on design and construction of buildings for low' income housing in approved layouts are applicable to public agencies/Government bodies or private builders.

(2)

In these planning standards, the general development plan requirements for Community open spaces estimated at 0.2 hectare per thousand person is provided : road areas are worked out between 10 to 25 per cent of the site area : one nursery school of 0.1 hectare is provided for a population of 1500 and shopping centres at 4 shops per thousand population is also covered. It would, therefore, be seen that even for apparently high densities the basic requirements and community facilities are also taken care of.

(3)

It is emphasized that this type of development should apply to clusters of 400 dwelling units, so distributed in the development under consideration to maintain the overall densities of the master plan for the area (See Note 1 of table).

2. Planning. - (1) Type of Development-The type of development for low income housing shall be (i) plotted development for low income housing shall be (i) plotted development as row housing, (ii) flatted the development as row housing, (iii) block development as group housing.

(2)

Density. - The maximum density, dwelling units/hectare, shall be as given in the following tables :-

Table

Maximum Densities Low Income Housing

[Clause M-2(2)]

S.No.

Density in Dwelling Units/ha for plinth Area of

Unit of No. of

Storeys

20 square metres

30 square metres

(i)

130

85

1

(ii)

250

170

2

(iii)

300

225

3

(iv)

350

260

4

(v)

400

300

5

Note 1. - These densities are applicable to a cluster of dwellings up to 400 with a family of 5 members.

Note 2. - Vertical incremental housing shall be permitted in single ownership plot.

Note 3. - These densities include provision for open spaces convenient-shopping, nursery, and all internal roads and pathways, but do not include peripheral road around the cluster.

Note 4. - The minimum density shall be 75 per cent of the above.

(3)

(i)

Size of Plot/Plinth Area. - The minimum plot size shall be as follows, with a coverage not exceeding 75 per cent.

Minimum Plot Size-

30 square metres

Incremental housing with one room, cooking space and combined bath and WC on ground floor and future extension of one room and a bath on the first floor/ground floor.

40 square metres

Two roomed house on each floor for Group Housing/Individual ownership house.

Note 1. - The minimum size of plots takes into account the need of incremental housing. In the case of cities (other than metropolitan cities) with population less than 0.5 million, the size of the plots may be increased by 33% per cent.

Note 2. - In exceptional cases in metropolitan cities with population more than 1 million, the size of plots may be brought down to 25 square metres in cases of low income house colonies located in congested areas or in areas as decided by the Authority.

(ii)

Minimum Frontage. - The minimum frontage of the plot shall be 3.6 metres in width.

Note. - The minimum frontage of 3.6 metres is desirable. For an economical layout, group housing appears to be a good solution. But if plotted development is to be adopted and if there are occasions when sufficient frontage is not available the same may be reduced to 3 metres.

(4)

Height of building-The height of building shall not exceed 15 metres.

Note. - For building up to the height of 15 metres, there is no need to provide lifts.

3. General Building Requirements. - (1) The requirements of parts of buildings shall be as in clauses (2) to (7) below.

(2)

Plinth. - The minimum height of plinth shall be 30 centimetres from the surrounding ground level.

(3)

Size of room. - (a) Habitable Room-

(i)

In the case of one-roomed house, the size of the multipurpose room including space for cooking shall be not less than 10 square metres with a minimum width of 2.4 metres.

(ii)

In the case of two-roomed house, the size of a room shall not be less than 6.5 square metres with a minimum width of 2.1 metres provided that total area of both rooms is not less than 15 square metres. In case of incremental housing to be developed as a future two roomed house, the total area of rooms to be provided in the initial and later stages should not be less than 16 square metres.

(b)

W.C./Bath Room-

(i)

Size of independent water closet shall be 0.9 X 1.0 metres.

(ii)

Size of independent bath shall be 1.0 X 1.2 metres.

(iii)

Size of combined bath and water closet shall be 1.0 X 1.8 metres and this may be permitted in one roomed house.

(c)

Kitchen. - The size of a cooking alcove serving as cooking space shall not be less than 2.4 square metres with minimum width of 1.2 metres. The size of individual kitchen provided in two-roomed house shall not be less than 3.3 square metres with a minimum width of 1.5 metres.

(d)

Balcony. - The minimum width of individual balcony, where provided, shall be 0.9 metre.

(4)

(i)

Minimum Height. - The minimum height of rooms/spaces shall be as follows :-

(a)

Habitable Room-2.6 metres

(b)

Kitchen-2.4 metres

(c)

Bath/W.C. - 2.2 metres

(d)

Corridor-2.1 metres.

(ii)

In the case of sloping roofs, the average height of roof for habitable rooms shall be 2.6 metres and the minimum height at eaves shall be 2.0 metres.

(5)

Lighting and Ventilation. - The openings through windows, ventilators and other for lighting and ventilation shall be as provided in sub-rule (3) of rule 79.

Note. - The window and other opening shall abut on to open spaces either through areas left open within the plot or the front, side and rear spaces provided in the layouts which shall be treated as deemed to be sufficient for light and ventilation purposes.

(6)

Stairs. - The following criteria shall be adopted for internal individual staircase :-

(a) Minimum Width

(i) 2 storeyed-straight

0.60 metre

(ii) 2 storeyed-winding

0.75 metre

(iii) 3 or more storeyed-straight

0.75 metre

(iv) 3 or more storeyed-winding

0.90 metre

(b) Riser 20 Centimetres Max.

(c) Tread

(i) 2 storeyed

22.5 centimetres min.

(ii) 3 storeyed or more

25 centimetres minimum.

Note. - This could be reduced to 20 centimetres as the clear tread between perpend, with possibility of open rise as well as nosing and inclined riser to have an effective going of 22.5 centimeter.

(d)

Head Room. - The minimum clear head room shall be 2.1 metres.

(7)

Circulation Area. - Circulation area on any floor including staircase shall not exceed-

2.0

square metres/unit where 4 dwelling units are grouped around a staircase.

4.0

square metres/unit where 2 dwelling units are grouped.

4. Roads and Pathways. - (1) The area under roads and pathways in such housing projects should normally not exceed 25% of the total land area of the project.

Access to the dwelling units, particularly where motorised vehicles are not normally expected should be by means of paved foot paths with a right of way of 6 metres and paved-way of minimum 2 metres only. The right of way should be adequate to allow for the plying of emergency vehicles and also for road side drains and plantation. Where moterable accessways are not provided and pedestrian path-ways are provided, the minimum width of such pedestrian path-way shall be 3 metres which shall not serve more than 100 metres.

5. Other Requirements-(1) One water tap per dwelling unit may be provided where adequate drinking water supply is available. If supply is inadequate, public hydrants shall be provided. In the absence of piped water supply, it could be done through hand pumps.

(2)

The infrastructural services shall be provided before the plots are handed over to individual owners.

6. Site and Services Schemes. - The developed plot sizes shall be as per M-2 (3). Services would have to be laid by the

Agency concerned as per the provisions of these rules. In so far as roads and pathways are concerned they should also be in line with M-4.

(2)

Site and services schemes shall provide for the following :-

(a)

the infrastructural needs for a permanent housing depending upon requirements.

(b)

a service sanitary core in the plot;and

(c)

permission to allow temporary construction or a developed plinth may be provided, where feasible.

(14)

After Appendix M, the following new Appendix shall be inserted, namely,-

[Appendix N-1]

[Appendix N-1 to N3 inserted by Notification No. F. 23(107)-95-XXXII(I). dated 7th April, 2000.]

[See Rule 78]

Rain Water Harvesting through Percolation Pits

Dig a number of 3 m. deep and 30 cm dia percolation Pits of 3 m. intervals around the plinth. Fill them up with broken bricks and pack the top 15 cm. with river sand. Erect 7.5 cm. high dwarf walls at entrance to facilitate recharge.]

[Appendix N-2]

[Appendix N-1 to N3 inserted by Notification No. F. 23(107)-95-XXXII(I), dated 7th April, 2000.]

Rain Water Harvesting through Pebble Bed

(Building Complexes)

On the three sides along the inner periphery adjoining the compound wall, dig 1 m wide pit to a depth of 1.5 m and fill it with 5 to 7.5 cm. size pebbles. Let the rain water falling on the terrace flow into this pebble bed.]

[Appendix N-3]

[Appendix N-1 to N3 inserted by Notification No. F. 23(107)-95-XXXII(I), dated 7th April, 2000.]

Rain Water Harvesting through Service Well Cum Recharge Well

Provide well of 1.2 m dia for a depth of 10.0 m and divert the rain water from the terrace into the well through rain water down take pipes. Divert the rain water falling around the open space surrounding the Building to the front gate wherein a gutter is provided for a depth of 1.0 m. and a width of 0.6 m with perforated slabs. The rain water collected in the gutter in front of the entrance is discharged into another recharge well of 1.2 m dia with 10.0 m. deep provided hereby through necessary piping arrangements.]

[Appendix-O]

[Inserted by Notification No. F. 3-66-2001-XXXII, dated 16-1-2002, published in Madhya Pradesh Rajpatra Part IV(Ga), dated 1 -2-2002 pp. 18-20.]

Guiding/warning floor material. - The floor material to guide or to warn the visually impaired persons with a change of colour or material with conspicuously different texture and easily distinguishable from the rest of the surrounding floor materials is called guiding or warning floor material. The materials with different texture gives audible signals with sensory warning when a person moves on this surface with walking stick. The guiding/warning floor material is meant to give the directional effect or warn a person at critical places. This floor material shall be provided in the following areas:-

(a)

The access path to the building and to the parking area;

(b)

The landing lobby towards the information board, reception, lifts, stair-cases and toilets;

(c)

Immediately at the beginning/end of walk-way where there is a vehicular traffic;

(d)

At the location abruptly changing in level or beginning/end or a ramp;

(e)

Immediately in front of an entrance/exit and the landing.

Proper Signage. - Appropriate identification of specific facilities within a building for the handicapped persons should be

done with proper signages. Visually Impaired persons make use of other senses such as hearing and touch to compensate for the lack of vision. Whereas visual signals benefit those with hearing disabilities.

Signs should be designed and located so that they are easily legible using suitable letter size (Not less than 20 mm high). For visually impaired persons information board in braille should be installed on the wall at a suitable height and it should be possible to approach them closely. To ensure safe walking there should not be any protruding sign which creates obstruction in walking. Public Address System may also be provided in busy public areas.

The Symbols/informations should be in contrasting colour and properly illuminated because people with limited vision may be able to differentiate amongst primary colours. International mark for wheel chair as shown below installed at the lift, toilet, staircase, parking areas etc. that have been provided for the handicapped.

Related AI tags, queries and research notes

Translation